EXECUTION VERSION

CREDIT AGREEMENT

dated as of
June 10, 2026

among

MERIDIAN COMPOSITES, LLC,
as the Borrower,

MERIDIAN COMPOSITES INTERMEDIATE HOLDINGS, LLC,
as Holdings,

THE LENDERS PARTY HERETO

and

ARGENT CAPITAL ADMINISTRATIVE SERVICES, LLC,
as Administrative Agent and Collateral Agent

$385,000,000 Senior Secured Credit Facilities

consisting of $300,000,000 of Initial Term Loan Commitments, $50,000,000 of Delayed Draw Term Loan Commitments and $35,000,000 of Revolving Commitments

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ARGENT DIRECT LENDING ADVISORS, L.P.,
as Sole Lead Arranger and Sole Bookrunner

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CREDIT AGREEMENT, dated as of June 10, 2026 (this "**Agreement**"), among MERIDIAN COMPOSITES, LLC, a Delaware limited liability company (the "**Borrower**"), MERIDIAN COMPOSITES INTERMEDIATE HOLDINGS, LLC, a Delaware limited liability company ("**Holdings**"), the LENDERS from time to time party hereto and ARGENT CAPITAL ADMINISTRATIVE SERVICES, LLC, as Administrative Agent and Collateral Agent.

WHEREAS, pursuant to that certain Agreement and Plan of Merger, dated as of April 17, 2026 (together with all exhibits, schedules and annexes thereto, the "**Acquisition Agreement**"), by and among Holdings, Meridian Composites Merger Sub, Inc., a Delaware corporation and a wholly owned subsidiary of the Borrower ("**Merger Sub**"), and Meridian Composites Group, Inc., a Delaware corporation (the "**Target**"), Merger Sub will merge with and into the Target, with the Target surviving such merger as a wholly owned subsidiary of the Borrower (the "**Acquisition**");

WHEREAS, in connection with the Acquisition, investment funds managed, advised or controlled by Halcyon Ridge Partners, L.P. or its Affiliates will make, directly or indirectly, cash equity contributions to Holdings, which Holdings will in turn contribute to the Borrower as common equity (or other Qualified Equity Interests), in an aggregate amount not less than 42.5% of the sum of the aggregate principal amount of the Initial Term Loans funded on the Closing Date plus the aggregate amount of such equity contributions (the "**Equity Contribution**");

WHEREAS, the Borrower has requested that, substantially concurrently with the consummation of the Acquisition, the Lenders extend credit to the Borrower in the form of (a) Initial Term Loans on the Closing Date in an aggregate principal amount of $300,000,000, (b) Delayed Draw Term Loans at any time and from time to time after the Closing Date and prior to the Delayed Draw Commitment Termination Date in an aggregate principal amount not to exceed $50,000,000 and (c) Revolving Loans at any time and from time to time prior to the Maturity Date in an aggregate principal amount at any time outstanding not to exceed $35,000,000;

WHEREAS, the proceeds of the Initial Term Loans, together with the proceeds of the Equity Contribution and cash on hand of the Target, will be used to finance the Transactions; and

WHEREAS, the Lenders are willing to extend such credit to the Borrower on the terms and subject to the conditions set forth herein;

NOW, THEREFORE, in consideration of the premises and the mutual covenants and agreements contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties hereto hereby agree as follows:

ARTICLE I
DEFINITIONS AND ACCOUNTING TERMS

Section 1.01. Defined Terms.

As used in this Agreement, the following terms have the meanings specified below:

"**Acquisition**" has the meaning assigned to such term in the recitals hereto.

"**Acquisition Agreement**" has the meaning assigned to such term in the recitals hereto.

"**Adjusted Term SOFR**" means, for any Interest Period, an interest rate per annum equal to (a) Term SOFR for such Interest Period *plus* (b) 0.10%; *provided* that if Adjusted Term SOFR as so determined would be less than the Floor, such rate shall be deemed to be equal to the Floor for purposes of this Agreement.

"**Administrative Agent**" means Argent Capital Administrative Services, LLC, in its capacity as administrative agent under the Loan Documents, together with any successor administrative agent appointed pursuant to Article X.

"**Administrative Questionnaire**" means an administrative questionnaire in a form supplied by the Administrative Agent.

"**Affected Financial Institution**" means (a) any EEA Financial Institution or (b) any UK Financial Institution.

"**Affiliate**" means, with respect to a specified Person, another Person that directly, or indirectly through one or more intermediaries, Controls or is Controlled by or is under common Control with the Person specified.

"**Affiliated Lender**" means any Lender that is the Sponsor, Holdings, the Borrower or any of their respective Affiliates (other than any Debt Fund Affiliate, Holdings, the Borrower or any of its Subsidiaries, none of which (other than Debt Fund Affiliates) shall be permitted to be Lenders hereunder).

"**Affiliated Lender Cap**" has the meaning assigned to such term in Section 11.04(g).

"**Agents**" means the Administrative Agent and the Collateral Agent.

"**Agreement**" has the meaning assigned to such term in the preamble hereto.

"**Anti-Corruption Laws**" means all laws, rules and regulations of any jurisdiction applicable to the Borrower or any of its Subsidiaries from time to time concerning or relating to bribery or corruption, including the United States Foreign Corrupt Practices Act of 1977 and the UK Bribery Act 2010.

"**Applicable Margin**" means, for any day, (a) with respect to any Initial Term Loan or Delayed Draw Term Loan, (i) prior to delivery of the Compliance Certificate for the first full Fiscal Quarter ending after the Closing Date, 5.75% per annum in the case of Term SOFR Loans and 4.75% per annum in the case of Base Rate Loans and (ii) thereafter, the applicable rate per annum set forth in the pricing grid below based upon the Total Net Leverage Ratio as of the last day of the most recently ended Test Period for which a Compliance Certificate has been delivered pursuant to Section 6.02(a), and (b) with respect to any Revolving Loan, the rate per annum determined in the same manner as for Term Loans pursuant to the foregoing clause (a); *provided* that (x) at any time during which the Borrower has failed to deliver a Compliance Certificate when due pursuant to Section 6.02(a), and at all times during the continuance of an Event of Default under Section 9.01(a), (b), (h) or (i), Pricing Level I shall apply, (y) each change in the Applicable Margin resulting from a change in Pricing Level shall be effective from the third Business Day following the date of delivery to the Administrative Agent of the applicable Compliance Certificate until the date immediately preceding the next date of effectiveness, and (z) during any PIK Election Period, the Applicable Margin otherwise in effect with respect to the Term Loans shall be increased as provided in Section 2.06(d). If, as a result of any restatement of, or other adjustment to, the financial statements of the Borrower, the Borrower or the Lenders determine that the Total Net Leverage Ratio as calculated as of any applicable date was inaccurate and a proper calculation would have resulted in a higher Pricing Level, the Borrower shall retroactively pay the additional interest that would have accrued at such higher Pricing Level promptly upon demand by the Administrative Agent.

Pricing Level	Total Net Leverage Ratio	Applicable Margin – Term SOFR Loans	Applicable Margin – Base Rate Loans
I	Greater than 5.00 to 1.00	5.75%	4.75%
II	Less than or equal to 5.00 to 1.00 but greater than 4.25 to 1.00	5.50%	4.50%
III	Less than or equal to 4.25 to 1.00	5.25%	4.25%

"**Applicable Percentage**" means, with respect to any Lender at any time, (a) with respect to the Revolving Facility, the percentage of the aggregate Revolving Commitments represented by such Lender's Revolving Commitment (or, if the Revolving Commitments have terminated, the percentage of the aggregate Revolving Exposure represented by such Lender's Revolving Exposure), (b) with respect to the Delayed Draw Facility, the percentage of the aggregate Delayed Draw Commitments represented by such Lender's Delayed Draw Commitment, and (c) with respect to the Term Loans, the percentage of the aggregate outstanding principal amount of Term Loans represented by the Term Loans held by such Lender.

"**Approved Fund**" means any Person (other than a natural person) that is engaged in making, purchasing, holding or otherwise investing in commercial loans and similar extensions of credit in the ordinary course of its activities and that is administered, advised or managed by (a) a Lender, (b) an Affiliate of a Lender or (c) an entity or an Affiliate of an entity that administers, advises or manages a Lender.

"**Assignment and Assumption**" means an assignment and assumption entered into by a Lender and an assignee (with the consent of any party whose consent is required by Section 11.04), in substantially the form of Exhibit A or any other form approved by the Administrative Agent.

"**Audited Financial Statements**" means the audited consolidated balance sheets of the Target and its subsidiaries as of December 31, 2023, December 31, 2024 and December 31, 2025, and the related audited consolidated statements of operations, stockholders' equity and cash flows for the fiscal years then ended.

"**Available Amount**" means, at any time (the "**Reference Time**"), an amount equal to, without duplication, (a) $25,000,000, *plus* (b) the aggregate amount of Excess Cash Flow for each Fiscal Year ended after the Closing Date and prior to the Reference Time that was not required to be applied to prepay Term Loans pursuant to Section 2.09(c) (and was not so applied at the election of the Borrower), *plus* (c) the aggregate amount of cash and the fair market value of property other than cash received by the Borrower after the Closing Date and prior to the Reference Time from the issuance or sale of Qualified Equity Interests of the Borrower (or of Holdings or any Parent Entity and contributed to the Borrower as common equity), or as a capital contribution in respect of Qualified Equity Interests, in each case other than any Specified Equity Contribution and any amounts applied to make Investments, Restricted Payments or payments in respect of Junior Indebtedness in reliance on any other provision hereof, *plus* (d) the aggregate amount of cash returns, profits, distributions, repayments of principal and similar amounts actually received in cash by the Borrower or any Restricted Subsidiary in respect of Investments made after the Closing Date in reliance on the Available Amount (not to exceed the original amount of such Investments), *plus* (e) the aggregate fair market value of the Investments of the Borrower and the Restricted Subsidiaries in any Unrestricted Subsidiary at the time such Unrestricted Subsidiary is redesignated as a Restricted Subsidiary or is merged, consolidated or amalgamated with or into, or transfers or conveys its assets to, the Borrower or any Restricted Subsidiary (in each case, to the extent the original designation of such Unrestricted Subsidiary was made in reliance on the Available Amount and not to exceed the amount of the Investment so made), *minus* (f) the aggregate amount of the Available Amount utilized prior to the Reference Time to make Investments pursuant to Section 7.05(m), Restricted Payments pursuant to Section 7.06(g) or payments in respect of Junior Indebtedness pursuant to Section 7.07(a)(iv).

"**Bail-In Action**" means the exercise of any Write-Down and Conversion Powers by the applicable Resolution Authority in respect of any liability of an Affected Financial Institution.

"**Bail-In Legislation**" means (a) with respect to any EEA Member Country implementing Article 55 of Directive 2014/59/EU of the European Parliament and of the Council of the European Union, the implementing law, rule or regulation for such EEA Member Country from time to time, and (b) with respect to the United Kingdom, Part I of the United Kingdom Banking Act 2009 and any other law, rule or regulation applicable in the United Kingdom relating to the resolution of unsound or failing banks, investment firms or other financial institutions or their affiliates.

"**Bankruptcy Code**" means Title 11 of the United States Code, as amended, or any similar federal or state law for the relief of debtors.

"**Base Rate**" means, for any day, a fluctuating rate per annum equal to the highest of (a) the Federal Funds Effective Rate in effect on such day *plus* 0.50%, (b) the Prime Rate in effect on such day and (c) Adjusted Term SOFR for a one-month Interest Period as published two U.S. Government Securities Business Days prior to such day *plus* 1.00%; *provided* that in no event shall the Base Rate be less than the Floor *plus* 1.00%.

"**Beneficial Ownership Certification**" means a certification regarding beneficial ownership as required by the Beneficial Ownership Regulation.

"**Beneficial Ownership Regulation**" means 31 C.F.R. § 1010.230.

"**Board**" means the Board of Governors of the Federal Reserve System of the United States of America.

"**Borrower**" has the meaning assigned to such term in the preamble hereto.

"**Borrowing**" means Loans of the same Class and Type made, converted or continued on the same date and, in the case of Term SOFR Loans, as to which a single Interest Period is in effect.

"**Borrowing Request**" means a request by the Borrower for a Borrowing in accordance with Section 2.03, substantially in the form of Exhibit C.

"**Business Day**" means any day that is not a Saturday, Sunday or other day on which commercial banks in New York City are authorized or required by law to remain closed; *provided* that, when used in connection with any determination or funding of, or any notice with respect to, a Term SOFR Loan, the term "**Business Day**" shall also exclude any day that is not a U.S. Government Securities Business Day.

"**Capital Expenditures**" means, for any period, the additions to property, plant and equipment and other capital expenditures of the Borrower and the Restricted Subsidiaries that are (or should be) set forth in a consolidated statement of cash flows of the Borrower for such period prepared in accordance with GAAP, excluding (a) expenditures made with the proceeds of any Casualty Event to repair, restore or replace the affected assets, (b) expenditures constituting a Permitted Acquisition or other Investment permitted hereunder and (c) expenditures made by third parties (including landlords) for which neither the Borrower nor any Restricted Subsidiary is liable.

"**Capital Lease Obligations**" means, with respect to any Person, the obligations of such Person to pay rent or other amounts under any lease of (or other arrangement conveying the right to use) real or personal property, or a combination thereof, which obligations are required to be classified and accounted for as finance leases on a balance sheet of such Person under GAAP, and the amount of such obligations shall be the capitalized amount thereof determined in accordance with GAAP; *provided* that obligations that were or would have been treated as operating leases under GAAP as in effect on December 31, 2018 shall not constitute Capital Lease Obligations notwithstanding any change in GAAP after such date.

"**Cash Equivalents**" means (a) Dollars; (b) securities issued or directly and fully guaranteed or insured by the United States government or any agency or instrumentality thereof having maturities of not more than 24 months from the date of acquisition; (c) certificates of deposit, time deposits and eurodollar time deposits with maturities of 12 months or less from the date of acquisition, bankers' acceptances with maturities not exceeding 12 months and overnight bank deposits, in each case, with any commercial bank having capital and surplus of not less than $250,000,000; (d) repurchase obligations with a term of not more than 30 days for underlying securities of the types described in clauses (b) and (c) above; (e) commercial paper rated at least P-2 by Moody's or A-2 by S&P and in each case maturing within 12 months after the date of acquisition; (f) marketable short-term money market and similar funds having a rating of at least P-2 or A-2 from either Moody's or S&P; (g) readily marketable direct obligations issued by any state of the United States or any political subdivision thereof having one of the two highest rating categories obtainable from either Moody's or S&P with maturities of 24 months or less from the date of acquisition; and (h) investment funds investing substantially all of their assets in securities of the types described in clauses (a) through (g) above.

"**Casualty Event**" means any event that gives rise to the receipt by the Borrower or any Restricted Subsidiary of any insurance proceeds or condemnation awards in respect of any equipment, fixed assets or real property (including any improvements thereon) to replace or repair such equipment, fixed assets or real property.

"**CFC**" means a "controlled foreign corporation" within the meaning of Section 957 of the Code.

"**Change in Law**" means the occurrence, after the Closing Date, of any of the following: (a) the adoption or taking effect of any law, rule, regulation or treaty, (b) any change in any law, rule, regulation or treaty or in the administration, interpretation, implementation or application thereof by any Governmental Authority or (c) the making or issuance of any request, rule, guideline or directive (whether or not having the force of law) by any Governmental Authority; *provided* that, notwithstanding anything herein to the contrary, (x) the Dodd-Frank Wall Street Reform and Consumer Protection Act and all requests, rules, guidelines or directives thereunder or issued in connection therewith and (y) all requests, rules, guidelines or directives promulgated by the Bank for International Settlements, the Basel Committee on Banking Supervision (or any successor or similar authority) or the United States or foreign regulatory authorities, in each case pursuant to Basel III, shall in each case be deemed to be a "Change in Law," regardless of the date enacted, adopted or issued.

"**Change of Control**" means the occurrence of any of the following: (a) the Permitted Holders shall cease to beneficially own, directly or indirectly, Equity Interests representing more than 50.1% of the aggregate ordinary voting power represented by the issued and outstanding Equity Interests of Holdings, unless the Permitted Holders otherwise have the right, directly or indirectly, to designate a majority of the board of directors (or similar governing body) of Holdings; (b) any "person" or "group" (as such terms are used in Sections 13(d) and 14(d) of the Securities Exchange Act of 1934), other than the Permitted Holders, shall become the beneficial owner, directly or indirectly, of Equity Interests representing 35% or more of the aggregate ordinary voting power represented by the issued and outstanding Equity Interests of Holdings and the percentage of such voting power so held exceeds the percentage of such voting power beneficially owned, directly or indirectly, by the Permitted Holders; (c) Holdings shall cease to own, directly, 100% of the issued and outstanding Equity Interests of the Borrower, free and clear of all Liens other than Liens created under the Collateral Documents; or (d) a "change of control" (or similar event, however denominated) shall occur under any Junior Indebtedness or other Material Indebtedness of Holdings, the Borrower or any Restricted Subsidiary.

"**Class**" means, when used in reference to any Loan or Borrowing, whether such Loan, or the Loans comprising such Borrowing, are Initial Term Loans, Delayed Draw Term Loans, Incremental Term Loans of a given series or Revolving Loans, and when used in reference to any Commitment, whether such Commitment is an Initial Term Loan Commitment, a Delayed Draw Commitment, an Incremental Commitment of a given series or a Revolving Commitment.

"**Closing Date**" means June 10, 2026.

"**Code**" means the Internal Revenue Code of 1986, as amended.

"**Collateral**" means any and all property of any Loan Party subject (or purported to be subject) to a Lien under any Collateral Document securing the Obligations, and shall in any event exclude all Excluded Assets (as defined in the Security Agreement).

"**Collateral Agent**" means Argent Capital Administrative Services, LLC, in its capacity as collateral agent under the Loan Documents, together with any successor collateral agent appointed pursuant to Article X.

"**Collateral and Guarantee Requirement**" means, at any time, the requirement that: (a) the Administrative Agent shall have received from Holdings, the Borrower and each Material Domestic Subsidiary (other than any Excluded Subsidiary) either (i) a counterpart of the Guarantee and Collateral Agreement duly executed and delivered on behalf of such Person or (ii) in the case of any Person that becomes a Material Domestic Subsidiary (or ceases to qualify as an Excluded Subsidiary) after the Closing Date, a joinder to the Guarantee and Collateral Agreement, in each case within 30 days (or such longer period as the Administrative Agent may agree in its reasonable discretion) after such Person so qualifies, together with, in each case, customary resolutions, organizational documents, incumbency certificates and customary legal opinions; (b) all outstanding Equity Interests of the Borrower and each Restricted Subsidiary directly owned by a Loan Party (limited, in the case of any first-tier Foreign Subsidiary that is a CFC, to 65% of the voting Equity Interests thereof) shall have been pledged pursuant to the Guarantee and Collateral Agreement, and the Collateral Agent shall have received certificates or other instruments (if any) representing such Equity Interests, together with undated transfer powers executed in blank; (c) all Indebtedness of Holdings, the Borrower and each Subsidiary owing to any Loan Party in a principal amount of $2,500,000 or more shall be evidenced by the Intercompany Note, which shall have been pledged and delivered to the Collateral Agent; and (d) all documents and instruments, including Uniform Commercial Code financing statements and Intellectual Property security agreements, required by law or reasonably requested by the Collateral Agent to be filed, registered or recorded to create the Liens intended to be created by the Collateral Documents and perfect such Liens to the extent required by, and with the priority required by, the Collateral Documents, shall have been filed, registered or recorded or delivered to the Collateral Agent for filing, registration or recording; *provided* that no Loan Party shall be required to (x) perfect a security interest in motor vehicles or other assets subject to a certificate of title, letter-of-credit rights with a value of less than $2,500,000 or commercial tort claims with a value of less than $2,500,000, (y) enter into control agreements with respect to deposit accounts or securities accounts other than as required by Section 6.13 or (z) take any action in any jurisdiction outside the United States to perfect any security interest.

"**Collateral Documents**" means, collectively, the Guarantee and Collateral Agreement, each control agreement, each intellectual property security agreement and each other agreement, instrument or document executed and delivered pursuant to the Collateral and Guarantee Requirement or Section 6.10 or 6.13 that creates or purports to create a Lien in favor of the Collateral Agent for the benefit of the Secured Parties.

"**Commitment**" means, with respect to any Lender, such Lender's Initial Term Loan Commitment, Delayed Draw Commitment, Incremental Commitment or Revolving Commitment, or any combination thereof, as the context may require.

"**Compliance Certificate**" means a certificate of a Financial Officer of the Borrower substantially in the form of Exhibit B.

"**Consolidated EBITDA**" means, for any period, Consolidated Net Income for such period, *plus* (a) without duplication and to the extent deducted (and not added back) in determining such Consolidated Net Income, the sum of: (i) consolidated interest expense for such period (including imputed interest on Capital Lease Obligations, amortization or write-off of debt discount and debt issuance costs, commissions, discounts and other fees and charges associated with Indebtedness, and net payments and receipts (if any) pursuant to interest rate Swap Agreements, but excluding PIK Interest only to the extent paid in kind); (ii) provision for taxes based on income, profits or capital, including federal, state, franchise, excise and similar taxes and foreign withholding taxes paid or accrued during such period, including any penalties and interest relating thereto; (iii) depreciation and amortization expense for such period (including amortization of intangibles, internally developed software and capitalized software expenditures); (iv) any non-cash charges, expenses or losses for such period, including any write-offs or write-downs and non-cash compensation expense recorded in connection with equity incentive plans (*provided* that if any such non-cash charge represents an accrual or reserve for potential cash items in any future period, the cash payment in respect thereof in such future period shall be deducted from Consolidated EBITDA in such future period); (v) any fees, costs and expenses incurred during such period in connection with the Transactions; (vi) any fees, costs and expenses (including diligence, legal, accounting and advisory fees) incurred during such period in connection with any acquisition, Investment, Disposition, issuance or repayment of Indebtedness, issuance of Equity Interests, refinancing transaction or amendment or modification of any debt instrument, in each case whether or not consummated, in an aggregate amount under this clause (vi), together with amounts added back pursuant to clause (vii) below, not to exceed 15% of Consolidated EBITDA for such period (calculated before giving effect to this clause (vi) and clause (vii) below); (vii) any restructuring charges, business optimization expenses, integration costs, severance costs, relocation costs, facility opening and closing costs, signing and retention bonuses and curtailments or modifications to pension and post-retirement employee benefit plans for such period, subject to the cap set forth in clause (vi) above; (viii) the amount of "run rate" cost savings, operating expense reductions and synergies projected by the Borrower in good faith to result from actions taken or committed to be taken on or prior to the date that is 18 months after the Closing Date or after the consummation of any acquisition, Investment, Disposition, restructuring or cost savings initiative, net of the amount of actual benefits realized during such period from such actions, *provided* that (A) such cost savings, expense reductions and synergies are reasonably identifiable and factually supportable, as certified by a Financial Officer of the Borrower, (B) such actions have been taken or are expected in good faith to be taken within 18 months after the date of such event, and (C) the aggregate amount added back pursuant to this clause (viii) for any period shall not exceed 25% of Consolidated EBITDA for such period (calculated after giving effect to this clause (viii)); (ix) the amount of any management, monitoring, advisory, consulting and transaction fees and related expenses paid to the Sponsor during such period to the extent permitted under Section 7.08; (x) losses on asset sales, disposals or abandonments (other than in the ordinary course of business); (xi) any expenses or charges to the extent covered by insurance or indemnity and actually reimbursed, or with respect to which the Borrower has determined in good faith that there is reasonable evidence such amounts will be reimbursed by the insurer or indemnifying party within 365 days (with a corresponding deduction in any future period to the extent not so reimbursed); and (xii) proceeds of business interruption insurance actually received during such period (to the extent the related losses are not otherwise added back); *minus* (b) without duplication and to the extent included in determining such Consolidated Net Income, (i) any non-cash gains for such period (other than the reversal of an accrual or reserve for a potential cash item that reduced Consolidated EBITDA in a prior period) and (ii) gains on asset sales, disposals or abandonments (other than in the ordinary course of business), all as determined on a consolidated basis for the Borrower and the Restricted Subsidiaries in accordance with GAAP; *provided* that, for purposes of calculating Consolidated EBITDA for any Test Period that includes any of the Fiscal Quarters ended September 30, 2025, December 31, 2025, March 31, 2026 or June 30, 2026, Consolidated EBITDA for such Fiscal Quarters shall be deemed to be $19,250,000, $21,400,000, $18,900,000 and $20,450,000, respectively, subject to adjustment on a Pro Forma Basis as provided in Section 1.04.

"**Consolidated Fixed Charges**" means, for any period, the sum, without duplication, of (a) Consolidated Interest Expense for such period that is paid or payable in cash, (b) scheduled principal payments of Indebtedness for borrowed money made or required to be made during such period (including scheduled amortization of the Term Loans pursuant to Section 2.05(b) but excluding voluntary and mandatory prepayments), (c) the aggregate amount of federal, state, local and foreign income taxes paid in cash during such period (net of cash refunds received) and (d) Restricted Payments made in cash pursuant to Section 7.06(c) during such period.

"**Consolidated Interest Expense**" means, for any period, the total consolidated interest expense of the Borrower and the Restricted Subsidiaries for such period determined in accordance with GAAP (including, for the avoidance of doubt, PIK Interest whether or not paid in cash, imputed interest on Capital Lease Obligations and net amounts payable under interest rate Swap Agreements), but excluding amortization or write-off of deferred financing costs and original issue discount, and any one-time financing fees paid in connection with the Transactions.

"**Consolidated Net Income**" means, for any period, the net income (loss) of the Borrower and the Restricted Subsidiaries for such period determined on a consolidated basis in accordance with GAAP, excluding, without duplication: (a) the income (or loss) of any Person that is not a Restricted Subsidiary (including any Unrestricted Subsidiary), except to the extent of the amount of dividends or other distributions actually paid in cash (or converted into cash) to the Borrower or any Restricted Subsidiary during such period; (b) the income (or loss) of any Person accrued prior to the date it becomes a Restricted Subsidiary or is merged into or consolidated with the Borrower or any Restricted Subsidiary or the date such Person's assets are acquired by the Borrower or any Restricted Subsidiary (except as required for Pro Forma Basis calculations pursuant to Section 1.04); (c) the income of any Restricted Subsidiary that is not a Loan Party to the extent that the declaration or payment of dividends or similar distributions by such Restricted Subsidiary of such income is not at the date of determination permitted by operation of the terms of its organizational documents or any agreement or law applicable to such Restricted Subsidiary (other than restrictions permitted under Section 7.09); (d) any after-tax gains or losses attributable to Dispositions outside the ordinary course of business and any extraordinary, unusual or non-recurring gains or losses; (e) any net unrealized gains and losses resulting from Swap Agreements or embedded derivatives or from currency translation or remeasurement; and (f) the cumulative effect of changes in accounting principles.

"**Consolidated Total Assets**" means, as of any date of determination, the total assets of the Borrower and the Restricted Subsidiaries, determined on a consolidated basis in accordance with GAAP, as shown on the most recent balance sheet delivered pursuant to Section 6.01(a) or (b) (or, prior to the first such delivery, the pro forma consolidated balance sheet of the Borrower delivered pursuant to Section 4.01).

"**Consolidated Total Net Debt**" means, as of any date of determination, (a) the aggregate principal amount of Indebtedness of the Borrower and the Restricted Subsidiaries outstanding on such date, determined on a consolidated basis in accordance with GAAP, consisting of Indebtedness for borrowed money (including, for the avoidance of doubt, PIK Interest that has been capitalized and added to principal), unreimbursed drawings under letters of credit, Capital Lease Obligations, purchase money Indebtedness and Disqualified Equity Interests, *minus* (b) the aggregate amount of unrestricted cash and Cash Equivalents of the Borrower and the Restricted Subsidiaries on such date that is not held in an Excluded Account and is free and clear of all Liens other than Liens created under the Collateral Documents and other Permitted Liens described in clauses (a), (c) and (l) of the definition thereof, in an aggregate amount not to exceed $40,000,000 for purposes of this clause (b).

"**Control**" means the possession, directly or indirectly, of the power to direct or cause the direction of the management or policies of a Person, whether through the ability to exercise voting power, by contract or otherwise. "**Controlling**" and "**Controlled**" have meanings correlative thereto.

"**Credit Extension**" means each of the following: (a) a Borrowing and (b) any deemed extension of credit resulting from the capitalization of PIK Interest pursuant to Section 2.06(d).

"**Cure Amount**" has the meaning assigned to such term in Section 8.04.

"**Cure Right**" has the meaning assigned to such term in Section 8.04.

"**Debt Fund Affiliate**" means any Affiliate of the Sponsor (other than Holdings, the Borrower or any of their subsidiaries or any natural person) that is a bona fide debt fund or investment vehicle primarily engaged in the making, purchasing, holding or otherwise investing in commercial loans, bonds or similar extensions of credit in the ordinary course and with respect to which neither the Sponsor nor any of its investment professionals principally responsible for the equity investment in Holdings has the right to direct investment decisions.

"**Debtor Relief Laws**" means the Bankruptcy Code and all other liquidation, conservatorship, bankruptcy, assignment for the benefit of creditors, moratorium, rearrangement, receivership, insolvency, reorganization or similar debtor relief laws of the United States or other applicable jurisdictions from time to time in effect.

"**Default**" means any event or condition that constitutes an Event of Default or that, with the giving of any notice, the passage of time, or both, would be an Event of Default.

"**Defaulting Lender**" means any Lender that (a) has failed to fund any portion of its Loans within two Business Days of the date required to be funded, unless such Lender notifies the Administrative Agent in writing that such failure is the result of such Lender's good faith determination that a condition precedent to funding has not been satisfied, (b) has notified the Borrower or the Administrative Agent in writing that it does not intend to comply with its funding obligations hereunder, or has made a public statement to that effect, (c) has failed, within three Business Days after a request by the Administrative Agent or the Borrower, to confirm in writing that it will comply with its prospective funding obligations, or (d) has, or has a direct or indirect parent company that has, become the subject of a proceeding under any Debtor Relief Law, or has had appointed for it a receiver, custodian, conservator or similar official, or has become the subject of a Bail-In Action; *provided* that a Lender shall not be a Defaulting Lender solely by virtue of the ownership or acquisition of any Equity Interest in such Lender or its parent by a Governmental Authority.

"**Delayed Draw Commitment**" means, with respect to each Lender, the commitment of such Lender to make Delayed Draw Term Loans pursuant to Section 2.01(b), in the amount set forth opposite such Lender's name on Schedule 2.01 or in the Assignment and Assumption pursuant to which such Lender assumed such commitment, as applicable. The aggregate amount of the Delayed Draw Commitments on the Closing Date is $50,000,000.

"**Delayed Draw Commitment Termination Date**" means the earliest of (a) the date that is 24 months after the Closing Date, (b) the date on which the Delayed Draw Commitments have been fully drawn and (c) the date on which the Delayed Draw Commitments are terminated or reduced to zero pursuant to Section 2.08 or Article IX.

"**Delayed Draw Term Loan**" means a Loan made pursuant to Section 2.01(b).

"**Disposition**" means any sale, transfer, lease, license or other disposition (including by way of merger, consolidation, division or casualty or condemnation) of any property by any Person, including any sale, assignment, transfer or other disposal, with or without recourse, of any notes or accounts receivable or any rights and claims associated therewith. "**Dispose**" has a meaning correlative thereto.

"**Designated Non-Cash Consideration**" means the fair market value of non-cash consideration received by the Borrower or a Restricted Subsidiary in connection with a Disposition pursuant to Section 7.04(g) that is designated as Designated Non-Cash Consideration pursuant to a certificate of a Financial Officer, setting forth the basis of such valuation, less the amount of cash or Cash Equivalents received in connection with a subsequent disposition of such Designated Non-Cash Consideration.

"**Disqualified Equity Interests**" means any Equity Interest that, by its terms (or by the terms of any security or other Equity Interest into which it is convertible or for which it is exchangeable), or upon the happening of any event or condition, (a) matures or is mandatorily redeemable (other than solely for Qualified Equity Interests), pursuant to a sinking fund obligation or otherwise, (b) is redeemable at the option of the holder thereof (other than solely for Qualified Equity Interests), in whole or in part, (c) provides for scheduled payments of dividends in cash, or (d) is or becomes convertible into or exchangeable for Indebtedness or any other Equity Interests that would constitute Disqualified Equity Interests, in each case, prior to the date that is 91 days after the Maturity Date; *provided* that an Equity Interest that would not constitute a Disqualified Equity Interest but for terms thereof giving holders thereof the right to require the issuer to redeem or purchase such Equity Interest upon a "change of control" or "asset sale" shall not constitute a Disqualified Equity Interest if such terms provide that such redemption or purchase may not occur unless the Obligations have been paid in full and the Commitments terminated.

"**Disqualified Lenders**" means (a) the Persons identified in writing by the Borrower to the Lead Arranger prior to April 17, 2026 and set forth on Schedule 1.01(a), (b) competitors of the Borrower and its subsidiaries identified in writing by the Borrower to the Administrative Agent from time to time after the Closing Date (which designation shall not apply retroactively to any prior assignment or participation) and (c) in each case, Affiliates of the Persons described in clauses (a) and (b) that are reasonably identifiable as such on the basis of name (other than bona fide debt funds).

"**Dollars**" or "**$**" means the lawful currency of the United States of America.

"**Domestic Subsidiary**" means any Subsidiary that is organized under the laws of the United States of America, any state thereof or the District of Columbia.

"**ECF Percentage**" means, with respect to any Fiscal Year, (a) 50%, if the Total Net Leverage Ratio as of the last day of such Fiscal Year is greater than 5.00 to 1.00, (b) 25%, if the Total Net Leverage Ratio as of the last day of such Fiscal Year is less than or equal to 5.00 to 1.00 but greater than 4.25 to 1.00 and (c) 0%, if the Total Net Leverage Ratio as of the last day of such Fiscal Year is less than or equal to 4.25 to 1.00.

"**EEA Financial Institution**" means (a) any credit institution or investment firm established in any EEA Member Country which is subject to the supervision of an EEA Resolution Authority, (b) any entity established in an EEA Member Country which is a parent of an institution described in clause (a) of this definition or (c) any financial institution established in an EEA Member Country which is a subsidiary of an institution described in clause (a) or (b) of this definition and is subject to consolidated supervision with its parent.

"**EEA Member Country**" means any of the member states of the European Union, Iceland, Liechtenstein and Norway.

"**EEA Resolution Authority**" means any public administrative authority or any Person entrusted with public administrative authority of any EEA Member Country (including any delegee) having responsibility for the resolution of any EEA Financial Institution.

"**Eligible Assignee**" means any Person that meets the requirements to be an assignee under Section 11.04(b), other than (a) any natural person, (b) any Defaulting Lender, (c) Holdings, the Borrower or any of their respective Subsidiaries and (d) any Disqualified Lender.

"**Environmental Laws**" means all laws, rules, regulations, codes, ordinances, orders, decrees, judgments or binding agreements issued, promulgated or entered into by or with any Governmental Authority, relating in any way to the environment, natural resources, preservation or reclamation, the generation, use, transport, management, treatment, storage, disposal or Release of, or exposure to, any Hazardous Material, or to public or employee health and safety matters (to the extent relating to exposure to Hazardous Materials).

"**Environmental Liability**" means any liability, contingent or otherwise (including any liability for damages, costs of environmental remediation, fines, penalties or indemnities), of Holdings, the Borrower or any Restricted Subsidiary directly or indirectly resulting from or based upon (a) any violation of any Environmental Law, (b) the generation, use, handling, transportation, storage, treatment or disposal of any Hazardous Materials, (c) exposure to any Hazardous Materials, (d) the Release or threatened Release of any Hazardous Materials or (e) any contract or agreement pursuant to which liability is assumed or imposed with respect to any of the foregoing.

"**Equity Contribution**" has the meaning assigned to such term in the recitals hereto.

"**Equity Interests**" means shares of capital stock, partnership interests, membership interests in a limited liability company, beneficial interests in a trust or other equity ownership interests in a Person, and any warrants, options or other rights entitling the holder thereof to purchase or acquire any of the foregoing, but excluding any debt securities convertible into any of the foregoing.

"**ERISA**" means the Employee Retirement Income Security Act of 1974, as amended.

"**ERISA Affiliate**" means any trade or business (whether or not incorporated) that, together with the Borrower, is treated as a single employer under Section 414(b) or (c) of the Code or, solely for purposes of Section 302 of ERISA and Section 412 of the Code, is treated as a single employer under Section 414 of the Code.

"**ERISA Event**" means (a) any "reportable event," as defined in Section 4043 of ERISA, with respect to a Plan (other than an event for which the 30-day notice period is waived); (b) the failure of any Plan to satisfy the minimum funding standards (within the meaning of Section 412 of the Code or Section 302 of ERISA), whether or not waived; (c) the incurrence by the Borrower or any ERISA Affiliate of any liability under Title IV of ERISA with respect to the termination of any Plan; (d) the receipt by the Borrower or any ERISA Affiliate from the PBGC of any notice relating to an intention to terminate any Plan or to appoint a trustee to administer any Plan; (e) the incurrence by the Borrower or any ERISA Affiliate of any liability with respect to the withdrawal or partial withdrawal from any Plan or Multiemployer Plan; or (f) the receipt by the Borrower or any ERISA Affiliate of any notice concerning the imposition of Withdrawal Liability or a determination that a Multiemployer Plan is, or is expected to be, insolvent, in critical status or in endangered status, within the meaning of Title IV of ERISA.

"**Event of Default**" has the meaning assigned to such term in Section 9.01.

"**Excess Cash Flow**" means, for any Fiscal Year, an amount equal to (a) the sum, without duplication, of (i) Consolidated Net Income for such Fiscal Year, (ii) the amount of all non-cash charges (including depreciation and amortization) deducted in arriving at such Consolidated Net Income, (iii) decreases in Working Capital during such Fiscal Year (other than any such decreases arising from acquisitions or Dispositions outside the ordinary course of business) and (iv) the aggregate net amount of non-cash losses on Dispositions deducted in arriving at such Consolidated Net Income, *minus* (b) the sum, without duplication, of (i) the amount of all non-cash gains and credits included in arriving at such Consolidated Net Income, (ii) the aggregate amount of capital expenditures and Permitted Acquisitions and other Investments pursuant to Sections 7.05(g), (h) and (m) made in cash during such Fiscal Year (other than to the extent financed with the proceeds of long-term Indebtedness, the issuance of Equity Interests or the Available Amount), or committed pursuant to a binding agreement during such Fiscal Year and made within 180 days after the end thereof (without duplication in the succeeding Fiscal Year), (iii) the aggregate amount of all scheduled and voluntary principal payments of Indebtedness for borrowed money made in cash during such Fiscal Year (excluding voluntary prepayments of Revolving Loans except to the extent accompanied by a corresponding permanent reduction of the Revolving Commitments, and excluding prepayments of Term Loans deducted pursuant to Section 2.09(c)(ii)), (iv) increases in Working Capital during such Fiscal Year (other than any such increases arising from acquisitions or Dispositions outside the ordinary course of business), (v) cash payments made during such Fiscal Year in respect of non-cash charges added back in a prior Fiscal Year and (vi) cash payments of taxes in excess of the tax provision deducted in arriving at such Consolidated Net Income.

"**Excluded Accounts**" means (a) any deposit account exclusively used for payroll, payroll taxes, workers' compensation, employee wage and benefit payments or other fiduciary or trust purposes, (b) zero-balance disbursement accounts and (c) other deposit accounts the aggregate average daily balance of which for all such accounts does not exceed $2,500,000.

"**Excluded Subsidiary**" means (a) any Subsidiary that is not a Wholly Owned Subsidiary, (b) any Foreign Subsidiary, (c) any Domestic Subsidiary that is a direct or indirect subsidiary of a Foreign Subsidiary that is a CFC, (d) any Domestic Subsidiary substantially all of the assets of which consist of Equity Interests or Equity Interests and Indebtedness of one or more Foreign Subsidiaries that are CFCs, (e) any Immaterial Subsidiary, (f) any Subsidiary that is prohibited by applicable law, or by any contractual obligation existing on the Closing Date or on the date such Subsidiary is acquired (and not entered into in contemplation thereof), from providing a Guarantee of the Obligations, or that would require a governmental consent, approval, license or authorization to provide such Guarantee (unless such consent has been obtained), (g) any not-for-profit Subsidiary, captive insurance company or special purpose entity and (h) any other Subsidiary with respect to which the Administrative Agent and the Borrower reasonably agree that the cost or other consequences (including adverse tax consequences) of providing a Guarantee of the Obligations would be excessive in relation to the value afforded thereby; *provided* that, notwithstanding the foregoing, no Subsidiary that owns or holds any Material Intellectual Property shall constitute an Excluded Subsidiary.

"**Excluded Taxes**" means any of the following Taxes imposed on or with respect to a Recipient or required to be withheld or deducted from a payment to a Recipient: (a) Taxes imposed on or measured by net income (however denominated), franchise Taxes and branch profits Taxes, in each case, (i) imposed as a result of such Recipient being organized under the laws of, or having its principal office or applicable lending office located in, the jurisdiction imposing such Tax or (ii) that are Other Connection Taxes; (b) U.S. federal withholding Taxes imposed on amounts payable to or for the account of a Lender pursuant to a law in effect on the date on which such Lender acquires its interest in the applicable Loan or Commitment or changes its lending office, except to the extent that amounts with respect to such Taxes were payable to such Lender's assignor immediately before such assignment or to such Lender immediately before it changed its lending office; (c) Taxes attributable to a Recipient's failure to comply with Section 3.01(f); and (d) any withholding Taxes imposed under FATCA.

"**FATCA**" means Sections 1471 through 1474 of the Code, as of the Closing Date (or any amended or successor version that is substantively comparable and not materially more onerous to comply with), any current or future regulations or official interpretations thereof, any agreements entered into pursuant to Section 1471(b)(1) of the Code and any fiscal or regulatory legislation, rules or practices adopted pursuant to any intergovernmental agreement entered into in connection with the implementation of the foregoing.

"**Federal Funds Effective Rate**" means, for any day, the rate per annum calculated by the Federal Reserve Bank of New York based on federal funds transactions by depositary institutions and published on the next succeeding Business Day as the effective federal funds rate; *provided* that if such rate would be less than zero, it shall be deemed to be zero.

"**Fee Letter**" means that certain fee letter, dated as of April 17, 2026, among the Borrower, the Lead Arranger and the Administrative Agent.

"**Financial Covenants**" means the covenants set forth in Sections 8.01, 8.02 and 8.03.

"**Financial Officer**" means the chief financial officer, principal accounting officer, treasurer or controller of the Borrower.

"**Fiscal Quarter**" means each fiscal quarter of the Borrower ending on March 31, June 30, September 30 and December 31 of each year.

"**Fiscal Year**" means each fiscal year of the Borrower ending on December 31 of each year.

"**Fixed Charge Coverage Ratio**" means, as of any date of determination, the ratio of (a) Consolidated EBITDA for the Test Period most recently ended on or prior to such date *minus* the aggregate amount of unfinanced capital expenditures made in cash during such Test Period to (b) Consolidated Fixed Charges for such Test Period.

"**Floor**" means a rate of interest equal to 1.00% per annum.

"**Foreign Lender**" means a Lender that is not a U.S. Person.

"**Foreign Subsidiary**" means any Subsidiary that is not a Domestic Subsidiary.

"**GAAP**" means generally accepted accounting principles in the United States of America, as in effect from time to time, subject to Section 1.04.

"**Governmental Authority**" means the government of the United States of America or any other nation, or of any political subdivision thereof, whether state or local, and any agency, authority, instrumentality, regulatory body, court, central bank or other entity exercising executive, legislative, judicial, taxing, regulatory or administrative powers or functions of or pertaining to government.

"**Guarantee**" of or by any Person (the "**guarantor**") means any obligation, contingent or otherwise, of the guarantor guaranteeing or having the economic effect of guaranteeing any Indebtedness or other obligation of any other Person (the "**primary obligor**") in any manner, whether directly or indirectly, and including any obligation of the guarantor, direct or indirect, (a) to purchase or pay (or advance or supply funds for the purchase or payment of) such Indebtedness or other obligation, (b) to purchase or lease property, securities or services for the purpose of assuring the owner of such Indebtedness or other obligation of the payment thereof, (c) to maintain working capital, equity capital or any other financial statement condition or liquidity of the primary obligor so as to enable the primary obligor to pay such Indebtedness or other obligation or (d) as an account party in respect of any letter of credit issued to support such Indebtedness or obligation; *provided* that the term Guarantee shall not include endorsements for collection or deposit in the ordinary course of business.

"**Guarantee and Collateral Agreement**" means the Guarantee and Collateral Agreement, dated as of the Closing Date, among Holdings, the Borrower, the Subsidiary Guarantors party thereto and the Collateral Agent.

"**Guarantors**" means Holdings and each Subsidiary Guarantor.

"**Hazardous Materials**" means all explosive or radioactive substances or wastes and all hazardous or toxic substances, wastes or other pollutants, including petroleum or petroleum distillates, asbestos or asbestos-containing materials, polychlorinated biphenyls, per- and polyfluoroalkyl substances, radon gas, infectious or medical wastes and all other substances or wastes of any nature regulated pursuant to any Environmental Law.

"**Holdings**" has the meaning assigned to such term in the preamble hereto.

"**Immaterial Subsidiary**" means any Restricted Subsidiary that, as of the last day of the most recently ended Test Period, (a) contributed 2.5% or less of Consolidated EBITDA for such Test Period and (b) had consolidated total assets of 2.5% or less of Consolidated Total Assets as of such date; *provided* that the Immaterial Subsidiaries, taken together, shall not have contributed more than 5.0% of Consolidated EBITDA for such Test Period or hold more than 5.0% of Consolidated Total Assets as of such date, and the Borrower shall designate which otherwise qualifying Subsidiaries shall be deemed not to be Immaterial Subsidiaries to the extent necessary to comply with this proviso.

"**Incremental Cap**" has the meaning assigned to such term in Section 2.14(a).

"**Incremental Commitment**" means any commitment to make Incremental Term Loans or Incremental Revolving Commitments pursuant to Section 2.14.

"**Incremental Facility Amendment**" has the meaning assigned to such term in Section 2.14(d).

"**Incremental Term Loans**" means any term loans made pursuant to an Incremental Facility Amendment in accordance with Section 2.14.

"**Indebtedness**" of any Person means, without duplication, (a) all obligations of such Person for borrowed money or with respect to deposits or advances of any kind; (b) all obligations of such Person evidenced by bonds, debentures, notes or similar instruments; (c) all obligations of such Person under conditional sale or other title retention agreements relating to property acquired by such Person; (d) all obligations of such Person in respect of the deferred purchase price of property or services (excluding (i) trade accounts payable and accrued obligations incurred in the ordinary course of business, (ii) deferred compensation and (iii) any earn-out or similar obligation until such obligation becomes a liability on the balance sheet of such Person in accordance with GAAP and is not paid within 60 days after becoming due and payable); (e) all Indebtedness of others secured by any Lien on property owned or acquired by such Person, whether or not the Indebtedness secured thereby has been assumed (limited, if such Indebtedness has not been assumed, to the lesser of the amount of such Indebtedness and the fair market value of the property securing it); (f) all Guarantees by such Person of Indebtedness of others; (g) all Capital Lease Obligations of such Person; (h) all obligations, contingent or otherwise, of such Person as an account party in respect of letters of credit, letters of guaranty and bankers' acceptances (other than, except for purposes of Section 9.01(f), obligations in respect of letters of credit to the extent undrawn or cash collateralized); (i) all Disqualified Equity Interests of such Person, valued at the maximum aggregate fixed redemption or repurchase price thereof; and (j) all net obligations of such Person under any Swap Agreement (valued at the Swap Termination Value thereof), *provided* that obligations under Swap Agreements shall not constitute Indebtedness for purposes of any calculation of the Total Net Leverage Ratio or the Fixed Charge Coverage Ratio. The Indebtedness of any Person shall include the Indebtedness of any partnership in which such Person is a general partner, except to the extent such Person's liability therefor is otherwise limited.

"**Indemnified Taxes**" means (a) Taxes, other than Excluded Taxes, imposed on or with respect to any payment made by or on account of any obligation of any Loan Party under any Loan Document and (b) to the extent not otherwise described in clause (a), Other Taxes.

"**Initial Term Loan**" means a Loan made pursuant to Section 2.01(a).

"**Initial Term Loan Commitment**" means, with respect to each Lender, the commitment of such Lender to make an Initial Term Loan on the Closing Date in the amount set forth opposite such Lender's name on Schedule 2.01. The aggregate amount of the Initial Term Loan Commitments on the Closing Date is $300,000,000.

"**Intellectual Property**" means all intellectual property and similar proprietary rights arising under the laws of any jurisdiction throughout the world, including all patents, patent applications, trademarks, service marks, trade names, trade dress, domain names, copyrights, works of authorship, software (including source code and object code), trade secrets, know-how, formulae, processes, customer lists and data, and all registrations, applications, renewals, extensions, goodwill and rights of action associated with any of the foregoing.

"**Intercompany Note**" means a global intercompany note, substantially in the form of Exhibit F, executed by Holdings, the Borrower and each Subsidiary.

"**Interest Election Request**" means a request by the Borrower to convert or continue a Borrowing in accordance with Section 2.06(e).

"**Interest Payment Date**" means (a) with respect to any Base Rate Loan, the last Business Day of each March, June, September and December and the Maturity Date and (b) with respect to any Term SOFR Loan, the last day of each Interest Period applicable to the Borrowing of which such Loan is a part (and, in the case of an Interest Period of more than three months' duration, each day prior to the last day of such Interest Period that occurs at three-month intervals after the first day of such Interest Period) and the Maturity Date.

"**Interest Period**" means, with respect to any Term SOFR Borrowing, the period commencing on the date of such Borrowing and ending on the numerically corresponding day in the calendar month that is one, three or six months thereafter, as the Borrower may elect; *provided* that (a) if any Interest Period would end on a day other than a Business Day, such Interest Period shall be extended to the next succeeding Business Day unless such next succeeding Business Day would fall in the next calendar month, in which case such Interest Period shall end on the next preceding Business Day, (b) any Interest Period that commences on the last Business Day of a calendar month (or on a day for which there is no numerically corresponding day in the last calendar month of such Interest Period) shall end on the last Business Day of the last calendar month of such Interest Period and (c) no Interest Period shall extend beyond the Maturity Date.

"**Investment**" means, as to any Person, any direct or indirect acquisition or investment by such Person, whether by means of (a) the purchase or other acquisition of Equity Interests or debt or other securities of another Person, (b) a loan, advance or capital contribution to, Guarantee of obligations of, or purchase or other acquisition of any other debt or interest in, another Person (excluding accounts receivable, trade credit, advances to customers and commission, travel and similar advances to officers and employees, in each case made in the ordinary course of business) or (c) the purchase or other acquisition (in one transaction or a series of related transactions) of all or substantially all of the assets of another Person, or of assets constituting a business unit, line of business or division of another Person. The amount of any Investment shall be the amount actually invested, without adjustment for subsequent increases or decreases in value, less all returns of principal or capital thereon received in cash.

"**IRS**" means the United States Internal Revenue Service.

"**Junior Indebtedness**" means any Indebtedness of any Loan Party (other than Indebtedness among Loan Parties) that (a) is subordinated in right of payment to the Obligations, (b) is secured by a Lien on the Collateral that is junior to the Liens securing the Obligations or (c) is unsecured, in each case, in an individual outstanding principal amount in excess of $7,500,000.

"**LCT Election**" has the meaning assigned to such term in Section 1.05.

"**LCT Test Date**" has the meaning assigned to such term in Section 1.05.

"**Lead Arranger**" means Argent Direct Lending Advisors, L.P., in its capacity as sole lead arranger and sole bookrunner.

"**Lenders**" means the Persons listed on Schedule 2.01 and any other Person that becomes a party hereto as a lender pursuant to an Assignment and Assumption or an Incremental Facility Amendment, other than any such Person that has ceased to be a party hereto pursuant to an Assignment and Assumption.

"**Lien**" means, with respect to any asset, (a) any mortgage, deed of trust, lien, pledge, hypothecation, charge, security interest or similar encumbrance in, on or of such asset, (b) the interest of a vendor or a lessor under any conditional sale agreement, capital lease or title retention agreement (or any financing lease having substantially the same economic effect as any of the foregoing) relating to such asset and (c) in the case of securities, any purchase option, call or similar right of a third party with respect to such securities, but excluding, in each case, any non-exclusive license of Intellectual Property granted in the ordinary course of business and operating leases.

"**Limited Condition Transaction**" has the meaning assigned to such term in Section 1.05.

"**Liquidity**" means, as of any date of determination, the sum of (a) the aggregate amount of unrestricted cash and Cash Equivalents of the Borrower and the Restricted Subsidiaries on such date that is held in deposit accounts or securities accounts subject to control agreements in favor of the Collateral Agent (other than Excluded Accounts) and (b) the aggregate unused Revolving Commitments on such date to the extent available to be drawn (after giving effect to the conditions set forth in Section 4.02).

"**Liquidity Trigger Period**" means any period (a) commencing on the last day of any calendar month on which the aggregate Revolving Exposure exceeds 35% of the aggregate Revolving Commitments and (b) ending on the last day of the first calendar month thereafter on which the aggregate Revolving Exposure is equal to or less than 35% of the aggregate Revolving Commitments.

"**Loan Documents**" means this Agreement, the Guarantee and Collateral Agreement, the other Collateral Documents, the Intercompany Note, each Incremental Facility Amendment, the Fee Letter and each promissory note delivered pursuant to Section 2.05(d).

"**Loan Parties**" means Holdings, the Borrower and the Subsidiary Guarantors.

"**Loans**" means the loans made by the Lenders to the Borrower pursuant to this Agreement, including the Initial Term Loans, the Delayed Draw Term Loans, any Incremental Term Loans and the Revolving Loans, and including, for the avoidance of doubt, any PIK Interest capitalized and added to the principal amount of the Term Loans pursuant to Section 2.06(d).

"**Make-Whole Amount**" means, with respect to any prepayment, repayment or acceleration of any Term Loan on or prior to the first anniversary of the Closing Date, an amount equal to the excess, if any, of (a) the present value as of the date of such event of (i) the Prepayment Premium that would be payable under clause (b) of the table in the definition of "Prepayment Premium" in respect of the principal amount of such Term Loan if such event had occurred on the day after the first anniversary of the Closing Date, *plus* (ii) all interest that would have accrued on such principal amount (assuming a rate of interest equal to Adjusted Term SOFR for a three-month Interest Period in effect on the third Business Day prior to such event *plus* the Applicable Margin then in effect for Term SOFR Loans) from the date of such event through the day after the first anniversary of the Closing Date, in each case computed using a discount rate equal to the Treasury Rate as of such date *plus* 50 basis points, over (b) the principal amount of such Term Loan.

"**Material Adverse Effect**" means a material adverse effect on (a) the business, assets, operations or financial condition of the Borrower and the Restricted Subsidiaries, taken as a whole, (b) the ability of the Loan Parties, taken as a whole, to perform their payment obligations under the Loan Documents or (c) the rights of or remedies available to the Administrative Agent, the Collateral Agent or the Lenders under the Loan Documents.

"**Material Domestic Subsidiary**" means each Domestic Subsidiary that is a Restricted Subsidiary and is not an Immaterial Subsidiary.

"**Material Indebtedness**" means Indebtedness (other than the Loans), or obligations in respect of one or more Swap Agreements, of any one or more of Holdings, the Borrower and the Restricted Subsidiaries in an aggregate principal amount exceeding $7,500,000. For purposes of determining Material Indebtedness, the "principal amount" of the obligations in respect of any Swap Agreement at any time shall be the Swap Termination Value thereof at such time.

"**Material Intellectual Property**" means any Intellectual Property owned by or licensed to the Borrower or any Restricted Subsidiary that is material to the business, operations or financial condition of the Borrower and the Restricted Subsidiaries, taken as a whole, including the trademarks, patents and proprietary process technology identified on Schedule 1.01(b).

"**Material Subsidiary**" means any Restricted Subsidiary that is not an Immaterial Subsidiary.

"**Maturity Date**" means June 10, 2032; *provided* that if such day is not a Business Day, the Maturity Date shall be the immediately preceding Business Day.

"**Merger Sub**" has the meaning assigned to such term in the recitals hereto.

"**Moody's**" means Moody's Investors Service, Inc. and any successor to its rating agency business.

"**Multiemployer Plan**" means a multiemployer plan as defined in Section 4001(a)(3) of ERISA to which the Borrower or any ERISA Affiliate contributes or has an obligation to contribute.

"**Net Proceeds**" means, with respect to any event, (a) the cash proceeds received in respect of such event, including any cash received in respect of any non-cash proceeds (including any cash payments received by way of deferred payment of principal pursuant to a note or installment receivable, but excluding any interest payments), but only as and when received, *minus* (b) the sum of (i) all reasonable fees and out-of-pocket expenses paid to third parties in connection with such event, (ii) in the case of a Disposition or Casualty Event of an asset, the amount of all payments required to be made as a result thereof to repay Indebtedness (other than the Loans) secured by such asset or otherwise subject to mandatory prepayment as a result of such event, (iii) the amount of all taxes paid (or reasonably estimated to be payable) in connection with such event and (iv) the amount of any reserves established in accordance with GAAP to fund contingent liabilities reasonably estimated to be payable in connection with such event (*provided* that any reduction in such reserve, other than by payments made and not deducted in computing Net Proceeds, shall constitute Net Proceeds when it occurs).

"**Obligations**" means all advances to, and debts, liabilities, obligations, covenants and duties of, any Loan Party arising under any Loan Document, whether direct or indirect (including those acquired by assumption), absolute or contingent, due or to become due, now existing or hereafter arising, including interest, fees, premiums (including the Prepayment Premium) and expenses that accrue after the commencement of any proceeding under any Debtor Relief Law, whether or not allowed or allowable as a claim in such proceeding.

"**OFAC**" means the Office of Foreign Assets Control of the U.S. Department of the Treasury.

"**Organizational Documents**" means (a) with respect to any corporation, the certificate or articles of incorporation and the bylaws, (b) with respect to any limited liability company, the certificate or articles of formation or organization and the operating or limited liability company agreement and (c) with respect to any partnership, the partnership agreement and any certificate of partnership.

“**Other Connection Taxes**” means, with respect to any Recipient, Taxes imposed as a result of a present or former connection between such Recipient and the jurisdiction imposing such Tax, other than connections arising solely from such Recipient having executed, delivered, become a party to, performed its obligations under, received payments under, engaged in any other transaction pursuant to or enforced any Loan Document, or sold or assigned an interest in any Loan or Loan Document.

“**Other Taxes**” means all present or future stamp, court or documentary, intangible, recording, filing or similar Taxes that arise from any payment made under, from the execution, delivery, performance, enforcement or registration of, from the receipt or perfection of a security interest under, or otherwise with respect to, any Loan Document, except any such Taxes that are Other Connection Taxes imposed with respect to an assignment.

“**Parent Entity**” means any direct or indirect parent of Holdings.

“**Participant**” has the meaning assigned to such term in Section 11.04(d).

“**PBGC**” means the Pension Benefit Guaranty Corporation.

“**Perfection Certificate**” means a certificate in form reasonably satisfactory to the Collateral Agent providing information with respect to the assets and organizational structure of the Loan Parties.

“**Permitted Acquisition**” means any acquisition by the Borrower or any Restricted Subsidiary, whether by purchase, merger, consolidation or otherwise, of (x) all or substantially all of the assets of, or any business line, unit or division of, any Person or (y) Equity Interests of any Person such that such Person becomes a Restricted Subsidiary; *provided* that (a) no Event of Default has occurred and is continuing or would result therefrom (or, in the case of a Limited Condition Transaction, no Event of Default under Section 9.01(a), (b), (h) or (i) has occurred and is continuing as of the date the definitive agreement therefor is entered into); (b) the Borrower would be in compliance with the Financial Covenants on a Pro Forma Basis as of the last day of the most recently ended Test Period, after giving effect to such acquisition and any Indebtedness incurred in connection therewith; (c) the business acquired is in the same line of business as the Borrower and the Restricted Subsidiaries or a business reasonably related, complementary, ancillary or incidental thereto; (d) any acquired Person and its subsidiaries shall be Restricted Subsidiaries unless designated as Unrestricted Subsidiaries in accordance with Section 7.13, and the Loan Parties shall comply with the Collateral and Guarantee Requirement with respect thereto within the time periods specified therein; and (e) the aggregate consideration (including assumed Indebtedness and deferred or contingent purchase price obligations) paid in respect of acquisitions of Persons that do not become Loan Parties or of assets that are not acquired by Loan Parties shall not exceed $20,000,000 over the term of this Agreement.

“**Permitted Holders**” means (a) the Sponsor, (b) any investment fund or vehicle managed, sponsored, advised or controlled by Halcyon Ridge Partners, L.P. or its Affiliates (excluding portfolio companies of any of the foregoing) and (c) the members of management of the Borrower and its subsidiaries who hold Equity Interests of Holdings or any Parent Entity on the Closing Date, in an aggregate amount under this clause (c) not to exceed 10% of the voting Equity Interests of Holdings.

“**Permitted Liens**” means the Liens permitted pursuant to Section 7.02.

“**Permitted Refinancing Indebtedness**” means, with respect to any Indebtedness being refinanced, refunded, renewed, replaced or extended (the “**Refinanced Indebtedness**”), any Indebtedness issued in exchange for, or the net proceeds of which are used to refinance, refund, renew, replace or extend such Refinanced Indebtedness; *provided* that (a) the principal amount of such refinancing Indebtedness does not exceed the principal amount of the Refinanced Indebtedness plus accrued and unpaid interest thereon and reasonable fees, premiums and expenses incurred in connection with such refinancing; (b) such refinancing Indebtedness has a final maturity date no earlier than, and a Weighted Average Life to Maturity no shorter than, the Refinanced Indebtedness; (c) if the Refinanced Indebtedness is subordinated in right of payment or lien priority to the Obligations, such refinancing Indebtedness is subordinated on terms, taken as a whole, no less favorable to the Lenders; (d) such refinancing Indebtedness is not incurred or guaranteed by any Person that is not an obligor in respect of the Refinanced Indebtedness; and (e) such refinancing Indebtedness is not secured by any assets that did not secure the Refinanced Indebtedness.

“**Person**” means any natural person, corporation, limited liability company, trust, joint venture, association, company, partnership, Governmental Authority or other entity.

“**PIK Election**” has the meaning assigned to such term in Section 2.06(d).

“**PIK Election Period**” has the meaning assigned to such term in Section 2.06(d).

“**PIK Interest**” has the meaning assigned to such term in Section 2.06(d).

“**Plan**” means any employee pension benefit plan (other than a Multiemployer Plan) subject to the provisions of Title IV of ERISA or Section 412 of the Code or Section 302 of ERISA, and in respect of which the Borrower or any ERISA Affiliate is (or, if such plan were terminated, would under Section 4069 of ERISA be deemed to be) an “employer” as defined in Section 3(5) of ERISA.

“**Platform**” means Debt Domain, IntraLinks, SyndTrak, DebtX or a substantially similar electronic transmission system.

“**Prepayment Premium**” means, with respect to any Premium Event occurring during any period set forth in the table below, the premium for such period set forth opposite such period:

Date of Prepayment or Repricing Event	**Prepayment Premium**
On or prior to the first anniversary of the Closing Date	Make-Whole Amount
After the first anniversary of the Closing Date and on or prior to the second anniversary of the Closing Date	2.00% of the principal amount prepaid
After the second anniversary of the Closing Date and on or prior to the third anniversary of the Closing Date	1.00% of the principal amount prepaid
After the third anniversary of the Closing Date	None

As used herein, “**Premium Event**” means (a) any voluntary prepayment of Term Loans pursuant to Section 2.08, (b) any mandatory prepayment of Term Loans pursuant to Section 2.09(b) (solely with respect to prepayments required as a result of the incurrence of Indebtedness not permitted hereunder) or Section 2.09(d), (c) any repricing or effective repricing of the Term Loans by way of amendment, conversion, exchange or mandatory assignment pursuant to Section 3.06 in connection therewith, and (d) any acceleration of the Term Loans pursuant to Section 9.02, including any automatic acceleration upon the occurrence of an Event of Default under Section 9.01(h) or (i) or any acceleration, payment, satisfaction, release or discharge of the Term Loans in or in connection with any proceeding under any Debtor Relief Law (including by way of any plan of reorganization, sale under Section 363 of the Bankruptcy Code or credit bid). The parties acknowledge and agree that any Prepayment Premium payable in connection with an acceleration or any proceeding under any Debtor Relief Law (i) constitutes reasonable liquidated damages for the loss of the Lenders’ bargain and not a penalty, (ii) is payable notwithstanding the pendency of any such proceeding and shall constitute part of the Obligations for all purposes, and (iii) has been separately negotiated by sophisticated parties represented by counsel, and each Loan Party waives, to the fullest extent permitted by law, any defense to the payment thereof, including any claim that such amount is unmatured interest.

“**Prime Rate**” means the rate of interest per annum published from time to time in *The Wall Street Journal* as the “U.S. prime rate” (or, if such rate ceases to be published, a comparable rate determined by the Administrative Agent in consultation with the Borrower).

“**Pro Forma Basis**” and “**Pro Forma Effect**” have the meanings assigned to such terms in Section 1.04(b).

“**Qualified Equity Interests**” means any Equity Interests that are not Disqualified Equity Interests.

“**Recipient**” means the Administrative Agent, the Collateral Agent or any Lender, as applicable.

“**Register**” has the meaning assigned to such term in Section 11.04(c).

“**Related Parties**” means, with respect to any specified Person, such Person’s Affiliates and the partners, directors, officers, employees, trustees, agents, administrators, managers, advisors and representatives of such Person and of such Person’s Affiliates.

“**Release**” means any release, spill, emission, leaking, dumping, injection, pouring, deposit, disposal, discharge, dispersal, leaching or migration into or through the environment.

"**Required Lenders**" means, at any time, Lenders having Loans and unused Commitments representing more than 50% of the sum of the total outstanding Loans and unused Commitments at such time; *provided* that (a) the Loans and unused Commitments of any Defaulting Lender shall be disregarded in determining Required Lenders at any time and (b) the Loans of any Affiliated Lender shall be disregarded in determining Required Lenders at any time, except that each Affiliated Lender shall be deemed to have voted its Loans in the same proportion as the Lenders that are not Affiliated Lenders voted theirs, solely to the extent expressly provided in Section 11.04(g).

"**Resolution Authority**" means an EEA Resolution Authority or, with respect to any UK Financial Institution, a UK Resolution Authority.

"**Responsible Officer**" means the chief executive officer, president, any executive vice president, any Financial Officer or the general counsel or secretary of a Loan Party, and, solely for purposes of notices given pursuant to Article II, any other officer or employee of the Borrower designated in writing to the Administrative Agent by an officer of the Borrower.

"**Restricted Payment**" means (a) any dividend or other distribution (whether in cash, securities or other property) with respect to any Equity Interests of Holdings, the Borrower or any Restricted Subsidiary, or any payment (whether in cash, securities or other property), including any sinking fund or similar deposit, on account of the purchase, redemption, retirement, defeasance, acquisition, cancellation or termination of any such Equity Interests, and (b) any payment made by Holdings, the Borrower or any Restricted Subsidiary to any Parent Entity or any direct or indirect equityholder thereof other than pursuant to clause (a).

"**Restricted Subsidiary**" means any Subsidiary of the Borrower other than an Unrestricted Subsidiary.

"**Revolving Commitment**" means, with respect to each Lender, the commitment of such Lender to make Revolving Loans pursuant to Section 2.01(c), in the amount set forth opposite such Lender's name on Schedule 2.01 or in the Assignment and Assumption pursuant to which such Lender assumed such commitment, as such commitment may be reduced or increased from time to time pursuant to this Agreement. The aggregate amount of the Revolving Commitments on the Closing Date is $35,000,000.

"**Revolving Exposure**" means, with respect to any Lender at any time, the outstanding principal amount of such Lender's Revolving Loans at such time.

"**Revolving Facility**" means the Revolving Commitments and the Revolving Loans made thereunder.

"**Revolving Loan**" means a Loan made pursuant to Section 2.01(c).

"**S&P**" means S&P Global Ratings, a division of S&P Global Inc., and any successor to its rating agency business.

"**Sanctioned Country**" means, at any time, a country, region or territory which is itself the subject or target of any comprehensive Sanctions.

"**Sanctioned Person**" means, at any time, (a) any Person listed in any Sanctions-related list of designated Persons maintained by OFAC, the U.S. Department of State, the United Nations Security Council, the European Union, any European Union member state or His Majesty's Treasury of the United Kingdom, (b) any Person operating, organized or resident in a Sanctioned Country, (c) any Governmental Authority of a Sanctioned Country or of Venezuela or (d) any Person 50% or more owned or, where relevant under applicable Sanctions, controlled by any such Person or Persons described in the foregoing clauses (a) through (c).

"**Sanctions**" means all economic or financial sanctions or trade embargoes imposed, administered or enforced from time to time by (a) the U.S. government, including those administered by OFAC or the U.S. Department of State, or (b) the United Nations Security Council, the European Union, any European Union member state or His Majesty's Treasury of the United Kingdom.

"**SEC**" means the United States Securities and Exchange Commission.

"**Secured Parties**" means the Administrative Agent, the Collateral Agent, the Lenders and each other holder of Obligations under the Loan Documents.

"**SOFR**" means a rate equal to the secured overnight financing rate as administered by the Term SOFR Administrator's underlying benchmark administrator, the Federal Reserve Bank of New York.

"**Solvent**" means, with respect to any Person on any date of determination, that on such date (a) the fair value of the assets of such Person and its subsidiaries, on a consolidated basis, exceeds their debts and liabilities, subordinated, contingent or otherwise, (b) the present fair saleable value of the property of such Person and its subsidiaries, on a consolidated basis, is greater than the amount that will be required to pay the probable liability of their debts and other liabilities, subordinated, contingent or otherwise, as such debts and other liabilities become absolute and matured, (c) such Person and its subsidiaries, on a consolidated basis, are able to pay their debts and liabilities, subordinated, contingent or otherwise, as such debts and liabilities become absolute and matured and (d) such Person and its subsidiaries, on a consolidated basis, do not have unreasonably small capital with which to conduct the business in which they are engaged as such business is now conducted and is proposed to be conducted following such date.

"**Specified Equity Contribution**" means any cash contribution to the common equity of the Borrower (or any other contribution in exchange for Qualified Equity Interests of the Borrower) made pursuant to, and in accordance with the requirements of, Section 8.04.

"**Specified Representations**" means the representations and warranties set forth in Sections 5.01 (solely with respect to the organizational existence of the Loan Parties), 5.02, 5.03(b)(i), 5.10, 5.15, 5.16, 5.17 and 5.18 (solely with respect to the creation, validity and perfection of the security interests in the Collateral of the type with respect to which a security interest may be perfected by the filing of a UCC financing statement or the delivery of certificated securities).

"**Sponsor**" means Halcyon Ridge Partners, L.P. and its Affiliates (other than portfolio companies).

"**Sponsor Management Agreement**" means the Management Services Agreement, dated as of the Closing Date, between the Borrower and Halcyon Ridge Advisors, LLC, as in effect on the Closing Date.

"**Subsidiary**" means, with respect to any Person (the "**parent**") at any date, any corporation, limited liability company, partnership, association or other entity the accounts of which would be consolidated with those of the parent in the parent's consolidated financial statements if such financial statements were prepared in accordance with GAAP as of such date, as well as any other corporation, limited liability company, partnership, association or other entity of which securities or other ownership interests representing more than 50% of the equity or more than 50% of the ordinary voting power are, as of such date, owned, controlled or held by the parent or one or more subsidiaries of the parent. Unless otherwise specified, "Subsidiary" means a Subsidiary of the Borrower.

"**Subsidiary Guarantor**" means each Subsidiary that is a party to the Guarantee and Collateral Agreement as a guarantor, until released therefrom in accordance with the terms of the Loan Documents.

"**Swap Agreement**" means any agreement with respect to any swap, forward, future or derivative transaction or option or similar agreement involving, or settled by reference to, one or more rates, currencies, commodities, equity or debt instruments or securities, or economic, financial or pricing indices or measures of economic, financial or pricing risk or value, or any similar transaction, but excluding (a) any Equity Interest or any phantom stock or similar plan providing for payments only on account of services provided by employees or directors and (b) any earn-out or purchase price adjustment in connection with an acquisition or Disposition.

"**Swap Termination Value**" means, in respect of any one or more Swap Agreements, after taking into account the effect of any legally enforceable netting agreement relating thereto, (a) for any date on or after the date such Swap Agreements have been closed out, the termination value(s) thereof and (b) for any date prior to such date, the mark-to-market value(s) thereof, as determined by the counterparties to such Swap Agreements.

"**Taxes**" means all present or future taxes, levies, imposts, duties, deductions, withholdings (including backup withholding), assessments, fees or other charges imposed by any Governmental Authority, including any interest, additions to tax or penalties applicable thereto.

"**Term Loans**" means the Initial Term Loans, the Delayed Draw Term Loans and any Incremental Term Loans.

"**Term SOFR**" means, for any Interest Period, the forward-looking term rate based on SOFR for a tenor comparable to such Interest Period, as published by the Term SOFR Administrator two U.S. Government Securities Business Days prior to the first day of such Interest Period; *provided* that if such rate has not been published as of 5:00 p.m. (New York City time) on such day, Term SOFR shall be such rate as published for the first preceding U.S. Government Securities Business Day, so long as such day is not more than three U.S. Government Securities Business Days prior to such date of determination.

"**Term SOFR Administrator**" means CME Group Benchmark Administration Limited, or any successor administrator of the forward-looking term SOFR reference rate selected by the Administrative Agent in its reasonable discretion.

"**Test Period**" means, as of any date, the period of four consecutive Fiscal Quarters most recently ended on or prior to such date for which financial statements have been (or were required to have been) delivered pursuant to Section 6.01(a) or (b).

"**Ticking Fee**" has the meaning assigned to such term in Section 2.07(b).

"**Total Net Leverage Ratio**" means, as of any date of determination, the ratio of (a) Consolidated Total Net Debt as of such date to (b) Consolidated EBITDA for the Test Period most recently ended on or prior to such date.

"**Transactions**" means, collectively, (a) the consummation of the Acquisition, (b) the funding of the Equity Contribution, (c) the execution and delivery of the Loan Documents and the funding of the Initial Term Loans on the Closing Date, (d) the repayment in full of all amounts outstanding, and the termination of all commitments, under the Existing Credit Agreement, dated as of August 4, 2021, among the Target, the lenders party thereto and Coastal Federal Bank, N.A., as agent, and the release of all liens and guarantees thereunder and (e) the payment of fees, costs and expenses in connection with the foregoing.

"**Treasury Rate**" means, as of any date, the yield to maturity at the time of computation of United States Treasury securities with a constant maturity (as compiled and published in the most recent Federal Reserve Statistical Release H.15 (or any successor publication)) most nearly equal to the period from such date to the first anniversary of the Closing Date; *provided* that if such period is less than one year, the weekly average yield on actually traded United States Treasury securities adjusted to a constant maturity of one year shall be used.

"**Type**" means, when used in reference to any Loan or Borrowing, whether the rate of interest on such Loan, or on the Loans comprising such Borrowing, is determined by reference to Adjusted Term SOFR or the Base Rate.

"**UCC**" means the Uniform Commercial Code as in effect from time to time in the State of New York or, when the laws of any other state govern the perfection or enforcement of any security interest, the Uniform Commercial Code as in effect in such state.

"**UK Financial Institution**" means any BRRD Undertaking (as such term is defined under the PRA Rulebook (as amended from time to time) promulgated by the United Kingdom Prudential Regulation Authority) or any Person falling within IFPRU 11.6 of the FCA Handbook (as amended from time to time) promulgated by the United Kingdom Financial Conduct Authority, which includes certain credit institutions and investment firms, and certain affiliates of such credit institutions or investment firms.

"**UK Resolution Authority**" means the Bank of England or any other public administrative authority having responsibility for the resolution of any UK Financial Institution.

"**Unrestricted Subsidiary**" means any Subsidiary of the Borrower designated as an Unrestricted Subsidiary pursuant to and in compliance with Section 7.13, until such Subsidiary is redesignated as a Restricted Subsidiary in accordance therewith.

"**U.S. Government Securities Business Day**" means any day except for (a) a Saturday or Sunday or (b) a day on which the Securities Industry and Financial Markets Association recommends that the fixed income departments of its members be closed for the entire day for purposes of trading in United States government securities.

"**U.S. Person**" means any Person that is a "United States person" as defined in Section 7701(a)(30) of the Code.

"**USA PATRIOT Act**" means the Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism Act of 2001 (Title III of Pub. L. 107-56).

"**Weighted Average Life to Maturity**" means, when applied to any Indebtedness at any date, the number of years obtained by dividing (a) the sum of the products obtained by multiplying (i) the amount of each then remaining installment or other required scheduled payment of principal, by (ii) the number of years (calculated to the nearest one-twelfth) that will elapse between such date and the making of such payment, by (b) the then outstanding principal amount of such Indebtedness.

"**Wholly Owned Subsidiary**" means, with respect to any Person, a Subsidiary of such Person, 100% of the Equity Interests of which (other than directors' qualifying shares and other nominal amounts of Equity Interests required to be held by other Persons under applicable law) are owned by such Person or another Wholly Owned Subsidiary of such Person.

"**Withdrawal Liability**" means liability to a Multiemployer Plan as a result of a complete or partial withdrawal from such Multiemployer Plan, as such terms are defined in Part I of Subtitle E of Title IV of ERISA.

"**Working Capital**" means, at any date, the excess of current assets (other than cash and Cash Equivalents) of the Borrower and the Restricted Subsidiaries on such date over current liabilities (other than the current portion of long-term Indebtedness and accrued interest thereon) of the Borrower and the Restricted Subsidiaries on such date, determined on a consolidated basis in accordance with GAAP.

"**Write-Down and Conversion Powers**" means (a) with respect to any EEA Resolution Authority, the write-down and conversion powers of such EEA Resolution Authority from time to time under the Bail-In Legislation for the applicable EEA Member Country, and (b) with respect to the United Kingdom, any powers of the applicable Resolution Authority under the Bail-In Legislation to cancel, reduce, modify or change the form of a liability of any UK Financial Institution or any contract or instrument under which that liability arises, to convert all or part of that liability into shares, securities or obligations of that Person or any other Person, to provide that any such contract or instrument is to have effect as if a right had been exercised under it or to suspend any obligation in respect of that liability.

Section 1.02. Classification of Loans and Borrowings.

For purposes of this Agreement, Loans and Borrowings may be classified and referred to by Class (e.g., an "Initial Term Loan"), by Type (e.g., a "Term SOFR Loan") or by Class and Type (e.g., a "Term SOFR Revolving Loan").

Section 1.03. Terms Generally.

The definitions of terms herein shall apply equally to the singular and plural forms of the terms defined. Whenever the context may require, any pronoun shall include the corresponding masculine, feminine and neuter forms. The words "include," "includes" and "including" shall be deemed to be followed by the phrase "without limitation." The word "will" shall be construed to have the same meaning and effect as the word "shall." The word "or" is not exclusive. Unless the context requires otherwise, (a) any definition of or reference to any agreement, instrument or other document herein shall be construed as referring to such agreement, instrument or other document as from time to time amended, restated, amended and restated, supplemented or otherwise modified (subject to any restrictions on such amendments, restatements, supplements or modifications set forth herein), (b) any reference herein to any Person shall be construed to include such Person's successors and permitted assigns, (c) the words "herein," "hereof" and "hereunder," and words of similar import, shall be construed to refer to this Agreement in its entirety and not to any particular provision hereof, (d) all references herein to Articles, Sections, Exhibits and Schedules shall be construed to refer to Articles and Sections of, and Exhibits and Schedules to, this Agreement, (e) any reference to any law shall include all statutory and regulatory provisions consolidating, amending, replacing or interpreting such law, and any reference to any law or regulation shall, unless otherwise specified, refer to such law or regulation as amended, modified or supplemented from time to time, and (f) the words "asset" and "property" shall be construed to have the same meaning and effect and to refer to any and all tangible and intangible assets and properties, including cash, securities, accounts and contract rights.

Section 1.04. Accounting Terms; GAAP; Pro Forma Calculations.

(a) Except as otherwise expressly provided herein, all terms of an accounting or financial nature shall be construed in accordance with GAAP, as in effect from time to time; *provided* that if the Borrower notifies the Administrative Agent that the Borrower requests an amendment to any provision hereof to eliminate the effect of any change occurring after the Closing Date in GAAP or in the application thereof on the operation of such provision (or if the Administrative Agent notifies the Borrower that the Required Lenders request such an amendment), regardless of whether any such notice is given before or after such change in GAAP or in the application thereof, then such provision shall be interpreted on the basis of GAAP as in effect and applied immediately before such change shall have become effective until such notice shall have been withdrawn or such provision amended in accordance herewith. Notwithstanding the foregoing, all obligations of any Person that are or would have been treated as operating leases for purposes of GAAP prior to the adoption of ASC 842 shall continue to be accounted for as operating leases for purposes of all financial definitions and calculations hereunder.

(b) For purposes of calculating the Total Net Leverage Ratio and the Fixed Charge Coverage Ratio, and for purposes of determining compliance with any provision of this Agreement that requires calculation of any ratio or any basket measured by reference to Consolidated EBITDA or Consolidated Total Assets, in each case as of any date or for any Test Period during which any Specified Transaction occurs, such calculation shall be made on a "**Pro Forma Basis**" and given "**Pro Forma Effect**," such that (i) any acquisition, Investment, Disposition, designation of a Restricted Subsidiary as an Unrestricted Subsidiary or of an Unrestricted Subsidiary as a Restricted Subsidiary, incurrence, repayment or redemption of Indebtedness, or Restricted Payment (each, a "**Specified Transaction**") that has occurred during such Test Period (or, in the case of any determination made under Articles VI or VII, thereafter and on or prior to the date of determination) shall be deemed to have occurred on the first day of such Test Period, (ii) income statement items (whether positive or negative) attributable to any property or Person disposed of in such Specified Transaction shall be excluded, (iii) income statement items attributable to any property or Person acquired in such Specified Transaction shall be included (subject, in the case of Consolidated EBITDA, to the adjustments permitted by clause (a)(viii) of the definition thereof) and shall be based on the historical financial statements of such acquired property or Person, and (iv) any Indebtedness incurred or repaid in connection with such Specified Transaction shall be deemed to have been incurred or repaid on the first day of such Test Period, with any such Indebtedness bearing interest at a floating rate being deemed to bear interest at the rate in effect on the date of determination. Pro forma calculations made pursuant to this Section 1.04(b) shall be determined in good faith by a Financial Officer of the Borrower and may include adjustments of the type described in clause (a)(viii) of the definition of "Consolidated EBITDA," subject to the limitations set forth therein.

(c) Notwithstanding anything to the contrary herein, for purposes of determining compliance with Section 8.01 as of any date, the Cure Amount of any Specified Equity Contribution made in accordance with Section 8.04 shall be included in Consolidated EBITDA as provided in Section 8.04.

Section 1.05. Limited Condition Transactions.

In connection with any Permitted Acquisition or other Investment permitted hereunder, in each case whose consummation is not conditioned on the availability of, or on obtaining, third-party financing (a "**Limited Condition Transaction**"), at the election of the Borrower (an "**LCT Election**"), the date of determination of (a) whether any Default or Event of Default has occurred and is continuing, (b) compliance with any ratio or basket availability (including the Financial Covenants on a Pro Forma Basis) and (c) the accuracy of representations and warranties, in each case solely for purposes of determining whether such Limited Condition Transaction and any related incurrence of Indebtedness or Liens is permitted hereunder, shall be deemed to be the date the definitive agreements for such Limited Condition Transaction are entered into (the "**LCT Test Date**"), and if, after giving Pro Forma Effect to the Limited Condition Transaction and the other transactions to be entered into in connection therewith, the Borrower would have been permitted to take such actions on the relevant LCT Test Date in compliance with such ratio, basket or condition, such ratio, basket or condition shall be deemed to have been complied with; *provided* that (x) if any ratio or basket would have been exceeded or breached as a result of fluctuations in such ratio or basket (including due to fluctuations in Consolidated EBITDA) at or prior to the consummation of the relevant Limited Condition Transaction, such ratio or basket will not be deemed to have been exceeded or breached as a result of such fluctuations solely with respect to such Limited Condition Transaction, and (y) no Event of Default under Section 9.01(a), (b), (h) or (i) shall have occurred and be continuing on the date of consummation of such Limited Condition Transaction.

Section 1.06. Divisions.

For all purposes under the Loan Documents, in connection with any division or plan of division under Delaware law (or any comparable event under a different jurisdiction's laws): (a) if any asset, right, obligation or liability of any Person becomes the asset, right, obligation or liability of a different Person, then it shall be deemed to have been transferred from the original Person to the subsequent Person, and (b) if any new Person comes into existence, such new Person shall be deemed to have been organized and acquired on the first date of its existence by the holders of its Equity Interests at such time.

Section 1.07. Interest Rates; Benchmark Notification.

The interest rate on a Loan may be derived from an interest rate benchmark that may be discontinued or is, or may in the future become, the subject of regulatory reform. Upon the occurrence of a Benchmark Transition Event, Section 2.10 provides a mechanism for determining an alternative rate of interest. The Administrative Agent does not warrant or accept any responsibility for, and shall not have any liability with respect to, the administration, submission, performance or any other matter related to any interest rate used in this Agreement, or with respect to any alternative or successor rate thereto, or replacement rate thereof.

Section 1.08. Times of Day.

Unless otherwise specified, all references herein to times of day shall be references to Eastern time (daylight or standard, as applicable).

ARTICLE II
THE CREDITS

Section 2.01. Commitments.

Subject to the terms and conditions set forth herein:

(a) Initial Term Loans. Each Lender severally agrees to make Initial Term Loans to the Borrower in Dollars on the Closing Date in a single drawing in an aggregate principal amount not to exceed such Lender's Initial Term Loan Commitment. Amounts borrowed under this Section 2.01(a) and repaid or prepaid may not be reborrowed. The Initial Term Loan Commitments shall terminate in their entirety upon the funding of the Initial Term Loans on the Closing Date.

(b) Delayed Draw Term Loans. Each Lender severally agrees to make Delayed Draw Term Loans to the Borrower in Dollars, at any time and from time to time during the period commencing on the Closing Date and ending on the Delayed Draw Commitment Termination Date, in an aggregate principal amount not to exceed such Lender's Delayed Draw Commitment; *provided* that (i) the Borrower may make no more than four (4) borrowings of Delayed Draw Term Loans, (ii) each Borrowing of Delayed Draw Term Loans shall be in an aggregate principal amount of not less than $10,000,000 and integral multiples of $1,000,000 in excess thereof (or, if less, the aggregate amount of the remaining unused Delayed Draw Commitments) and (iii) the proceeds of the Delayed Draw Term Loans shall be used solely to finance Permitted Acquisitions and Capital Expenditures and to pay fees, costs and expenses related thereto. Amounts borrowed under this Section 2.01(b) and repaid or prepaid may not be reborrowed. The Delayed Draw Commitment of each Lender shall be permanently reduced upon each Borrowing of Delayed Draw Term Loans by the principal amount of the Delayed Draw Term Loans made by such Lender in such Borrowing, and any Delayed Draw Commitments remaining unused on the Delayed Draw Commitment Termination Date shall automatically terminate at 5:00 p.m. on such date.

(c) Revolving Loans. Each Lender severally agrees to make Revolving Loans to the Borrower in Dollars, at any time and from time to time during the period commencing on the Closing Date and ending on the Maturity Date, in an aggregate principal amount that will not result in (i) such Lender's Revolving Exposure exceeding such Lender's Revolving Commitment or (ii) the aggregate Revolving Exposure of all Lenders exceeding the aggregate Revolving Commitments. Within the foregoing limits and subject to the terms and conditions set forth herein, the Borrower may borrow, prepay and reborrow Revolving Loans.

Section 2.02. Loans and Borrowings.

(a) Each Loan shall be made as part of a Borrowing consisting of Loans of the same Class and Type made by the Lenders ratably in accordance with their respective Commitments of the applicable Class (or, in the case of Term Loans outstanding after the Closing Date, their respective Applicable Percentages of the applicable Class). The failure of any Lender to make any Loan required to be made by it shall not relieve any other Lender of its obligations hereunder; *provided* that the Commitments of the Lenders are several and no Lender shall be responsible for any other Lender's failure to make Loans as required.

(b) Subject to Section 2.10, each Borrowing shall be comprised entirely of Term SOFR Loans or Base Rate Loans as the Borrower may request in accordance herewith. Each Lender at its option may make any Loan by causing any domestic or foreign branch or Affiliate of such Lender to make such Loan; *provided* that any exercise of such option shall not affect the obligation of the Borrower to repay such Loan in accordance with the terms of this Agreement and such Lender shall not be entitled to any amounts payable under Section 3.01 or 3.02 solely in respect of increased costs resulting from such exercise and existing at the time of such exercise.

(c) At the commencement of each Interest Period for any Term SOFR Borrowing, such Borrowing shall be in an aggregate amount that is an integral multiple of $250,000 and not less than $1,000,000. At the time that each Base Rate Borrowing is made, such Borrowing shall be in an aggregate amount that is an integral multiple of $100,000 and not less than $500,000; *provided* that a Base Rate Revolving Borrowing may be in an aggregate amount that is equal to the entire unused balance of the aggregate Revolving Commitments. Borrowings of more than one Type and Class may be outstanding at the same time; *provided* that there shall not at any time be more than a total of eight (8) Term SOFR Borrowings outstanding.

(d) Notwithstanding any other provision of this Agreement, the Borrower shall not be entitled to request, or to elect to convert or continue, any Borrowing if the Interest Period requested with respect thereto would end after the Maturity Date.

Section 2.03. <u>Requests for Borrowings.</u>

To request a Borrowing, the Borrower shall notify the Administrative Agent of such request by delivering a written Borrowing Request, signed by a Responsible Officer of the Borrower, (a) in the case of a Term SOFR Borrowing, not later than 12:00 noon three (3) U.S. Government Securities Business Days before the date of the proposed Borrowing or (b) in the case of a Base Rate Borrowing, not later than 12:00 noon one (1) Business Day before the date of the proposed Borrowing. Each such Borrowing Request shall be irrevocable and shall specify the following information in compliance with Section 2.02: (i) the Class of such Borrowing; (ii) the aggregate amount of the requested Borrowing; (iii) the date of such Borrowing, which shall be a Business Day; (iv) whether such Borrowing is to be a Term SOFR Borrowing or a Base Rate Borrowing; (v) in the case of a Term SOFR Borrowing, the initial Interest Period to be applicable thereto, which shall be a period contemplated by the definition of the term "Interest Period"; (vi) the location and number of the Borrower's account to which funds are to be disbursed; and (vii) in the case of a Borrowing of Delayed Draw Term Loans, the intended use of proceeds thereof in reasonable detail, together with a certification by a Financial Officer that the conditions set forth in Section 4.03 have been satisfied (including reasonably detailed calculations demonstrating pro forma compliance with the Financial Covenants). If no election as to the Type of Borrowing is specified, then the requested Borrowing shall be a Base Rate Borrowing. If no Interest Period is specified with respect to any requested Term SOFR Borrowing, then the Borrower shall be deemed to have selected an Interest Period of one month's duration. Promptly following receipt of a Borrowing Request in accordance with this Section, the Administrative Agent shall advise each Lender of the applicable Class of the details thereof and of the amount of such Lender's Loan to be made as part of the requested Borrowing.

Section 2.04. <u>Funding of Borrowings.</u>

(a) Each Lender shall make each Loan to be made by it hereunder on the proposed date thereof by wire transfer of immediately available funds by 1:00 p.m. to the account of the Administrative Agent most recently designated by it for such purpose by notice to the Lenders. The Administrative Agent will make such Loans available to the Borrower by promptly crediting the amounts so received, in like funds, to the account of the Borrower specified in the applicable Borrowing Request.

(b) Unless the Administrative Agent shall have received notice from a Lender prior to the proposed date of any Borrowing that such Lender will not make available to the Administrative Agent such Lender's share of such Borrowing, the Administrative Agent may assume that such Lender has made such share available on such date in accordance with paragraph (a) of this Section and may, in reliance upon such assumption, make available to the Borrower a corresponding amount. In such event, if a Lender has not in fact made its share of the applicable Borrowing available to the Administrative Agent, then the applicable Lender and the Borrower severally agree to pay to the Administrative Agent forthwith on demand such corresponding amount with interest thereon, for each day from and including the date such amount is made available to the Borrower to but excluding the date of payment to the Administrative Agent, at (i) in the case of such Lender, the greater of the NYFRB Rate and a rate determined by the Administrative Agent in accordance with banking industry rules on interbank compensation (which, for purposes of this Section, shall be deemed to be the federal funds effective rate as published by the Federal Reserve Bank of New York) or (ii) in the case of the Borrower, the interest rate applicable to Base Rate Loans of the applicable Class.

If such Lender pays such amount to the Administrative Agent, then such amount shall constitute such Lender's Loan included in such Borrowing.

Section 2.05. Repayment of Loans; Amortization; Evidence of Debt.

(a) The Borrower hereby unconditionally promises to pay (i) to the Administrative Agent for the account of the applicable Lenders the then unpaid principal amount of the Term Loans of each Class on the Maturity Date and (ii) to the Administrative Agent for the account of the applicable Lenders the then unpaid principal amount of the Revolving Loans on the Maturity Date.

(b) The Borrower shall repay Initial Term Loans on the last Business Day of each March, June, September and December (commencing on September 30, 2026) in an aggregate principal amount equal to 0.25% of the aggregate principal amount of the Initial Term Loans funded on the Closing Date (as such amount may be adjusted pursuant to Section 2.09(e) and increased by any PIK Interest capitalized pursuant to Section 2.06(d), with each scheduled installment being recalculated to equal 0.25% of the principal amount of Initial Term Loans outstanding immediately after the most recent capitalization of PIK Interest). The Borrower shall repay each Borrowing of Delayed Draw Term Loans on the last Business Day of each March, June, September and December (commencing with the first such date to occur after the funding thereof) in an aggregate principal amount equal to 0.25% of the original principal amount of such Borrowing (as adjusted as aforesaid). To the extent not previously paid, all Term Loans shall be due and payable on the Maturity Date, together with all accrued and unpaid interest thereon and, if applicable, the Prepayment Premium payable in connection therewith.

(c) Each Lender shall maintain in accordance with its usual practice an account or accounts evidencing the indebtedness of the Borrower to such Lender resulting from each Loan made by such Lender, including the amounts of principal and interest payable and paid to such Lender from time to time hereunder. The Administrative Agent shall maintain accounts in which it shall record (i) the amount of each Loan made hereunder, the Class and Type thereof and the Interest Period applicable thereto, (ii) the amount of any principal or interest due and payable or to become due and payable from the Borrower to each Lender hereunder, (iii) the amount of any PIK Interest capitalized and added to the principal amount of the Term Loans pursuant to Section 2.06(d) and (iv) the amount of any sum received by the Administrative Agent hereunder for the account of the Lenders and each Lender's share thereof. The entries made in the accounts maintained pursuant to this paragraph shall be *prima facie* evidence of the existence and amounts of the obligations recorded therein; *provided* that the failure of any Lender or the Administrative Agent to maintain such accounts or any error therein shall not in any manner affect the obligation of the Borrower to repay the Loans in accordance with the terms of this Agreement. In the event of any conflict between the accounts maintained by the Administrative Agent and the accounts of any Lender, the accounts of the Administrative Agent shall control absent manifest error.

(d) Any Lender may request that Loans made by it be evidenced by a promissory note. In such event, the Borrower shall prepare, execute and deliver to such Lender a promissory note payable to such Lender (or, if requested by such Lender, to such Lender and its registered assigns) substantially in the form of Exhibit D. Thereafter, the Loans evidenced by such promissory note and interest thereon shall at all times (including after assignment pursuant to Section 11.04) be represented by one or more promissory notes in such form payable to the payee named therein (or, if such promissory note is a registered note, to such payee and its registered assigns).

Section 2.06. Interest.

(a) The Loans comprising each Term SOFR Borrowing shall bear interest at Adjusted Term SOFR for the Interest Period in effect for such Borrowing *plus* the Applicable Margin.

(b) The Loans comprising each Base Rate Borrowing shall bear interest at the Base Rate *plus* the Applicable Margin.

(c) Notwithstanding the foregoing, (i) automatically upon the occurrence and during the continuance of an Event of Default under Section 9.01(a), (b), (h) or (i), and (ii) upon the occurrence and during the continuance of any other Event of Default, at the election of the Required Lenders (by written notice from the Administrative Agent to the Borrower), all outstanding Obligations shall bear interest, after as well as before judgment, at a rate per annum equal to (x) in the case of principal of any Loan, 2.00% *plus* the rate otherwise applicable to such Loan as provided in the preceding paragraphs of this Section and (y) in the case of any other amount, 2.00% *plus* the rate applicable to Base Rate Revolving Loans as provided in paragraph (b) of this Section, in each case payable in cash on demand.

(d) PIK Election. Notwithstanding anything to the contrary herein, the Borrower may, by irrevocable written notice to the Administrative Agent not later than five (5) Business Days prior to the first day of any Fiscal Quarter (each such election, a "**PIK Election**"), elect to pay up to 50% of the interest accruing on the Term Loans during such Fiscal Quarter and up to the three (3) immediately succeeding Fiscal Quarters specified in such notice (the period covered by any PIK Election, a "**PIK Election Period**") in kind, by capitalizing such interest and adding it to the outstanding principal amount of the Term Loans (interest so paid in kind, "**PIK Interest**"); *provided* that (i) no PIK Election may be made, and any PIK Election Period then in effect shall automatically terminate, at any time when an Event of Default has occurred and is continuing, (ii) no PIK Election Period shall extend beyond the third anniversary of the Closing Date, (iii) the Borrower shall not be entitled to elect PIK Interest for more than eight (8) Fiscal Quarters in the aggregate during the term of this Agreement, (iv) during any PIK Election Period, the Applicable Margin otherwise in effect with respect to the Term Loans shall be increased by 0.75% per annum, which increase shall apply to the entire amount of interest accruing on the Term Loans during such PIK Election Period (whether paid in cash or in kind), and (v) interest on the Revolving Loans shall in all cases be payable solely in cash. PIK Interest shall be capitalized and added to the outstanding principal amount of the Term Loans on each Interest Payment Date occurring during the applicable PIK Election Period, shall thereafter bear interest as provided in this Section 2.06 and shall constitute Term Loans (held ratably by the Lenders holding the Term Loans on which such PIK Interest accrued) for all purposes of this Agreement and the other Loan Documents, including for purposes of computing amortization pursuant to Section 2.05(b), the Prepayment Premium and voting. The portion of accrued interest not paid in kind during any PIK Election Period shall be payable in cash as otherwise provided in this Section.

(e) Accrued interest on each Loan shall be payable in arrears on each Interest Payment Date for such Loan and, in the case of Revolving Loans, upon termination of the Revolving Commitments; *provided* that (i) interest accrued pursuant to paragraph (c) of this Section shall be payable on demand, (ii) in the event of any repayment or prepayment of any Loan (other than a prepayment of a Base Rate Revolving Loan prior to the termination of the Revolving Commitments), accrued interest on the principal amount repaid or prepaid shall be payable on the date of such repayment or prepayment and (iii) in the event of any conversion of any Term SOFR Loan prior to the end of the current Interest Period therefor, accrued interest on such Loan shall be payable on the effective date of such conversion. As used herein, "**Interest Payment Date**" means (x) with respect to any Base Rate Loan, the last Business Day of each March, June, September and December and the Maturity Date and (y) with respect to any Term SOFR Loan, the last day of each Interest Period applicable thereto and, in the case of an Interest Period of more than three months' duration, each day prior to the last day of such Interest Period that occurs at intervals of three months' duration after the first day of such Interest Period, and the Maturity Date.

(f) All interest hereunder shall be computed on the basis of a year of 360 days, except that interest computed by reference to the Base Rate at times when the Base Rate is based on the Prime Rate shall be computed on the basis of a year of 365 days (or 366 days in a leap year), and in each case shall be payable for the actual number of days elapsed (including the first day but excluding the last day). The applicable Adjusted Term SOFR or Base Rate shall be determined by the Administrative Agent, and such determination shall be conclusive absent manifest error.

Section 2.07. Fees.

(a) The Borrower agrees to pay to the Administrative Agent for the account of each Lender (other than any Defaulting Lender) a commitment fee, which shall accrue at the rate of 0.50% per annum on the average daily unused amount of the Revolving Commitment of such Lender during the period from and including the Closing Date to but excluding the date on which the Revolving Commitments terminate. Accrued commitment fees shall be payable in arrears on the last Business Day of each March, June, September and December and on the date on which the Revolving Commitments terminate, commencing on the first such date to occur after the Closing Date.

(b) The Borrower agrees to pay to the Administrative Agent for the account of each Lender (other than any Defaulting Lender) a ticking fee (the "**Ticking Fee**"), which shall accrue on the average daily unused amount of the Delayed Draw Commitment of such Lender during the period from and including the Closing Date to but excluding the Delayed Draw Commitment Termination Date, at the per annum rates set forth in the table below:

Period (from the Closing Date)	Delayed Draw Ticking Fee Rate
Days 1 through 45	0.00% per annum

Days 46 through 90	50% of the Applicable Margin for Term SOFR Loans
Day 91 and thereafter until the Delayed Draw Commitment Termination Date	100% of the Applicable Margin for Term SOFR Loans

Accrued Ticking Fees shall be payable in arrears on the last Business Day of each March, June, September and December and on the Delayed Draw Commitment Termination Date, commencing on the first such date to occur after the Closing Date.

(c) The Borrower agrees to pay to the Administrative Agent, for its own account, the agency fees set forth in the Fee Letter, at the times and in the amounts specified therein.

(d) All fees payable hereunder shall be paid on the dates due, in immediately available funds, to the Administrative Agent for distribution, in the case of commitment fees and Ticking Fees, to the applicable Lenders. Fees paid shall not be refundable under any circumstances.

Section 2.08. Voluntary Prepayments; Commitment Reductions.

(a) The Borrower shall have the right at any time and from time to time to prepay any Borrowing in whole or in part, without premium or penalty (except as provided in paragraph (c) of this Section and except for amounts payable pursuant to Section 3.03), subject to prior notice in accordance with paragraph (b) of this Section. Each voluntary prepayment of a Term Loan Borrowing shall be applied to the remaining scheduled amortization installments of the applicable Class as directed by the Borrower (or, absent such direction, in direct order of maturity) and shall be applied ratably to the Loans included in the prepaid Borrowing.

(b) The Borrower shall notify the Administrative Agent in writing of any prepayment hereunder (i) in the case of prepayment of a Term SOFR Borrowing, not later than 12:00 noon three (3) U.S. Government Securities Business Days before the date of prepayment or (ii) in the case of prepayment of a Base Rate Borrowing, not later than 12:00 noon one (1) Business Day before the date of prepayment. Each such notice shall be irrevocable and shall specify the prepayment date, the Class of Loans to be prepaid and the principal amount of each Borrowing or portion thereof to be prepaid; *provided* that a notice of prepayment may state that such notice is conditioned upon the effectiveness of other credit facilities, the receipt of the proceeds of an issuance of Equity Interests or the occurrence of another specified event, in which case such notice may be revoked by the Borrower (by notice to the Administrative Agent on or prior to the specified effective date) if such condition is not satisfied. Each partial prepayment of any Borrowing shall be in an amount that would be permitted in the case of an advance of a Borrowing of the same Type as provided in Section 2.02. Each prepayment of a Borrowing shall be accompanied by accrued interest to the extent required by Section 2.06.

(c) Each voluntary prepayment of Term Loans pursuant to this Section 2.08 shall be accompanied by the Prepayment Premium, if any, applicable thereto pursuant to the definition of the term "Prepayment Premium," which Prepayment Premium shall be due and payable on the date of such prepayment.

(d) The Borrower may at any time terminate, or from time to time permanently reduce, the Revolving Commitments or the Delayed Draw Commitments; *provided* that (i) each reduction of the Commitments of either such Class shall be in an amount that is an integral multiple of $500,000 and not less than $1,000,000 (or, if less, the entire remaining amount thereof) and (ii) the Borrower shall not terminate or reduce the Revolving Commitments if, after giving effect to any concurrent prepayment of the Revolving Loans, the aggregate Revolving Exposure would exceed the aggregate Revolving Commitments. The Borrower shall notify the Administrative Agent of any election to terminate or reduce the Commitments under this paragraph at least three (3) Business Days prior to the effective date of such termination or reduction, specifying such election and the effective date thereof. Each notice delivered by the Borrower pursuant to this paragraph shall be irrevocable (subject to conditionality consistent with paragraph (b) above). Any termination or reduction of the Commitments shall be permanent. Each reduction of the Commitments of any Class shall be made ratably among the Lenders in accordance with their respective Commitments of such Class.

Section 2.09. Mandatory Prepayments.

(a) Asset Sales; Casualty Events. Within five (5) Business Days after the receipt by the Borrower or any Restricted Subsidiary of any Net Proceeds in respect of any Disposition pursuant to Section 7.04(g) or any Casualty Event, in each case to the extent the aggregate Net Proceeds in respect of any single Disposition or Casualty Event (or series of related Dispositions or Casualty Events) exceed $2,500,000 or the aggregate Net Proceeds in respect of all such Dispositions and Casualty Events in any Fiscal Year exceed $5,000,000, the Borrower shall prepay Term Loan Borrowings in an aggregate amount equal to 100% of such Net Proceeds (including, for the avoidance of doubt, the portion thereof below such thresholds once exceeded); *provided* that, so long as no Event of Default has occurred and is continuing, the Borrower may elect (by written notice to the Administrative Agent within such five (5) Business Day period) to reinvest all or any portion of such Net Proceeds in assets useful in the business of the Borrower and the Restricted Subsidiaries within twelve (12) months after receipt thereof (or, if the Borrower or a Restricted Subsidiary has committed to so reinvest such Net Proceeds within such twelve (12) month period pursuant to a binding agreement, within one hundred eighty (180) days after the expiration of such period), and no prepayment shall be required under this paragraph in respect of Net Proceeds so reinvested unless and until such period expires without such reinvestment having been consummated, at which time a prepayment in the amount of such unreinvested Net Proceeds shall be immediately due and payable.

(b) Indebtedness. Within one (1) Business Day after the receipt by the Borrower or any Restricted Subsidiary of any Net Proceeds of any issuance or incurrence of Indebtedness (other than Indebtedness permitted to be incurred under Section 7.01, except to the extent constituting a Permitted Refinancing of the Term Loans), the Borrower shall prepay Term Loan Borrowings in an aggregate amount equal to 100% of such Net Proceeds.

(c) Excess Cash Flow. Within five (5) Business Days after the date on which financial statements are delivered pursuant to Section 6.01(a) (commencing with the Fiscal Year ending December 31, 2027), the Borrower shall prepay Term Loan Borrowings in an aggregate amount equal to (i) the ECF Percentage of Excess Cash Flow for the Fiscal Year covered by such financial statements, *minus* (ii) the aggregate amount of voluntary prepayments of Term Loans made pursuant to Section 2.08 during such Fiscal Year or after the end of such Fiscal Year and prior to the date of such required prepayment (and not previously deducted pursuant to this clause (ii)), and the aggregate amount of voluntary prepayments of Revolving Loans during such period to the extent accompanied by a corresponding permanent reduction of the Revolving Commitments, in each case other than to the extent any such prepayment is funded with the proceeds of long-term Indebtedness; *provided* that no prepayment shall be required under this paragraph (c) for any Fiscal Year unless the amount thereof (calculated as aforesaid) exceeds $2,500,000, in which case the full amount so calculated shall be due.

(d) Change of Control. Upon the occurrence of a Change of Control, the Borrower shall, on the date of such occurrence, prepay in full the outstanding principal amount of all Term Loans, together with accrued and unpaid interest thereon and the Prepayment Premium applicable thereto, and shall repay in full all other Obligations then outstanding, and the Commitments shall terminate.

(e) Application; Premium. Each prepayment of Term Loan Borrowings pursuant to this Section 2.09 shall be applied ratably between the Initial Term Loans and the Delayed Draw Term Loans (and any Incremental Term Loans, except as otherwise provided in the applicable Incremental Facility Amendment) and shall be applied against the remaining scheduled amortization installments of the applicable Class in direct order of maturity for the next four (4) scheduled installments and thereafter ratably against the remaining installments (including the payment due on the Maturity Date). Each prepayment pursuant to this Section 2.09 in respect of any Premium Event shall be accompanied by the Prepayment Premium applicable thereto, and each prepayment pursuant to this Section 2.09 shall be accompanied by accrued interest on the principal amount prepaid and any amounts payable pursuant to Section 3.03. The Borrower shall notify the Administrative Agent in writing of any prepayment required under this Section 2.09 not later than 12:00 noon three (3) Business Days prior to the date of such prepayment, and the Administrative Agent will promptly advise each applicable Lender of the contents thereof. Any Lender may elect, by written notice to the Administrative Agent at or prior to 12:00 noon one (1) Business Day prior to the applicable prepayment date, to decline all (but not less than all) of its share of any prepayment pursuant to paragraph (a) or (c) of this Section (any such Lender, a "**Declining Lender**"), in which case the amounts that would otherwise have been applied to prepay Term Loans of Declining Lenders may be retained by the Borrower (such retained amounts, "**Declined Proceeds**").

Section 2.10. <u>Benchmark Replacement; Inability to Determine Rates.</u>

(a) Notwithstanding anything to the contrary herein or in any other Loan Document, upon the occurrence of a Benchmark Transition Event (as defined below), the Administrative Agent and the Borrower may amend this Agreement to replace the then-current benchmark rate with a Benchmark Replacement (as defined below), and any such amendment will become effective at 5:00 p.m. on the fifth (5th) Business Day after the Administrative Agent has posted such proposed amendment to all Lenders so long as the Administrative Agent has not received, by such time, written notice of objection to such amendment from Lenders comprising the Required Lenders. As used herein, (i) "**Benchmark Transition Event**" means a public statement or publication of information by or on behalf of the administrator of the then-current benchmark or a Governmental Authority having jurisdiction over such administrator or the Administrative Agent announcing that such administrator has ceased or will cease to provide such benchmark permanently or indefinitely or that such benchmark is or will no longer be representative, and (ii) "**Benchmark Replacement**" means the sum of (x) an alternate benchmark rate that has been selected by the Administrative Agent and the Borrower giving due consideration to any selection or recommendation of a replacement benchmark rate by the Federal Reserve Board, the Federal Reserve Bank of New York or a committee officially endorsed or convened thereby, or any evolving or then-prevailing market convention for determining a benchmark rate as a replacement for the then-current benchmark for Dollar-denominated syndicated credit facilities and (y) the related spread adjustment, if any, so selected or recommended or so prevailing; *provided* that if the Benchmark Replacement as so determined would be less than the Floor, the Benchmark Replacement will be deemed to be the Floor. In connection with the implementation of a Benchmark Replacement, the Administrative Agent, in consultation with the Borrower, will have the right to make conforming changes to the definitions of "Base Rate," "Business Day," "Interest Payment Date," "Interest Period" and "U.S. Government Securities Business Day" and other technical, administrative or operational provisions from time to time, and any amendments implementing such conforming changes will become effective without any further action or consent of any other party hereto upon notice to the Borrower and the Lenders.

(b) Subject to clause (a) above, if prior to the commencement of any Interest Period for a Term SOFR Borrowing (i) the Administrative Agent determines (which determination shall be conclusive absent manifest error) that adequate and reasonable means do not exist for ascertaining Adjusted Term SOFR or Term SOFR for such Interest Period or (ii) the Administrative Agent is advised by the Required Lenders that Adjusted Term SOFR for such Interest Period will not adequately and fairly reflect the cost to such Lenders of making or maintaining their Loans included in such Borrowing for such Interest Period, then the Administrative Agent shall give notice thereof to the Borrower and the Lenders as promptly as practicable thereafter and, until the Administrative Agent notifies the Borrower and the Lenders that the circumstances giving rise to such notice no longer exist, (x) any Borrowing Request that requests a Term SOFR Borrowing shall be deemed a request for a Base Rate Borrowing and (y) any outstanding Term SOFR Borrowing shall be converted to a Base Rate Borrowing at the end of the Interest Period then in effect therefor.

Section 2.11. <u>Pro Rata Treatment; Sharing of Set-offs.</u>

(a) Except as otherwise expressly provided herein (including Sections 2.09(e), 2.13 and 11.04(g)), each Borrowing, each payment or prepayment of principal of any Borrowing, each payment of interest on the Loans of any Class, each payment of fees in respect of any Class, each reduction of the Commitments of any Class and each conversion or continuation of any Borrowing shall be allocated pro rata among the Lenders in accordance with their respective Applicable Percentages of the applicable Class (or, in the case of payments in respect of outstanding Loans, in accordance with the respective principal amounts of their outstanding Loans of the applicable Class).

(b) If any Lender shall, by exercising any right of set-off or counterclaim or otherwise, obtain payment in respect of any principal of or interest on any of its Loans resulting in such Lender receiving payment of a greater proportion of the aggregate amount of its Loans and accrued interest thereon than the proportion received by any other Lender entitled to share ratably therein, then the Lender receiving such greater proportion shall purchase (for cash at face value) participations in the Loans of other Lenders entitled to share ratably therein to the extent necessary so that the benefit of all such payments shall be shared by the applicable Lenders ratably in accordance with the aggregate amount of principal of and accrued interest on their respective applicable Loans; *provided* that (i) if any such participations are purchased and all or any portion of the payment giving rise thereto is recovered, such participations shall be rescinded and the purchase price restored to the extent of such recovery, without interest, and (ii) the provisions of this paragraph shall not be construed to apply to any payment made by the Borrower pursuant to and in accordance with the express terms of this Agreement (including Section 11.04(g)) or any payment obtained by a Lender as consideration for the assignment of or sale of a participation in any of its Loans to any assignee or participant permitted hereunder.

Section 2.12. Payments Generally.

(a) The Borrower shall make each payment required to be made by it hereunder or under any other Loan Document (whether of principal, interest, premium or fees, or of amounts payable under Section 3.01, 3.02 or 3.03, or otherwise) prior to 1:00 p.m. on the date when due, in immediately available funds, free and clear of and without condition or deduction for any counterclaim, defense, recoupment or setoff. Any amounts received after such time on any date may, in the discretion of the Administrative Agent, be deemed to have been received on the next succeeding Business Day for purposes of calculating interest thereon. All such payments shall be made to the Administrative Agent at its offices specified in Schedule 11.01, except as otherwise expressly provided in the relevant Loan Document. The Administrative Agent shall distribute any such payments received by it for the account of any other Person to the appropriate recipient promptly following receipt thereof. If any payment hereunder shall be due on a day that is not a Business Day, the date for payment shall be extended to the next succeeding Business Day and, in the case of any payment accruing interest, interest thereon shall be payable for the period of such extension. All payments hereunder shall be made in Dollars.

(b) If at any time insufficient funds are received by and available to the Administrative Agent to pay fully all amounts of principal, premium, interest and fees then due hereunder, such funds shall be applied (i) first, towards payment of interest and fees then due hereunder, ratably among the parties entitled thereto in accordance with the amounts of interest and fees then due to such parties, and (ii) second, towards payment of principal and premium then due hereunder, ratably among the parties entitled thereto in accordance with the amounts of principal and premium then due to such parties; *provided* that after the exercise of remedies pursuant to Section 9.02, all such funds shall be applied as provided in Section 9.03.

(c) Unless the Administrative Agent shall have received notice from the Borrower prior to the date on which any payment is due to the Administrative Agent for the account of the Lenders that the Borrower will not make such payment, the Administrative Agent may assume that the Borrower has made such payment on such date in accordance herewith and may, in reliance upon such assumption, distribute to the Lenders the amount due. In such event, if the Borrower has not in fact made such payment, then each of the Lenders severally agrees to repay to the Administrative Agent forthwith on demand the amount so distributed to such Lender with interest thereon, for each day from and including the date such amount is distributed to it to but excluding the date of payment to the Administrative Agent, at the federal funds effective rate as published by the Federal Reserve Bank of New York.

Section 2.13. Defaulting Lenders.

Notwithstanding any provision of this Agreement to the contrary, if any Lender becomes a Defaulting Lender, then the following provisions shall apply for so long as such Lender is a Defaulting Lender: (a) commitment fees and Ticking Fees shall cease to accrue on the unused Commitments of such Defaulting Lender pursuant to Section 2.07; (b) the Commitments and Loans of such Defaulting Lender shall not be included in determining whether the Required Lenders or any other requisite Lenders have taken or may take any action hereunder (including any consent to any amendment, waiver or other modification pursuant to Section 11.02); *provided* that any amendment, waiver or other modification requiring the consent of all Lenders or each affected Lender that by its terms affects any Defaulting Lender disproportionately and adversely relative to other affected Lenders shall require the consent of such Defaulting Lender; (c) any amount payable to such Defaulting Lender hereunder (whether on account of principal, interest, fees or otherwise) shall, in lieu of being distributed to such Defaulting Lender, be retained by the Administrative Agent in a segregated account and, subject to any applicable requirements of law, be applied at such time or times as may be determined by the Administrative Agent (i) first, to the payment of any amounts owing by such Defaulting Lender to the Administrative Agent hereunder, (ii) second, to the funding of any Loan in respect of which such Defaulting Lender has failed to fund its portion thereof as required by this Agreement, as determined by the Administrative Agent, (iii) third, if so determined by the Administrative Agent and the Borrower, to be held in such account as cash collateral for future funding obligations of such Defaulting Lender hereunder, (iv) fourth, to the payment of any amounts owing to the Lenders as a result of any judgment of a court of competent jurisdiction obtained by any Lender against such Defaulting Lender as a result of such Defaulting Lender's breach of its obligations under this Agreement and (v) fifth, to such Defaulting Lender or as otherwise directed by a court of competent jurisdiction; and (d) if the Borrower and the Administrative Agent agree in writing that a Lender that is a Defaulting Lender has adequately remedied all matters that caused such Lender to be a Defaulting Lender, then on such date such Lender shall purchase at par such of the Loans of the other Lenders as the Administrative Agent shall determine may be necessary in order for such Lender to hold such Loans in accordance with its Applicable Percentage, whereupon such Lender will cease to be a Defaulting Lender.

Section 2.14. <u>Incremental Facilities.</u>

(a) The Borrower may at any time and from time to time after the Closing Date, by written notice to the Administrative Agent, request (i) one or more additional tranches of term loans or increases in the outstanding Term Loans of any existing Class (any such loans, "**Incremental Term Loans**") or (ii) one or more increases in the Revolving Commitments (any such increase, an "**Incremental Revolving Commitment**"), in an aggregate principal amount for all Incremental Term Loans and Incremental Revolving Commitments not to exceed, at the time of incurrence thereof, the sum of (x) $60,000,000 (the "**Free and Clear Incremental Amount**") *plus* (y) an unlimited additional amount so long as, after giving Pro Forma Effect to the incurrence thereof (assuming, in the case of any Incremental Revolving Commitments, that such commitments are fully drawn, and without netting the cash proceeds of such incurrence), the Total Net Leverage Ratio as of the last day of the most recently ended Test Period does not exceed (1) 4.75 to 1.00 or (2) if the proceeds thereof are used to finance a Permitted Acquisition or other Investment permitted hereunder, the Total Net Leverage Ratio in effect immediately prior to such incurrence, if greater (the sum of the amounts described in the foregoing clauses (x) and (y), the "**Incremental Cap**"); *provided* that the Borrower may elect to use clause (y) prior to clause (x), and any portion of an incurrence intended to be incurred under clause (y) that cannot be so incurred shall be deemed incurred under clause (x).

(b) Each notice from the Borrower pursuant to this Section shall set forth the requested amount and proposed terms of the relevant Incremental Term Loans or Incremental Revolving Commitments, which shall be in a minimum amount of $10,000,000 (or, if less, the remaining Incremental Cap). Incremental Term Loans and Incremental Revolving Commitments may be provided by any existing Lender (it being understood that no existing Lender shall have any obligation to provide all or any portion thereof) or by any other Eligible Assignee reasonably acceptable to the Administrative Agent and the Borrower.

(c) The terms of any Incremental Term Loans shall be as agreed between the Borrower and the lenders providing the same; *provided* that (i) the final maturity date of any Incremental Term Loans shall be no earlier than the Maturity Date, and the Weighted Average Life to Maturity of any Incremental Term Loans shall be no shorter than the remaining Weighted Average Life to Maturity of the Initial Term Loans, (ii) any Incremental Term Loans shall rank *pari passu* with or junior to the Initial Term Loans in right of payment and with respect to security and shall not be guaranteed by any Person that is not a Loan Party or secured by any assets that do not constitute Collateral, (iii) if the All-In Yield applicable to any Incremental Term Loans incurred on or prior to the date that is eighteen (18) months after the Closing Date that are *pari passu* with the Initial Term Loans in right of payment and security exceeds the All-In Yield applicable to the Initial Term Loans by more than 0.50% per annum, the Applicable Margin for the Initial Term Loans and the Delayed Draw Term Loans shall be increased to the extent necessary so that such excess is eliminated (it being agreed that, for purposes of this clause (iii), "**All-In Yield**" means, as to any Indebtedness, the effective yield thereon, taking into account the applicable interest rate margin, any interest rate floors (with the effect of any floor in excess of the applicable reference rate at the time of incurrence being equated to interest margin) and any original issue discount and upfront fees (with such discount and fees being equated to interest margin based on an assumed four-year life to maturity), but excluding arrangement, structuring, commitment, underwriting and similar fees not paid ratably to all lenders of such Indebtedness), and (iv) the other terms of such Incremental Term Loans, if not consistent with the terms of the Initial Term Loans, shall be reasonably satisfactory to the Administrative Agent (except for terms applicable only to periods after the Maturity Date or terms added for the benefit of all Lenders). The terms of any Incremental Revolving Commitments shall be identical to those of the existing Revolving Commitments.

(d) Each tranche of Incremental Term Loans and each Incremental Revolving Commitment shall become effective pursuant to an amendment (an "**Incremental Facility Amendment**") to this Agreement and, as appropriate, the other Loan Documents, executed by the Borrower, each lender providing such Incremental Term Loans or Incremental Revolving Commitments and the Administrative Agent. No Incremental Facility Amendment shall require the consent of any Lender other than the lenders providing the applicable Incremental Term Loans or Incremental Revolving Commitments. No Lender shall have any obligation to provide any Incremental Term Loan or Incremental Revolving Commitment. The effectiveness of any Incremental Facility Amendment shall be subject to the satisfaction of the following conditions (in addition to such other conditions as the lenders providing the relevant Incremental Term Loans or Incremental Revolving Commitments may require): (i) no Default or Event of Default shall have occurred and be continuing or would result therefrom (subject, in the case of any Incremental Term Loans the proceeds of which are used to finance a Limited Condition Transaction, to customary "funds certain" provisions consistent with Section 1.05), (ii) the representations and warranties of each Loan Party set forth in the Loan Documents shall be true and correct in all material respects (or, if qualified by materiality or Material Adverse Effect, in all respects) on and as of the date of such Incremental Facility Amendment (except to the extent expressly made as of an earlier date, in which case as of such earlier date) and (iii) the Borrower shall have delivered such legal opinions, board resolutions, officers' certificates and reaffirmations of the Loan Documents as the Administrative Agent may reasonably request. Upon effectiveness of any Incremental Facility Amendment, Schedule 2.01 shall be deemed amended to reflect the relevant Incremental Commitments, and this Agreement shall be deemed amended to the extent (but only to the extent) necessary to reflect the existence and terms of the relevant Incremental Term Loans or Incremental Revolving Commitments.

ARTICLE III

TAXES; YIELD PROTECTION; REPLACEMENT OF LENDERS

Section 3.01. Taxes.

(a) Payments Free of Taxes. Any and all payments by or on account of any obligation of any Loan Party under any Loan Document shall be made without deduction or withholding for any Taxes, except as required by applicable law. If any applicable law (as determined in the good faith discretion of an applicable withholding agent) requires the deduction or withholding of any Tax from any such payment by a withholding agent, then the applicable withholding agent shall be entitled to make such deduction or withholding and shall timely pay the full amount deducted or withheld to the relevant Governmental Authority in accordance with applicable law and, if such Tax is an Indemnified Tax, then the sum payable by the applicable Loan Party shall be increased as necessary so that after such deduction or withholding has been made (including such deductions and withholdings applicable to additional sums payable under this Section 3.01) the applicable Recipient receives an amount equal to the sum it would have received had no such deduction or withholding been made.

(b) Payment of Other Taxes. The Loan Parties shall timely pay to the relevant Governmental Authority in accordance with applicable law, or at the option of the Administrative Agent timely reimburse it for the payment of, any Other Taxes.

(c) Indemnification. The Loan Parties shall jointly and severally indemnify each Recipient, within ten (10) days after demand therefor, for the full amount of any Indemnified Taxes (including Indemnified Taxes imposed or asserted on or attributable to amounts payable under this Section 3.01) payable or paid by such Recipient or required to be withheld or deducted from a payment to such Recipient and any reasonable expenses arising therefrom or with respect thereto, whether or not such Indemnified Taxes were correctly or legally imposed or asserted by the relevant Governmental Authority. A certificate as to the amount of such payment or liability delivered to the Borrower by a Lender (with a copy to the Administrative Agent), or by the Administrative Agent on its own behalf or on behalf of a Lender, shall be conclusive absent manifest error. Each Lender shall severally indemnify the Administrative Agent, within ten (10) days after demand therefor, for any Excluded Taxes attributable to such Lender that are payable or paid by the Administrative Agent in connection with any Loan Document, and any reasonable expenses arising therefrom or with respect thereto.

(d) Evidence of Payments. As soon as practicable after any payment of Taxes by any Loan Party to a Governmental Authority pursuant to this Section 3.01, such Loan Party shall deliver to the Administrative Agent the original or a certified copy of a receipt issued by such Governmental Authority evidencing such payment, a copy of the return reporting such payment or other evidence of such payment reasonably satisfactory to the Administrative Agent.

(e) Refunds. If any party determines, in its sole discretion exercised in good faith, that it has received a refund of any Taxes as to which it has been indemnified pursuant to this Section 3.01 (including by the payment of additional amounts pursuant to this Section 3.01), it shall pay to the indemnifying party an amount equal to such refund (but only to the extent of indemnity payments made under this Section 3.01 with respect to the Taxes giving rise to such refund), net of all out-of-pocket expenses (including Taxes) of such indemnified party and without interest (other than any interest paid by the relevant Governmental Authority with respect to such refund). This paragraph shall not be construed to require any indemnified party to make available its Tax returns (or any other information relating to its Taxes that it deems confidential) to the indemnifying party or any other Person.

(f) Status of Lenders. Any Lender that is entitled to an exemption from or reduction of withholding Tax with respect to payments made under any Loan Document shall deliver to the Borrower and the Administrative Agent, at the time or times reasonably requested by the Borrower or the Administrative Agent, such properly completed and executed documentation reasonably requested by the Borrower or the Administrative Agent as will permit such payments to be made without withholding or at a reduced rate of withholding. Without limiting the generality of the foregoing, (i) any Lender that is a U.S. Person shall deliver to the Borrower and the Administrative Agent on or about the date on which such Lender becomes a Lender under this Agreement (and from time to time thereafter upon the reasonable request of the Borrower or the Administrative Agent) executed copies of IRS Form W-9 certifying that such Lender is exempt from U.S. federal backup withholding, and (ii) any Lender that is not a U.S. Person shall deliver to the Borrower and the Administrative Agent, on or about the date on which it becomes a Lender (and from time to time thereafter upon reasonable request), whichever of the following is applicable: executed copies of IRS Form W-8BEN-E (or W-8BEN) claiming treaty benefits, IRS Form W-8ECI, IRS Form W-8IMY (together with applicable underlying forms), or, in the case of a Lender claiming the benefits of the exemption for portfolio interest under Section 881(c) of the Code, IRS Form W-8BEN-E (or W-8BEN) together with a certificate to the effect that such Lender is not a "bank" within the meaning of Section 881(c)(3)(A) of the Code, a "10 percent shareholder" of the Borrower within the meaning of Section 871(h)(3)(B) of the Code or a "controlled foreign corporation" described in Section 881(c)(3)(C) of the Code. If a payment made to a Lender under any Loan Document would be subject to U.S. federal withholding Tax imposed by FATCA if such Lender were to fail to comply with the applicable reporting requirements of FATCA, such Lender shall deliver to the Borrower and the Administrative Agent such documentation prescribed by applicable law and such additional documentation reasonably requested by the Borrower or the Administrative Agent as may be necessary for them to comply with their obligations under FATCA. Each Lender agrees that if any form or certification it previously delivered expires or becomes obsolete or inaccurate in any respect, it shall update such form or certification or promptly notify the Borrower and the Administrative Agent in writing of its legal inability to do so.

(g) Survival. Each party's obligations under this Section 3.01 shall survive the resignation or replacement of the Administrative Agent or any assignment of rights by, or the replacement of, a Lender, the termination of the Commitments and the repayment, satisfaction or discharge of all obligations under any Loan Document.

Section 3.02. Increased Costs.

(a) If any Change in Law shall (i) impose, modify or deem applicable any reserve, special deposit, compulsory loan, insurance charge or similar requirement against assets of, deposits with or for the account of, or credit extended or participated in by, any Lender, (ii) subject any Recipient to any Taxes (other than Indemnified Taxes, Taxes described in clauses (b) through (d) of the definition of Excluded Taxes, and Connection Income Taxes) on its loans, loan principal, commitments or other obligations, or its deposits, reserves, other liabilities or capital attributable thereto, or (iii) impose on any Lender any other condition, cost or expense affecting this Agreement or Loans made by such Lender, and the result of any of the foregoing shall be to increase the cost to such Lender of making, converting to, continuing or maintaining any Loan (or of maintaining its obligation to make any such Loan), or to reduce the amount of any sum received or receivable by such Lender hereunder (whether of principal, interest or any other amount), then, upon the request of such Lender, the Borrower will pay to such Lender such additional amount or amounts as will compensate such Lender for such additional costs incurred or reduction suffered. As used herein, "**Connection Income Taxes**" means Other Connection Taxes that are imposed on or measured by net income (however denominated) or that are franchise Taxes or branch profits Taxes.

(b) If any Lender determines that any Change in Law affecting such Lender or any lending office of such Lender or such Lender's holding company, if any, regarding capital or liquidity requirements has or would have the effect of reducing the rate of return on such Lender's capital or on the capital of such Lender's holding company as a consequence of this Agreement, the Commitments of such Lender or the Loans made by such Lender to a level below that which such Lender or its holding company could have achieved but for such Change in Law (taking into consideration such Lender's policies and the policies of its holding company with respect to capital adequacy and liquidity), then from time to time the Borrower will pay to such Lender such additional amount or amounts as will compensate such Lender or its holding company for any such reduction suffered.

(c) A certificate of a Lender setting forth the amount or amounts necessary to compensate such Lender or its holding company, as the case may be, as specified in paragraph (a) or (b) of this Section, together with a reasonably detailed calculation thereof, shall be delivered to the Borrower and shall be conclusive absent manifest error. The Borrower shall pay such Lender the amount shown as due on any such certificate within fifteen (15) days after receipt thereof. Failure or delay on the part of any Lender to demand compensation pursuant to this Section shall not constitute a waiver of such Lender's right to demand such compensation; *provided* that the Borrower shall not be required to compensate a Lender pursuant to this Section for any increased costs or reductions incurred more than one hundred eighty (180) days prior to the date that such Lender notifies the Borrower of the Change in Law giving rise thereto and of such Lender's intention to claim compensation therefor (except that, if the Change in Law giving rise to such increased costs or reductions is retroactive, then such 180-day period shall be extended to include the period of retroactive effect thereof).

Section 3.03. Break Funding Payments.

In the event of (a) the payment of any principal of any Term SOFR Loan other than on the last day of an Interest Period applicable thereto (including as a result of an Event of Default or as a result of any prepayment pursuant to Section 2.08 or 2.09), (b) the conversion of any Term SOFR Loan other than on the last day of the Interest Period applicable thereto, (c) the failure to borrow, convert, continue or prepay any Term SOFR Loan on the date specified in any notice delivered pursuant hereto (regardless of whether such notice may be revoked and is revoked in accordance herewith) or (d) the assignment of any Term SOFR Loan other than on the last day of the Interest Period applicable thereto as a result of a request by the Borrower pursuant to Section 3.06, then, in any such event, the Borrower shall compensate each Lender for the loss, cost and expense attributable to such event (excluding loss of anticipated profits or margin). A certificate of any Lender setting forth any amount or amounts that such Lender is entitled to receive pursuant to this Section, together with a reasonably detailed calculation thereof, shall be delivered to the Borrower and shall be conclusive absent manifest error, and the Borrower shall pay such Lender the amount shown as due on any such certificate within fifteen (15) days after receipt thereof.

Section 3.04. Illegality.

If any Lender determines that any law has made it unlawful, or that any Governmental Authority has asserted that it is unlawful, for such Lender or its applicable lending office to make, maintain or fund Loans whose interest is determined by reference to SOFR, Term SOFR or Adjusted Term SOFR, or to determine or charge interest rates based upon SOFR, Term SOFR or Adjusted Term SOFR, then, upon notice thereof by such Lender to the Borrower (through the Administrative Agent), (a) any obligation of such Lender to make or continue Term SOFR Loans shall be suspended, and (b) the Borrower shall, upon demand from such Lender (with a copy to the Administrative Agent), prepay or convert all such Lender's Term SOFR Loans to Base Rate Loans, either on the last day of the Interest Period therefor, if such Lender may lawfully continue to maintain such Loans to such day, or immediately, if such Lender may not lawfully continue to maintain such Loans, in each case until such Lender notifies the Administrative Agent and the Borrower that the circumstances giving rise to such determination no longer exist. Upon any such prepayment or conversion, the Borrower shall also pay accrued interest on the amount so prepaid or converted.

Section 3.05. Mitigation Obligations.

If any Lender requests compensation under Section 3.02, or requires the Borrower to pay any Indemnified Taxes or additional amounts to any Lender or any Governmental Authority for the account of any Lender pursuant to Section 3.01, then such Lender shall use reasonable efforts to designate a different lending office for funding or booking its Loans hereunder or to assign its rights and obligations hereunder to another of its offices, branches or affiliates, if, in the judgment of such Lender, such designation or assignment (a) would eliminate or reduce amounts payable pursuant to Section 3.01 or 3.02, as the case may be, in the future and (b) would not subject such Lender to any unreimbursed cost or expense and would not otherwise be disadvantageous to such Lender in any material respect. The Borrower hereby agrees to pay all reasonable costs and expenses incurred by any Lender in connection with any such designation or assignment.

Section 3.06. Replacement of Lenders.

If (a) any Lender requests compensation under Section 3.02, (b) the Borrower is required to pay any Indemnified Taxes or additional amounts to any Lender or any Governmental Authority for the account of any Lender pursuant to Section 3.01, (c) any Lender is a Defaulting Lender or (d) any Lender is a Non-Consenting

Lender (as defined below), then the Borrower may, at its sole expense and effort, upon notice to such Lender and the Administrative Agent, require such Lender to assign and delegate, without recourse (in accordance with and subject to the restrictions contained in, and consents required by, Section 11.04), all of its interests, rights (other than its existing rights to payments pursuant to Section 3.01 or 3.02) and obligations under this Agreement and the other Loan Documents to an Eligible Assignee that shall assume such obligations (which assignee may be another Lender, if a Lender accepts such assignment); *provided* that (i) the Borrower shall have paid to the Administrative Agent the assignment fee (if any) specified in Section 11.04, (ii) such Lender shall have received payment of an amount equal to the outstanding principal of its Loans, accrued interest thereon, accrued fees and all other amounts payable to it hereunder and under the other Loan Documents (including, in the case of an assignment in connection with a Premium Event described in clause (c) of the definition of "Premium Event," the Prepayment Premium that would be payable in respect of such Lender's Term Loans as if such Term Loans had been prepaid on the effective date of such assignment, and any amounts under Section 3.03) from the assignee (to the extent of such outstanding principal and accrued interest and fees) or the Borrower (in the case of all other amounts), (iii) in the case of any such assignment resulting from a claim for compensation under Section 3.02 or payments required to be made pursuant to Section 3.01, such assignment will result in a reduction in such compensation or payments thereafter, (iv) such assignment does not conflict with applicable law and (v) in the case of any assignment resulting from a Lender becoming a Non-Consenting Lender, the applicable assignee shall have consented to the applicable amendment, waiver or consent. A Lender shall not be required to make any such assignment or delegation if, prior thereto, as a result of a waiver by such Lender or otherwise, the circumstances entitling the Borrower to require such assignment and delegation cease to apply. As used herein, "**Non-Consenting Lender**" means any Lender that does not approve any consent, waiver, amendment, modification or termination that (x) requires the approval of all Lenders or all affected Lenders in accordance with the terms of Section 11.02 and (y) has been approved by the Required Lenders.

ARTICLE IV
CONDITIONS

Section 4.01. <u>Closing Date.</u>

The obligations of the Lenders to make Loans hereunder shall not become effective until the date on which each of the following conditions is satisfied (or waived in accordance with Section 11.02):

(a) The Administrative Agent (or its counsel) shall have received from each party hereto a counterpart of this Agreement, the Guarantee and Collateral Agreement, the Intercompany Note and each other Loan Document to be executed on the Closing Date, in each case signed on behalf of such party.

(b) The Administrative Agent shall have received a customary written opinion (addressed to the Administrative Agent and the Lenders and dated the Closing Date) of Wexford & Crane LLP, counsel for the Loan Parties, covering such matters relating to the Loan Parties, the Loan Documents and the Transactions as the Administrative Agent shall reasonably request.

(c) The Administrative Agent shall have received such customary certificates of resolutions or other action, incumbency certificates and other certificates of Responsible Officers of each Loan Party as the Administrative Agent may reasonably require evidencing the identity, authority and capacity of each Responsible Officer thereof authorized to act in connection with the Loan Documents, together with certified copies of the certificate or articles of formation or incorporation and operating agreement or by-laws (or equivalent organizational documents) of each Loan Party and good standing certificates from the applicable Governmental Authority of each Loan Party's jurisdiction of organization, each dated a recent date prior to the Closing Date.

(d) The Acquisition shall have been, or substantially concurrently with the funding of the Initial Term Loans shall be, consummated in all material respects in accordance with the terms of the Acquisition Agreement, without giving effect to any amendment, waiver, consent or modification thereof or thereto by the Borrower that is materially adverse to the interests of the Lenders without the prior written consent of the Lead Arranger (such consent not to be unreasonably withheld, delayed or conditioned); *provided* that any reduction in the purchase price of the Acquisition of less than 10% shall be deemed not materially adverse so long as such reduction is applied to reduce the Initial Term Loans and the Equity Contribution on a pro rata basis.

(e) The Equity Contribution shall have been, or substantially concurrently with the funding of the Initial Term Loans shall be, consummated, in an amount not less than 42.5% of the sum of the aggregate principal amount of the Initial Term Loans funded on the Closing Date and the aggregate amount of the Equity Contribution.

(f) Substantially concurrently with the funding of the Initial Term Loans, the Transactions described in clause (d) of the definition thereof shall have been consummated, and the Administrative Agent shall have received customary payoff letters and lien release documentation with respect to the Existing Credit Agreement.

(g) The Collateral and Guarantee Requirement shall have been satisfied (subject to Section 6.13 and the final paragraph of this Section 4.01), and the Administrative Agent shall have received the results of customary UCC, tax, judgment and litigation lien searches with respect to each Loan Party.

(h) The Administrative Agent shall have received (i) the Audited Financial Statements, (ii) unaudited consolidated balance sheets and related statements of operations and cash flows of the Target and its subsidiaries for each fiscal quarter (other than the fourth fiscal quarter) ended after December 31, 2025 and at least forty-five (45) days prior to the Closing Date and (iii) a pro forma consolidated balance sheet of the Borrower as of March 31, 2026, prepared after giving effect to the Transactions as if the Transactions had occurred as of such date.

(i) The Administrative Agent shall have received a solvency certificate, substantially in the form of Exhibit E, from a Financial Officer of the Borrower, dated the Closing Date, certifying that the Borrower and its Subsidiaries, on a consolidated basis after giving effect to the Transactions, are Solvent.

(j) The Administrative Agent and the Lead Arranger shall have received all fees and other amounts due and payable on or prior to the Closing Date, including, to the extent invoiced at least three (3) Business Days prior to the Closing Date, reimbursement or payment of all reasonable and documented out-of-pocket expenses required to be reimbursed or paid by the Borrower under the Fee Letter or any other Loan Document.

(k) The Administrative Agent shall have received, at least three (3) Business Days prior to the Closing Date, (i) all documentation and other information regarding the Loan Parties requested in writing at least ten (10) Business Days prior to the Closing Date in order to allow the Administrative Agent and the Lenders to comply with applicable “know your customer” and anti-money laundering rules and regulations, including the USA PATRIOT Act, and (ii) to the extent the Borrower qualifies as a “legal entity customer” under the Beneficial Ownership Regulation (31 C.F.R. § 1010.230), a customary certification regarding beneficial ownership in relation to the Borrower.

(l) Since December 31, 2025, there shall not have occurred any Company Material Adverse Effect (as defined in the Acquisition Agreement as in effect on April 17, 2026).

(m) The Specified Representations shall be true and correct in all material respects (or, if qualified by materiality or Material Adverse Effect, in all respects), and the representations and warranties made by or with respect to the Target and its subsidiaries in the Acquisition Agreement that are material to the interests of the Lenders (but only to the extent that the Borrower or its applicable Affiliate has the right to terminate its obligations under the Acquisition Agreement, or to decline to consummate the Acquisition, as a result of a breach thereof) shall be true and correct to the extent required by such standard.

Notwithstanding the foregoing, to the extent any Lien on any Collateral (other than any Collateral the security interest in which may be perfected by the filing of a UCC financing statement or the delivery of certificated securities of the Borrower and each Wholly Owned Domestic Subsidiary that is a Material Subsidiary) is not or cannot be provided or perfected on the Closing Date after the Borrower’s use of commercially reasonable efforts to do so without undue burden or expense, then the provision or perfection of such Lien shall not constitute a condition precedent to the availability of the Initial Term Loans on the Closing Date, but instead shall be required to be provided or perfected within ninety (90) days after the Closing Date (subject to extensions reasonably agreed by the Administrative Agent) pursuant to arrangements set forth on Schedule 6.13. The Administrative Agent shall notify the Borrower and the Lenders of the Closing Date, and such notice shall be conclusive and binding.

Section 4.02. Each Credit Event.

The obligation of each Lender to make any Loan after the Closing Date is subject to the satisfaction of the following conditions:

(a) The representations and warranties of each Loan Party set forth in the Loan Documents shall be true and correct in all material respects (or, if qualified by materiality or Material Adverse Effect, in all respects) on and as of the date of such Borrowing, except to the extent such representations and warranties expressly relate to an earlier date, in which case they shall be true and correct in all material respects (or, if so qualified, in all respects) as of such earlier date.

(b) At the time of and immediately after giving effect to such Borrowing, no Default or Event of Default shall have occurred and be continuing.

(c) The Administrative Agent shall have received a Borrowing Request in accordance with Section 2.03.

Each Borrowing after the Closing Date shall be deemed to constitute a representation and warranty by the Borrower on the date thereof as to the matters specified in paragraphs (a) and (b) of this Section.

Section 4.03. Delayed Draw Term Loans.

In addition to the conditions set forth in Section 4.02, the obligation of each Lender to make any Delayed Draw Term Loan is subject to the satisfaction of the following conditions:

(a) The date of the applicable Borrowing shall be on or prior to the Delayed Draw Commitment Termination Date.

(b) After giving Pro Forma Effect to such Borrowing (without netting the proceeds thereof) and to the application of the proceeds thereof (including the consummation of any Permitted Acquisition financed thereby), the Borrower shall be in compliance with each of the Financial Covenants, recomputed as of the last day of the most recently ended Test Period, and the Administrative Agent shall have received a certificate of a Financial Officer of the Borrower setting forth reasonably detailed calculations demonstrating such compliance.

(c) The proceeds of such Delayed Draw Term Loans shall be used substantially concurrently to finance a Permitted Acquisition or Capital Expenditures (and to pay fees, costs and expenses related thereto), and the Borrowing Request with respect thereto shall so certify and shall identify the applicable Permitted Acquisition or Capital Expenditures in reasonable detail.

(d) No Liquidity Trigger Period shall be in effect, and the aggregate Revolving Exposure on the date of such Borrowing (after giving effect thereto) shall not exceed 35% of the aggregate Revolving Commitments, unless, in each case, the Required Lenders shall have otherwise consented.

ARTICLE V
REPRESENTATIONS AND WARRANTIES

Each of Holdings and the Borrower represents and warrants to the Lenders that:

Section 5.01. Organization; Powers.

Each of Holdings, the Borrower and the Restricted Subsidiaries is duly organized, validly existing and in good standing under the laws of the jurisdiction of its organization, has all requisite power and authority to carry on its business as now conducted and, except where the failure to do so, individually or in the aggregate, could not reasonably be expected to result in a Material Adverse Effect, is qualified to do business in, and is in good standing in, every jurisdiction where such qualification is required.

Section 5.02. Authorization; Enforceability.

The Transactions to be entered into by each Loan Party are within such Loan Party's organizational powers and have been duly authorized by all necessary organizational action and, if required, action by the holders of such Loan Party's Equity Interests. Each Loan Document to which any Loan Party is a party has been duly executed and delivered by such Loan Party and constitutes a legal, valid and binding obligation of such Loan Party, enforceable against such Loan Party in accordance with its terms, subject to applicable bankruptcy, insolvency, reorganization, moratorium or other laws affecting creditors' rights generally and subject to general principles of equity, regardless of whether considered in a proceeding in equity or at law.

Section 5.03. Governmental Approvals; No Conflicts.

(a) The Transactions do not require any consent or approval of, registration or filing with, or any other action by, any Governmental Authority, except (i) such as have been obtained or made and are in full force and effect, (ii) filings necessary to perfect Liens created pursuant to the Loan Documents and (iii) those the failure of which to obtain or make, individually or in the aggregate, could not reasonably be expected to result in a Material Adverse Effect.

(b) The Transactions (i) will not violate the certificate or articles of formation or incorporation, operating agreement, by-laws or other organizational documents of any Loan Party, (ii) will not violate any applicable law or regulation or any order of any Governmental Authority, except for violations that, individually or in the aggregate, could not reasonably be expected to result in a Material Adverse Effect, (iii) will not violate or result in a default under any indenture, agreement or other instrument evidencing Material Indebtedness binding upon any Loan Party or any Restricted Subsidiary or its assets, or give rise to a right thereunder to require any payment to be made by any Loan Party or any Restricted Subsidiary, and (iv) will not result in the creation or imposition of any Lien on any asset of any Loan Party or any Restricted Subsidiary, other than Liens created pursuant to the Loan Documents.

Section 5.04. Financial Condition; No Material Adverse Change.

(a) The Audited Financial Statements present fairly, in all material respects, the financial position and results of operations and cash flows of the Target and its subsidiaries as of the dates and for the periods covered thereby in accordance with GAAP. The pro forma consolidated balance sheet delivered pursuant to Section 4.01(h)(iii) has been prepared in good faith based on assumptions believed by the Borrower to be reasonable at the time of preparation and presents fairly, in all material respects, the pro forma consolidated financial position of the Borrower as of the date thereof, after giving effect to the Transactions as if they had occurred on such date.

(b) Since December 31, 2025, there has been no event, development or circumstance that has had or could reasonably be expected to have a Material Adverse Effect.

(c) None of Holdings, the Borrower or any Restricted Subsidiary has any material contingent liabilities or unusual long-term commitments, in each case not disclosed in the Audited Financial Statements or otherwise disclosed in writing to the Administrative Agent prior to the Closing Date.

Section 5.05. Properties; Intellectual Property.

(a) Each of Holdings, the Borrower and the Restricted Subsidiaries has good title to, or valid leasehold interests in, all its real and personal property material to its business, free and clear of all Liens other than Liens permitted by Section 7.02, except for minor defects in title that do not interfere with its ability to conduct its business as currently conducted or to utilize such properties for their intended purposes.

(b) Each of the Borrower and the Restricted Subsidiaries owns, or is licensed to use, all Intellectual Property necessary for the conduct of its business as currently conducted, and the conduct of such business does not infringe, misappropriate or otherwise violate the Intellectual Property rights of any other Person, except, in each case, as could not reasonably be expected, individually or in the aggregate, to result in a Material Adverse Effect. Schedule 1.01(b) sets forth, as of the Closing Date, a true and complete list of all Material Intellectual Property, and a Loan Party is the sole and exclusive owner of all right, title and interest in and to each item of Material Intellectual Property, free and clear of all Liens other than Liens permitted by Section 7.02.

Section 5.06. Litigation and Environmental Matters.

(a) Except as set forth on Schedule 5.06, there are no actions, suits or proceedings by or before any arbitrator or Governmental Authority pending against or, to the knowledge of the Borrower, threatened in writing against or affecting Holdings, the Borrower or any Restricted Subsidiary (i) as to which there is a reasonable possibility of an adverse determination and that, if adversely determined, could reasonably be expected, individually or in the aggregate, to result in a Material Adverse Effect or (ii) that involve any Loan Document or the Transactions.

(b) Except with respect to any matters that, individually or in the aggregate, could not reasonably be expected to result in a Material Adverse Effect, none of Holdings, the Borrower or any Restricted Subsidiary (i) has failed to comply with any Environmental Law or to obtain, maintain or comply with any permit, license or other approval required under any Environmental Law, (ii) has become subject to any Environmental Liability, (iii) has received notice of any claim with respect to any Environmental Liability or (iv) knows of any basis for any Environmental Liability.

Section 5.07. <u>Compliance with Laws and Agreements.</u>

Each of Holdings, the Borrower and the Restricted Subsidiaries is in compliance with all laws, regulations and orders of any Governmental Authority applicable to it or its property and all indentures, agreements and other instruments binding upon it or its property, except where the failure to do so, individually or in the aggregate, could not reasonably be expected to result in a Material Adverse Effect. No Default has occurred and is continuing.

Section 5.08. <u>Taxes.</u>

Each of Holdings, the Borrower and the Restricted Subsidiaries has timely filed or caused to be filed all Tax returns and reports required to have been filed and has paid or caused to be paid all Taxes required to have been paid by it, except (a) Taxes that are being contested in good faith by appropriate proceedings and for which Holdings, the Borrower or such Restricted Subsidiary, as applicable, has set aside on its books adequate reserves in accordance with GAAP or (b) to the extent that the failure to do so could not reasonably be expected to result in a Material Adverse Effect.

Section 5.09. <u>ERISA.</u>

No ERISA Event has occurred or is reasonably expected to occur that, when taken together with all other ERISA Events for which liability is reasonably expected to occur, could reasonably be expected to result in a Material Adverse Effect. The present value of all accumulated benefit obligations under each Plan (based on the assumptions used for purposes of Accounting Standards Codification Topic 715) did not, as of the date of the most recent financial statements reflecting such amounts, exceed the fair market value of the assets of such Plan by an amount that could reasonably be expected to result in a Material Adverse Effect.

Section 5.10. <u>Investment Company Status.</u>

None of Holdings, the Borrower or any Restricted Subsidiary is an "investment company" as defined in, or subject to regulation under, the Investment Company Act of 1940.

Section 5.11. <u>Disclosure.</u>

None of the reports, financial statements, certificates or other written information furnished by or on behalf of any Loan Party to the Administrative Agent or any Lender in connection with the negotiation of this Agreement or any other Loan Document or delivered hereunder or thereunder (as modified or supplemented by other information so furnished and taken as a whole) contains any material misstatement of fact or omits to state any material fact necessary to make the statements therein, in the light of the circumstances under which they were made, not materially misleading; *provided* that, with respect to projected financial information, the Borrower represents only that such information was prepared in good faith based upon assumptions believed to be reasonable at the time of preparation and delivery thereof, it being understood that projections are subject to significant uncertainties and contingencies, many of which are beyond the control of the Loan Parties, that no assurance can be given that any particular projections will be realized and that actual results may differ from projected results and such differences may be material. As of the Closing Date, the information included in any Beneficial Ownership Certification provided to any Lender is true and correct in all respects.

Section 5.12. <u>Subsidiaries.</u>

Schedule 5.12 sets forth, as of the Closing Date, the name of, and the ownership interest of Holdings, the Borrower and each Subsidiary in, each Subsidiary of the Borrower, and identifies each Subsidiary that is a Subsidiary Guarantor, each Subsidiary that is an Excluded Subsidiary (and the basis therefor) and each Unrestricted Subsidiary, in each case as of the Closing Date. As of the Closing Date, there are no Unrestricted Subsidiaries.

Section 5.13. <u>Insurance.</u>

The properties of the Borrower and the Restricted Subsidiaries are insured with financially sound and reputable insurance companies that are not Affiliates of the Borrower, in such amounts, with such deductibles and covering such risks as are customarily carried by companies engaged in similar businesses and owning similar properties in localities where the Borrower or the applicable Restricted Subsidiary operates.

Section 5.14. Labor Matters.

As of the Closing Date, there are no strikes, lockouts or slowdowns against the Borrower or any Restricted Subsidiary pending or, to the knowledge of the Borrower, threatened in writing. The hours worked by and payments made to employees of the Borrower and the Restricted Subsidiaries have not been in violation of the Fair Labor Standards Act or any other applicable federal, state, local or foreign law dealing with such matters, except to the extent any such violation could not reasonably be expected, individually or in the aggregate, to result in a Material Adverse Effect.

Section 5.15. Federal Reserve Regulations.

None of Holdings, the Borrower or any Restricted Subsidiary is engaged principally, or as one of its important activities, in the business of extending credit for the purpose of buying or carrying margin stock (within the meaning of Regulation U of the Board of Governors of the Federal Reserve System). No part of the proceeds of any Loan will be used, whether directly or indirectly, and whether immediately, incidentally or ultimately, to buy or carry margin stock or for any purpose that entails a violation of any of the regulations of such Board, including Regulations T, U and X.

Section 5.16. Sanctions; Anti-Corruption; Anti-Money Laundering.

(a) None of Holdings, the Borrower or any Restricted Subsidiary, nor any of their respective directors or officers, nor, to the knowledge of the Borrower, any of their respective employees, agents or Affiliates that will act in any capacity in connection with or benefit from the credit facilities established hereby, is a Sanctioned Person. None of Holdings, the Borrower or any Restricted Subsidiary is located, organized or resident in a Sanctioned Country.

(b) Holdings, the Borrower and the Restricted Subsidiaries and their respective directors and officers and, to the knowledge of the Borrower, their respective employees and agents, are in compliance with all applicable Sanctions and with all applicable Anti-Corruption Laws and applicable anti-money laundering laws, including the USA PATRIOT Act, in each case in all material respects. The Borrower has implemented and maintains in effect policies and procedures reasonably designed to promote compliance by the Borrower, the Restricted Subsidiaries and their respective directors, officers, employees and agents with applicable Sanctions and Anti-Corruption Laws.

(c) No Borrowing, nor the use of the proceeds thereof, will violate any Anti-Corruption Law or applicable Sanctions.

Section 5.17. Solvency.

As of the Closing Date, immediately after giving effect to the Transactions, the Borrower and its Subsidiaries, on a consolidated basis, are Solvent.

Section 5.18. Security Documents.

The Guarantee and Collateral Agreement and the other Collateral Documents create in favor of the Collateral Agent, for the benefit of the Secured Parties, a legal, valid and enforceable security interest in the Collateral described therein, and (a) upon the filing of UCC financing statements in the applicable filing offices, the security interest in the Collateral in which a security interest may be perfected by such filing will constitute a perfected first-priority security interest (subject to Liens permitted by Section 7.02), (b) upon delivery to the Collateral Agent of the certificates representing pledged Equity Interests, together with undated powers endorsed in blank, the security interest therein will constitute a perfected first-priority security interest and (c) upon the filing of appropriate notices with the United States Patent and Trademark Office or the United States Copyright Office, as applicable, the security interest in the registered Intellectual Property included in the Collateral will constitute a perfected security interest to the extent perfection may be achieved by such filings, in each case free and clear of all Liens other than Liens permitted by Section 7.02.

Section 5.19. Affected Financial Institutions.

No Loan Party is an Affected Financial Institution.

Section 5.20. Use of Plan Assets.

None of Holdings, the Borrower or any Restricted Subsidiary is using “plan assets” (within the meaning of 29 C.F.R. § 2510.3-101, as modified by Section 3(42) of ERISA) of one or more Benefit Plans in connection with the Loans or the Commitments. As used herein, “**Benefit Plan**” means any of (a) an “employee benefit plan” (as defined in ERISA) that is subject to Title I of ERISA, (b) a "plan" as defined in Section 4975 of the Code to which Section 4975 of the Code applies and (c) any Person whose assets include (for purposes of the Plan Asset Regulations or otherwise for purposes of Title I of ERISA or Section 4975 of the Code) the assets of any such "employee benefit plan" or "plan."

ARTICLE VI

AFFIRMATIVE COVENANTS

Until the Commitments have expired or been terminated and the principal of and interest on each Loan and all fees and other Obligations (other than contingent indemnification obligations not yet due and payable) payable hereunder shall have been paid in full, each of Holdings and the Borrower covenants and agrees with the Lenders that:

Section 6.01. Financial Statements.

The Borrower will furnish to the Administrative Agent, on behalf of each Lender:

(a) within ninety (90) days after the end of each Fiscal Year (or, in the case of the Fiscal Year ending December 31, 2026, within one hundred twenty (120) days), the audited consolidated balance sheet and related statements of operations, stockholders' equity and cash flows of the Borrower and its Subsidiaries as of the end of and for such Fiscal Year, setting forth in each case in comparative form the figures for the previous Fiscal Year (commencing with the Fiscal Year ending December 31, 2027), all reported on by RSM US LLP or another independent registered public accounting firm of recognized national standing (without a "going concern" or like qualification or exception and without any qualification or exception as to the scope of such audit, other than any such qualification or exception resulting solely from an upcoming maturity of the Loans or any potential inability to satisfy a financial maintenance covenant in a future period) to the effect that such consolidated financial statements present fairly in all material respects the financial condition and results of operations of the Borrower and its Subsidiaries on a consolidated basis in accordance with GAAP consistently applied;

(b) within forty-five (45) days after the end of each of the first three Fiscal Quarters of each Fiscal Year (or, in the case of each of the Fiscal Quarters ending June 30, 2026 and September 30, 2026, within sixty (60) days), the unaudited consolidated balance sheet and related statements of operations and cash flows of the Borrower and its Subsidiaries as of the end of and for such Fiscal Quarter and the then elapsed portion of the Fiscal Year, setting forth in each case in comparative form the figures for the corresponding period or periods of (or, in the case of the balance sheet, as of the end of) the previous Fiscal Year (or, prior to the first anniversary of the Closing Date, the corresponding historical periods of the Target), all certified by a Financial Officer as presenting fairly in all material respects the financial condition and results of operations of the Borrower and its Subsidiaries on a consolidated basis in accordance with GAAP consistently applied, subject to normal year-end audit adjustments and the absence of footnotes;

(c) within thirty (30) days after the end of each calendar month (other than any calendar month that is also the last month of a Fiscal Quarter), an unaudited consolidated balance sheet and related statement of operations of the Borrower and its Subsidiaries as of the end of and for such month, in the form customarily prepared by management of the Borrower, certified by a Financial Officer;

(d) within sixty (60) days after the beginning of each Fiscal Year (commencing with the Fiscal Year beginning January 1, 2027), a consolidated budget for such Fiscal Year on a quarterly basis (including a projected consolidated balance sheet and related statements of projected operations and cash flows and a projected calculation of the Financial Covenants as of the end of each Fiscal Quarter of such Fiscal Year), together with a summary of the material assumptions on which such budget is based; and

(e) if, as a result of any change in accounting principles and policies from those used in the preparation of the Audited Financial Statements, the consolidated financial statements of the Borrower delivered pursuant to paragraph (a) or (b) of this Section will differ in any material respect from the consolidated financial statements that would have been delivered pursuant to such paragraphs had no such change in accounting principles and policies been made, then, together with the first delivery of financial statements pursuant to such paragraphs following such change, a schedule reconciling such financial statements to the financial statements that would have been so delivered absent such change.

Documents required to be delivered pursuant to this Section 6.01 may be delivered electronically (including by posting to a Platform) and, if so delivered, shall be deemed to have been delivered on the date on which the Borrower posts such documents, or provides a link thereto, in a manner accessible to the Administrative Agent.

Section 6.02. Certificates; Other Information.

The Borrower will furnish to the Administrative Agent, on behalf of each Lender:

(a) concurrently with any delivery of financial statements under Section 6.01(a) or (b), a Compliance Certificate of a Financial Officer of the Borrower (i) certifying as to whether a Default has occurred and, if a Default has occurred, specifying the details thereof and any action taken or proposed to be taken with respect thereto, (ii) setting forth reasonably detailed calculations demonstrating compliance with each of the Financial Covenants (including, in reasonable detail, the calculation of Consolidated EBITDA, Consolidated Total Net Debt, the Total Net Leverage Ratio, the Fixed Charge Coverage Ratio and, if a Liquidity Trigger Period was in effect during the period covered thereby, Liquidity as of the last day of each calendar month during such period), (iii) setting forth the Total Net Leverage Ratio and corresponding Pricing Level for purposes of determining the Applicable Margin, (iv) setting forth a calculation of Excess Cash Flow and the required prepayment, if any, pursuant to Section 2.09(c) (in the case of the Compliance Certificate delivered with the financial statements under Section 6.01(a)), (v) setting forth the amount of the Available Amount as of the date of such certificate and reasonably detailed calculations of the usage of the baskets set forth in Sections 7.01, 7.02, 7.04, 7.05, 7.06 and 7.07 since the date of the most recently delivered Compliance Certificate, (vi) identifying any Specified Equity Contribution made, and any exercise of the Cure Right, during the period covered thereby and stating the number of Fiscal Quarters in which the Cure Right has been exercised and the number of exercises remaining and (vii) stating whether any change in GAAP or in the application thereof has occurred since the date of the Audited Financial Statements that affects the financial statements delivered therewith and, if any such change has occurred, specifying the effect of such change on such financial statements;

(b) promptly after the same become publicly available, copies of all periodic and other reports, proxy statements and other materials filed by Holdings, the Borrower or any Restricted Subsidiary with the SEC or with any national securities exchange, or distributed by the Borrower to the holders of its Equity Interests generally, as the case may be;

(c) promptly following any request therefor, (i) such other information regarding the operations, business affairs and financial condition of Holdings, the Borrower or any Restricted Subsidiary, or compliance with the terms of any Loan Document, as the Administrative Agent (on its own behalf or on behalf of any Lender) may reasonably request and (ii) information and documentation reasonably requested by the Administrative Agent or any Lender for purposes of compliance with applicable "know your customer" and anti-money laundering rules and regulations, including the USA PATRIOT Act and the Beneficial Ownership Regulation.

Section 6.03. Notices of Material Events.

The Borrower will furnish to the Administrative Agent, on behalf of each Lender, prompt (and in any event within five (5) Business Days after a Responsible Officer obtains knowledge thereof) written notice of the following:

(a) the occurrence of any Default;

(b) the filing or commencement of any action, suit or proceeding by or before any arbitrator or Governmental Authority against or affecting Holdings, the Borrower or any Restricted Subsidiary that could reasonably be expected to result in liability to the Loan Parties in excess of $7,500,000 or that seeks injunctive relief that, if granted, could reasonably be expected to result in a Material Adverse Effect;

(c) the occurrence of any ERISA Event that, alone or together with any other ERISA Events that have occurred, could reasonably be expected to result in liability of the Borrower and the Restricted Subsidiaries in an aggregate amount exceeding $7,500,000;

(d) the occurrence of any Casualty Event, or series of related Casualty Events, resulting in Net Proceeds in excess of $2,500,000; and

(e) any other development that has resulted in, or could reasonably be expected to result in, a Material Adverse Effect.

Each notice delivered under this Section shall be accompanied by a statement of a Responsible Officer setting forth the details of the event or development requiring such notice and any action taken or proposed to be taken with respect thereto.

Section 6.04. Existence; Conduct of Business.

Each of Holdings and the Borrower will, and will cause each Restricted Subsidiary to, do or cause to be done all things necessary to preserve, renew and keep in full force and effect its legal existence and the rights, licenses, permits, privileges, franchises and Intellectual Property material to the conduct of the business of the Borrower and the Restricted Subsidiaries, taken as a whole; *provided* that the foregoing shall not prohibit any merger, consolidation, liquidation, dissolution or Disposition permitted under Article VII.

Section 6.05. Books and Records; Inspection Rights; Lender Calls.

(a) The Borrower will, and will cause each Restricted Subsidiary to, keep proper books of record and account in which full, true and correct entries in all material respects are made of all dealings and transactions in relation to its business and activities. The Borrower will, and will cause each Restricted Subsidiary to, permit any representatives designated by the Administrative Agent (on its own behalf or on behalf of any Lender), upon reasonable prior notice and during normal business hours, to visit and inspect its properties, to examine and make extracts from its books and records, and to discuss its affairs, finances and condition with its officers and independent accountants (subject to the right of the Borrower to participate in any such discussions with such accountants); *provided* that, so long as no Event of Default has occurred and is continuing, (i) the Loan Parties shall not be required to reimburse the costs and expenses of more than one such visit and inspection during any Fiscal Year and (ii) the Administrative Agent shall use reasonable efforts to coordinate such visits and inspections so as to minimize interference with the business of the Borrower. During the continuance of an Event of Default, the Administrative Agent (or its representatives) may conduct such visits and inspections at any time and from time to time at the expense of the Borrower.

(b) Within fifteen (15) Business Days after the delivery of financial statements pursuant to Section 6.01(a) or (b), the Borrower will hold a conference call or telephonic meeting with the Administrative Agent and the Lenders (at a time reasonably acceptable to the Administrative Agent and the Borrower) to review the financial results of the Borrower and its Subsidiaries for the applicable period, at which a Financial Officer shall be available to answer questions of the Administrative Agent and the Lenders.

Section 6.06. Compliance with Laws.

Each of Holdings and the Borrower will, and will cause each Restricted Subsidiary to, comply with all laws, rules, regulations and orders of any Governmental Authority applicable to it or its property (including Environmental Laws and ERISA), except where the failure to do so, individually or in the aggregate, could not reasonably be expected to result in a Material Adverse Effect. The Borrower will maintain in effect and enforce policies and procedures reasonably designed to promote compliance by Holdings, the Borrower, the Restricted Subsidiaries and their respective directors, officers, employees and agents with applicable Sanctions and Anti-Corruption Laws.

Section 6.07. Insurance.

The Borrower will, and will cause each Restricted Subsidiary to, maintain, with financially sound and reputable insurance companies, insurance in such amounts, with such deductibles and against such risks as are customarily maintained by companies engaged in the same or similar businesses operating in the same or similar locations, and will furnish to the Administrative Agent, upon reasonable request, information in reasonable detail as to the insurance so maintained. The Borrower will cause all property and casualty insurance policies of the Loan Parties to name the Collateral Agent as additional insured or lender loss payee, as applicable, and to provide that the applicable insurer will endeavor to give the Collateral Agent thirty (30) days’ (or, in the case of cancellation for non-payment of premium, ten (10) days') prior written notice of cancellation.

Section 6.08. Payment of Taxes.

The Borrower will, and will cause each Restricted Subsidiary to, pay its Tax liabilities before the same shall become delinquent or in default, except where (a) the validity or amount thereof is being contested in good faith by appropriate proceedings and the Borrower or such Restricted Subsidiary has set aside on its books adequate reserves with respect thereto in accordance with GAAP or (b) the failure to make payment could not reasonably be expected, individually or in the aggregate, to result in a Material Adverse Effect.

Section 6.09. Maintenance of Properties.

The Borrower will, and will cause each Restricted Subsidiary to, keep and maintain all property material to the conduct of its business in good working order and condition, ordinary wear and tear excepted, except where the failure to do so could not reasonably be expected, individually or in the aggregate, to result in a Material Adverse Effect.

Section 6.10. Additional Subsidiaries.

If any additional Subsidiary (other than an Excluded Subsidiary) is formed or acquired after the Closing Date, or if any Subsidiary ceases to be an Excluded Subsidiary, or if any Unrestricted Subsidiary is redesignated as a Restricted Subsidiary (and is not an Excluded Subsidiary), the Borrower will, within thirty (30) days (or such longer period as the Administrative Agent may reasonably agree) after such Subsidiary is formed or acquired or ceases to be an Excluded Subsidiary or is so redesignated, notify the Administrative Agent thereof and cause the Collateral and Guarantee Requirement to be satisfied with respect to such Subsidiary and the Equity Interests thereof.

Section 6.11. Use of Proceeds.

The proceeds of the Initial Term Loans will be used solely to finance the Transactions. The proceeds of the Delayed Draw Term Loans will be used solely as provided in Section 2.01(b). The proceeds of the Revolving Loans will be used for working capital and other general corporate purposes of the Borrower and the Restricted Subsidiaries (including Permitted Acquisitions and Capital Expenditures); *provided* that not more than $10,000,000 of Revolving Loans may be borrowed on the Closing Date, and then only to fund working capital needs of the Borrower and upfront fees and original issue discount in respect of the credit facilities established hereby. No part of the proceeds of any Loan will be used, whether directly or indirectly, (a) for any purpose that entails a violation of any of the regulations of the Board of Governors of the Federal Reserve System, including Regulations T, U and X, (b) in furtherance of an offer, payment, promise to pay, or authorization of the payment or giving of money, or anything else of value, to any Person in violation of any Anti-Corruption Laws, (c) for the purpose of funding, financing or facilitating any activities, business or transaction of or with any Sanctioned Person, or in any Sanctioned Country, in each case in violation of Sanctions, or (d) in any manner that would result in the violation of any Sanctions applicable to any party hereto.

Section 6.12. Further Assurances.

Each of Holdings and the Borrower will, and will cause each other Loan Party to, execute any and all further documents, financing statements, agreements and instruments, and take all such further actions (including the filing and recording of financing statements and other documents), that may be required under any applicable law, or that the Administrative Agent or the Required Lenders may reasonably request, to cause the Collateral and Guarantee Requirement to be and remain satisfied, all at the expense of the Loan Parties.

Section 6.13. Post-Closing Matters.

The Borrower will, and will cause each other applicable Loan Party to, take each of the actions set forth on Schedule 6.13 within the time period specified therefor on such Schedule (or such longer period as the Administrative Agent may reasonably agree), including (a) delivering deposit account control agreements with respect to each deposit account and securities account of the Loan Parties (other than Excluded Accounts) within sixty (60) days after the Closing Date, (b) delivering evidence of the insurance endorsements required by Section 6.07 within thirty (30) days after the Closing Date and (c) delivering the certificates and instruments, and making the filings, required to perfect the pledge of 65% of the voting Equity Interests of Meridian Composites de México, S. de R.L. de C.V. within ninety (90) days after the Closing Date.

ARTICLE VII

NEGATIVE COVENANTS

Until the Commitments have expired or been terminated and the principal of and interest on each Loan and all fees and other Obligations (other than contingent indemnification obligations not yet due and payable) payable hereunder have been paid in full, each of Holdings and the Borrower covenants and agrees with the Lenders that:

Section 7.01. <u>Indebtedness.</u>

The Borrower will not, and will not permit any Restricted Subsidiary to, create, incur, assume or permit to exist any Indebtedness, except:

(a) Indebtedness created under the Loan Documents (including any PIK Interest capitalized pursuant to Section 2.06(d) and any Incremental Term Loans and Incremental Revolving Commitments incurred pursuant to Section 2.14);

(b) Indebtedness existing on the Closing Date and set forth on Schedule 7.01 and any Permitted Refinancing thereof;

(c) Indebtedness of the Borrower to any Restricted Subsidiary and of any Restricted Subsidiary to the Borrower or any other Restricted Subsidiary; *provided* that (i) such Indebtedness shall be evidenced by, and subordinated to the Obligations pursuant to, the Intercompany Note to the extent required thereby and (ii) the aggregate principal amount of Indebtedness of Restricted Subsidiaries that are not Loan Parties owing to the Loan Parties (when taken together with Investments in such Restricted Subsidiaries made in reliance on Section 7.05(f)) shall not exceed the amount permitted by Section 7.05(f);

(d) Guarantees by the Borrower of Indebtedness of any Restricted Subsidiary and by any Restricted Subsidiary of Indebtedness of the Borrower or any other Restricted Subsidiary, in each case to the extent the Indebtedness so Guaranteed is permitted by this Section 7.01; *provided* that no Restricted Subsidiary that is not a Loan Party shall Guarantee the Obligations or any Junior Indebtedness unless it becomes a Subsidiary Guarantor;

(e) Indebtedness (including Capital Lease Obligations) incurred to finance the acquisition, construction, repair, replacement or improvement of any fixed or capital assets, and any Permitted Refinancing thereof; *provided* that the aggregate principal amount of Indebtedness permitted by this clause (e) shall not exceed $15,000,000 at any time outstanding;

(f) Indebtedness of any Person that becomes a Restricted Subsidiary (or of any Person not in existence on the Closing Date that is merged or consolidated with or into a Restricted Subsidiary) after the Closing Date in connection with a Permitted Acquisition, and any Permitted Refinancing thereof; *provided* that (i) such Indebtedness exists at the time such Person becomes a Restricted Subsidiary (or is so merged or consolidated) and is not created in contemplation of or in connection with such Person becoming a Restricted Subsidiary (or such merger or consolidation), (ii) immediately after giving Pro Forma Effect thereto, the Total Net Leverage Ratio shall not exceed the lesser of (x) 5.25 to 1.00 and (y) the maximum Total Net Leverage Ratio then permitted under Section 8.01 *minus* 0.25, and (iii) the aggregate principal amount of such Indebtedness of Restricted Subsidiaries that are not Loan Parties shall not exceed $10,000,000 at any time outstanding;

(g) Indebtedness under Swap Agreements entered into in the ordinary course of business to hedge or mitigate risks to which the Borrower or any Restricted Subsidiary has actual exposure (other than those in respect of Equity Interests) and not for speculative purposes;

(h) unsecured Indebtedness of the Borrower or any Subsidiary Guarantor; *provided* that (i) immediately after giving Pro Forma Effect to the incurrence thereof, the Total Net Leverage Ratio shall not exceed 5.25 to 1.00, (ii) such Indebtedness does not mature, and does not require any scheduled amortization or other scheduled payment of principal (other than customary offers to repurchase upon a change of control, asset sale or casualty event and customary acceleration rights after an event of default), prior to the date that is ninety-one (91) days after the Maturity Date, (iii) such Indebtedness is not Guaranteed by any Person that is not a Loan Party and (iv) the covenants, events of default and other terms thereof (other than pricing, fees and optional prepayment or redemption terms), taken as a whole, are not more favorable to the holders of such Indebtedness than the corresponding terms of this Agreement are to the Lenders (as determined in good faith by the Borrower);

(i) Indebtedness in respect of workers' compensation claims, self-insurance obligations, performance, bid, surety, appeal and similar bonds and completion guarantees, bank guarantees, warehouse receipts and similar obligations, in each case provided in the ordinary course of business, and Indebtedness arising from the honoring by a bank or other financial institution of a check, draft or similar instrument drawn against insufficient funds in the ordinary course of business or arising from cash management, netting, overdraft and similar services in the ordinary course of business;

(j) Indebtedness in respect of earn-outs, purchase price adjustments, indemnification obligations and similar obligations incurred in connection with any Permitted Acquisition or any Disposition permitted hereunder;

(k) Indebtedness consisting of the financing of insurance premiums in the ordinary course of business; and

(l) other Indebtedness in an aggregate principal amount not exceeding $20,000,000 at any time outstanding.

Section 7.02. Liens.

The Borrower will not, and will not permit any Restricted Subsidiary to, create, incur, assume or permit to exist any Lien on any property or asset now owned or hereafter acquired by it, except:

(a) Liens created pursuant to the Loan Documents;

(b) Permitted Encumbrances (as defined below);

(c) Liens existing on the Closing Date and set forth on Schedule 7.02, and any modification, replacement, renewal or extension thereof; *provided* that the Lien does not extend to any additional property (other than after-acquired property that is affixed or incorporated into the property covered by such Lien and proceeds and products thereof) and the renewed or extended Indebtedness secured thereby is permitted by Section 7.01(b);

(d) Liens on fixed or capital assets acquired, constructed, repaired, replaced or improved by the Borrower or any Restricted Subsidiary securing Indebtedness permitted by Section 7.01(e); *provided* that such Liens attach only to the assets so acquired, constructed, repaired, replaced or improved (and accessions thereto and proceeds thereof) and secure only the Indebtedness incurred to finance the same;

(e) Liens on property of any Person that becomes a Restricted Subsidiary after the Closing Date securing Indebtedness permitted by Section 7.01(f); *provided* that such Liens exist at the time such Person becomes a Restricted Subsidiary, are not created in contemplation thereof and attach only to the property subject thereto at such time (and accessions thereto and proceeds thereof);

(f) Liens securing judgments for the payment of money not constituting an Event of Default under Section 9.01(g);

(g) deposits and pledges of cash securing obligations in respect of Swap Agreements permitted by Section 7.01(g) and Liens in favor of depository banks and securities intermediaries arising under account agreements or applicable law and rights of setoff, in each case in the ordinary course of business;

(h) Liens on assets that are not Collateral securing Indebtedness or other obligations in an aggregate principal amount not exceeding $5,000,000 at any time outstanding; and

(i) other Liens securing Indebtedness or other obligations in an aggregate principal amount not exceeding $10,000,000 at any time outstanding; *provided* that no Lien permitted solely by this clause (i) shall attach to any Material Intellectual Property.

Notwithstanding the foregoing, neither the Borrower nor any Restricted Subsidiary shall create, incur, assume or permit to exist any Lien on any Collateral securing any Junior Indebtedness unless such Lien is junior in priority to the Liens securing the Obligations pursuant to an intercreditor agreement reasonably satisfactory to the Administrative Agent. As used herein, "**Permitted Encumbrances**" means (i) Liens imposed by law for Taxes that are not yet delinquent or are being contested in good faith by appropriate proceedings and for which adequate reserves are maintained in accordance with GAAP, (ii) carriers', warehousemen's, mechanics', materialmen's, repairmen's, landlords' and other like Liens imposed by law, arising in the ordinary course of business and securing obligations that are not overdue by more than thirty (30) days or are being contested in good faith by appropriate proceedings, (iii) pledges and deposits made in the ordinary course of business in compliance with workers' compensation, unemployment insurance and other social security laws or regulations, (iv) deposits to secure the performance of bids, trade contracts, leases, statutory obligations, surety and appeal bonds, performance bonds and other obligations of a like nature, in each case in the ordinary course of business, (v) easements, zoning restrictions, rights-of-way, minor survey exceptions and similar encumbrances on real property imposed by law or arising in the ordinary course of business that do not secure any monetary obligations and do not materially detract from the value of the affected property or materially interfere with the ordinary conduct of business of the Borrower and the Restricted Subsidiaries, taken as a whole, (vi) leases, subleases, licenses and sublicenses (including of Intellectual Property, other than exclusive licenses of Material Intellectual Property except as permitted by Section 7.14) granted to third parties in the ordinary course of business that do not materially interfere with the ordinary conduct of business of the Borrower and the Restricted Subsidiaries, taken as a whole, and (vii) customary rights of first refusal, voting, redemption, transfer or other restrictions with respect to Equity Interests in joint ventures; *provided* that the term "Permitted Encumbrances" shall not include any Lien securing Indebtedness for borrowed money.

Section 7.03. Fundamental Changes; Holdings Covenant.

(a) The Borrower will not, and will not permit any Restricted Subsidiary to, merge into or consolidate with any other Person, or permit any other Person to merge into or consolidate with it, or liquidate or dissolve, except that, if at the time thereof and immediately after giving effect thereto no Default shall have occurred and be continuing, (i) any Restricted Subsidiary may merge or consolidate with or into the Borrower in a transaction in which the Borrower is the surviving entity, (ii) any Restricted Subsidiary may merge or consolidate with or into any other Restricted Subsidiary in a transaction in which the surviving entity is a Restricted Subsidiary; *provided* that if either party to such transaction is a Loan Party, the surviving entity shall be a Loan Party, (iii) any Restricted Subsidiary (other than the Borrower) may liquidate or dissolve, or change its legal form, if the Borrower determines in good faith that such action is in the best interests of the Borrower and is not materially disadvantageous to the Lenders, and (iv) any Restricted Subsidiary may merge, consolidate, liquidate or dissolve in order to consummate a Disposition permitted by Section 7.04 or an Investment permitted by Section 7.05 (with any merger or consolidation to effect a Permitted Acquisition being permitted so long as the surviving entity is the Borrower or a Restricted Subsidiary that, if the target was to become a Loan Party, complies with Section 6.10).

(b) The Borrower will not, and will not permit any Restricted Subsidiary to, engage to any material extent in any business other than businesses of the type conducted by the Target and its subsidiaries on the Closing Date and businesses reasonably related, complementary, incidental or ancillary thereto or reasonable extensions thereof.

(c) Holdings will not (i) conduct, transact or otherwise engage in any business or operations, (ii) incur any Indebtedness or Liens or (iii) own or acquire any material assets, in each case other than (w) the ownership of the Equity Interests of the Borrower and activities incidental thereto, including the performance of its obligations under the Loan Documents to which it is a party, (x) the maintenance of its legal existence, the performance of administrative, tax, accounting, legal and reporting functions and other activities incidental to its status as a passive holding company (including the receipt and further distribution of Restricted Payments permitted hereunder), (y) the issuance of its own Equity Interests and the making of capital contributions to the Borrower and (z) Liens created pursuant to the Loan Documents and Indebtedness constituting its Guarantee of the Obligations.

Section 7.04. Dispositions.

The Borrower will not, and will not permit any Restricted Subsidiary to, make any Disposition, except:

(a) Dispositions of inventory, used, obsolete, worn out or surplus equipment, and cash and Cash Equivalents, in each case in the ordinary course of business;

(b) Dispositions to the Borrower or a Restricted Subsidiary; *provided* that any Disposition by a Loan Party to a Restricted Subsidiary that is not a Loan Party shall be (i) for fair market value, with at least 75% of the consideration therefor paid in cash, or (ii) treated as an Investment subject to, and permitted under, Section 7.05;

(c) Dispositions of accounts receivable in connection with the collection or compromise thereof in the ordinary course of business;

(d) leases, subleases, licenses and sublicenses of real or personal property (including non-exclusive licenses of Intellectual Property) in the ordinary course of business that do not materially interfere with the business of the Borrower and the Restricted Subsidiaries, taken as a whole, and in each case subject to Section 7.14;

(e) Dispositions resulting from any Casualty Event;

(f) Dispositions of Investments in joint ventures to the extent required by, or made pursuant to, customary buy/sell arrangements between the joint venture parties set forth in the applicable joint venture agreement; and

(g) other Dispositions for fair market value; *provided* that (i) the aggregate fair market value of all property Disposed of in reliance on this clause (g) in any Fiscal Year shall not exceed $25,000,000, (ii) at least 75% of the consideration for each such Disposition shall be paid in cash or Cash Equivalents at closing (it being agreed that, for purposes of this clause (ii), (x) the assumption by the transferee of Indebtedness or other liabilities (other than liabilities subordinated to the Obligations) of the Borrower or a Restricted Subsidiary for which the Borrower and the Restricted Subsidiaries are validly released by all applicable creditors and (y) Designated Non-Cash Consideration in an aggregate amount, taken together with all other Designated Non-Cash Consideration then outstanding, not exceeding $7,500,000 (with each item of Designated Non-Cash Consideration being valued at the time of receipt and without giving effect to subsequent changes in value), shall, in each case, be deemed to be cash; "**Designated Non-Cash Consideration**" means non-cash consideration received in connection with a Disposition pursuant to this clause (g) that is designated as Designated Non-Cash Consideration in a certificate of a Financial Officer delivered to the Administrative Agent, less the amount of cash or Cash Equivalents received in connection with a subsequent sale of, or collection on, such Designated Non-Cash Consideration), (iii) no Event of Default shall have occurred and be continuing at the time of, or would result from, such Disposition (or, in the case of a Disposition made pursuant to a binding agreement entered into when no Event of Default existed, at the time such agreement was entered into) and (iv) the Net Proceeds thereof shall be applied to the extent required by Section 2.09(a). Notwithstanding the foregoing, no Disposition of Material Intellectual Property shall be permitted under this Section 7.04 except as expressly permitted by Section 7.14.

Section 7.05. Investments, Loans, Advances and Acquisitions.

The Borrower will not, and will not permit any Restricted Subsidiary to, purchase or acquire (including pursuant to any merger or consolidation) any Equity Interests, evidences of indebtedness or other securities of, make any loans or advances to, Guarantee any obligations of, or make any investment or any other interest in, any other Person, or make any other Investment in any other Person, except:

(a) Investments in cash and Cash Equivalents;

(b) Investments existing on the Closing Date and set forth on Schedule 7.05, and any modification, replacement, renewal or extension thereof to the extent not involving any additional Investment;

(c) Investments by the Borrower or any Restricted Subsidiary in the Borrower or any Restricted Subsidiary that is a Loan Party (including any Person that becomes a Loan Party in connection with such Investment);

(d) loans or advances to officers, directors and employees of the Borrower or any Restricted Subsidiary made in the ordinary course of business for travel, relocation and related expenses or other business purposes, in an aggregate principal amount not exceeding $2,000,000 at any time outstanding;

(e) Permitted Acquisitions;

(f) Investments by any Loan Party in Restricted Subsidiaries that are not Loan Parties, and Investments in joint ventures, in an aggregate amount (valued at cost, without giving effect to subsequent increases or decreases in value but net of cash returns of capital) not exceeding $15,000,000 at any time outstanding (when taken together with intercompany Indebtedness incurred in reliance on Section 7.01(c)(ii));

(g) other Investments in an aggregate amount (valued at cost, without giving effect to subsequent increases or decreases in value but net of cash returns of capital) not exceeding $15,000,000 at any time outstanding;

(h) other Investments so long as, immediately after giving Pro Forma Effect thereto, (i) no Default or Event of Default has occurred and is continuing or would result therefrom and (ii) the Total Net Leverage Ratio does not exceed 4.25 to 1.00;

(i) Investments consisting of Swap Agreements permitted under Section 7.01(g);

(j) Investments consisting of extensions of trade credit, and receipt of notes, securities or other obligations in connection with the bankruptcy or reorganization of, or settlement of delinquent accounts or disputes with, customers and suppliers, in each case in the ordinary course of business;

(k) Investments in Unrestricted Subsidiaries in an aggregate amount (valued at cost, without giving effect to subsequent increases or decreases in value but net of cash returns of capital) not exceeding $10,000,000 at any time outstanding, subject in all respects to Sections 7.13 and 7.14;

(l) Guarantees of Indebtedness permitted by Section 7.01 and performance guarantees not constituting Guarantees of Indebtedness, in each case in the ordinary course of business; and

(m) other Investments in an aggregate amount not exceeding the Available Amount at the time such Investment is made; *provided* that, at the time of and immediately after giving effect to any such Investment, (i) no Default or Event of Default has occurred and is continuing or would result therefrom and (ii) solely with respect to the portion of the Available Amount described in clauses (b), (d) and (e) of the definition thereof, the Total Net Leverage Ratio, determined on a Pro Forma Basis, does not exceed 5.00 to 1.00.

Section 7.06. <u>Restricted Payments.</u>

The Borrower will not, and will not permit any Restricted Subsidiary to, declare or make, or agree to declare or make, directly or indirectly, any Restricted Payment, except:

(a) each Restricted Subsidiary may make Restricted Payments to the Borrower and to other Restricted Subsidiaries (and, in the case of a Restricted Payment by a non-Wholly Owned Restricted Subsidiary, to the Borrower and any other Restricted Subsidiary and to each other owner of Equity Interests of such Restricted Subsidiary ratably based on their relative ownership interests);

(b) the Borrower may make Restricted Payments to Holdings (i) in respect of overhead, legal, accounting and other professional fees and expenses of Holdings, franchise taxes and similar fees and expenses required to maintain the organizational existence of Holdings, and customary fees and reimbursements of directors of Holdings, in an aggregate amount not exceeding $1,500,000 in any Fiscal Year, and (ii) the proceeds of which shall be used by Holdings to pay federal, state, local and foreign income Taxes attributable to the income of the Borrower and the Restricted Subsidiaries, in an amount not to exceed the income Taxes that the Borrower and the Restricted Subsidiaries would have been required to pay for the relevant period on a stand-alone basis;

(c) the Borrower may pay management, monitoring, consulting, transaction and advisory fees and related expenses to the Sponsor (or its management affiliate) pursuant to the Sponsor Management Agreement; *provided* that (i) the aggregate amount of management and monitoring fees paid in cash pursuant to this clause (c) shall not exceed $1,250,000 in any Fiscal Year (plus reasonable out-of-pocket expenses) and (ii) no such fees (other than expense reimbursements) shall be paid in cash during the continuance of an Event of Default or a Liquidity Trigger Period (it being agreed that any amount not paid as a result of this clause (ii) may accrue and be paid, without interest, when no Event of Default or Liquidity Trigger Period is continuing and no Event of Default or Liquidity Trigger Period would result therefrom);

(d) the Borrower may make Restricted Payments to Holdings the proceeds of which are used to repurchase, redeem or otherwise acquire or retire for value Equity Interests of Holdings (or any Parent Entity) held by any current or former officer, director, employee or consultant of the Borrower or any Restricted Subsidiary (or their respective estates, heirs or permitted transferees) upon the death, disability, retirement or termination of employment or service of any such Person or pursuant to any equity plan, equity option plan or other benefit plan or any equity subscription or equityholders' agreement; *provided* that the aggregate amount of Restricted Payments made pursuant to this clause (d) shall not exceed $2,500,000 in any Fiscal Year, with unused amounts in any Fiscal Year carried over to the immediately succeeding Fiscal Year (but to no other Fiscal Year) up to a maximum of $5,000,000 in any Fiscal Year;

(e) the Borrower and each Restricted Subsidiary may make Restricted Payments in the form of (or with the proceeds of substantially concurrent issuances of) Qualified Equity Interests, and may make cash payments in lieu of issuing fractional shares in an aggregate amount not exceeding $500,000;

(f) the Borrower may make other Restricted Payments in an aggregate amount not exceeding $7,500,000 during the term of this Agreement; *provided* that, at the time of and immediately after giving effect to any such Restricted Payment, no Default or Event of Default has occurred and is continuing or would result therefrom;

(g) the Borrower may make other Restricted Payments in an aggregate amount not exceeding the Available Amount at the time such Restricted Payment is made; *provided* that, at the time of and immediately after giving effect to any such Restricted Payment, (i) no Default or Event of Default has occurred and is continuing or would result therefrom and (ii) the Total Net Leverage Ratio, determined on a Pro Forma Basis, does not exceed 4.50 to 1.00; and

(h) the Borrower may make other Restricted Payments so long as, at the time of and immediately after giving effect thereto, (i) no Default or Event of Default has occurred and is continuing or would result therefrom and (ii) the Total Net Leverage Ratio, determined on a Pro Forma Basis, does not exceed 3.75 to 1.00.

Section 7.07. Payments and Amendments of Junior Indebtedness.

(a) The Borrower will not, and will not permit any Restricted Subsidiary to, make, directly or indirectly, any payment or other distribution (whether in cash, securities or other property) of or in respect of principal of or interest on any Junior Indebtedness, or any payment or other distribution (whether in cash, securities or other property), including any sinking fund or similar deposit, on account of the purchase, redemption, retirement, acquisition, cancellation, defeasance or termination of any Junior Indebtedness, except:

(i) payments of regularly scheduled interest, and payment of principal at scheduled maturity, in each case to the extent then permitted under the subordination provisions, if any, applicable thereto;

(ii) refinancings of Junior Indebtedness with the proceeds of any Permitted Refinancing thereof or in exchange for, or with the proceeds of substantially concurrent issuances of, Qualified Equity Interests;

(iii) payments of intercompany Junior Indebtedness owed to the Borrower or any Restricted Subsidiary, to the extent permitted by the subordination provisions of the Intercompany Note;

(iv) other payments and distributions in respect of Junior Indebtedness in an aggregate amount not exceeding the Available Amount at the time such payment or distribution is made; *provided* that, at the time of and immediately after giving effect to any such payment or distribution, (x) no Default or Event of Default has occurred and is continuing or would result therefrom and (y) the Total Net Leverage Ratio, determined on a Pro Forma Basis, does not exceed 4.50 to 1.00;

(v) other payments and distributions in respect of Junior Indebtedness in an aggregate amount not exceeding $5,000,000 during the term of this Agreement; *provided* that, at the time of and immediately after giving effect to any such payment or distribution, no Default or Event of Default has occurred and is continuing or would result therefrom; and

(vi) payments of principal and interest on the AHYDO "catch-up" date to the extent necessary to avoid the application of Section 163(e)(5) of the Code to any Junior Indebtedness.

(b) The Borrower will not, and will not permit any Restricted Subsidiary to, amend, modify or waive any term of any document governing Junior Indebtedness if the effect of such amendment, modification or waiver (taken as a whole) is materially adverse to the interests of the Lenders, including any amendment that (i) shortens the maturity or weighted average life to maturity thereof to a date prior to the date that is ninety-one (91) days after the Maturity Date, (ii) increases the interest rate or cash-pay component thereof by more than 2.00% per annum (other than imposition of a customary default rate) or (iii) amends, modifies or waives any subordination provision thereof in a manner adverse to the Lenders.

Section 7.08. Transactions with Affiliates.

The Borrower will not, and will not permit any Restricted Subsidiary to, sell, lease, license or otherwise transfer any assets to, or purchase, lease, license or otherwise acquire any assets from, or otherwise engage in any other transaction with, any of its Affiliates involving aggregate payments or consideration in excess of $1,000,000 with respect to any transaction or series of related transactions, except (a) transactions at prices and on terms and conditions not less favorable to the Borrower or such Restricted Subsidiary, taken as a whole, than could be obtained on an arm's-length basis from unrelated third parties, (b) transactions between or among the Borrower and the Restricted Subsidiaries not involving any other Affiliate, (c) payments permitted under Section 7.06(c) and the performance of the Sponsor Management Agreement as in effect on the Closing Date (or as amended in a manner not materially adverse to the Lenders), (d) any Restricted Payment permitted by Section 7.06 and any Investment permitted by Section 7.05, (e) the issuance of Equity Interests of Holdings or the Borrower to the Sponsor, the Permitted Holders or any officer, director, employee or consultant of the Borrower or any Restricted Subsidiary, and the granting and performance of customary registration rights, (f) employment, severance, compensation, indemnification and benefit arrangements with officers, directors, employees and consultants in the ordinary course of business and (g) the Transactions and the payment of fees and expenses related thereto.

Section 7.09. Burdensome Agreements.

The Borrower will not, and will not permit any Restricted Subsidiary to, directly or indirectly, enter into, incur or permit to exist any agreement or other arrangement that prohibits, restricts or imposes any condition upon (a) the ability of the Borrower or any Restricted Subsidiary to create, incur or permit to exist any Lien upon any of its property or assets to secure the Obligations or (b) the ability of any Restricted Subsidiary to pay dividends or other distributions with respect to any of its Equity Interests, to make or repay loans or advances to the Borrower or any other Restricted Subsidiary, to Guarantee the Obligations or to transfer any of its property or assets to the Borrower or any other Restricted Subsidiary; *provided* that the foregoing shall not apply to (i) restrictions and conditions imposed by law or by any Loan Document, (ii) restrictions and conditions existing on the Closing Date and identified on Schedule 7.01 or Schedule 7.05 (and any extension, renewal, amendment or modification thereof not expanding the scope of any such restriction or condition in any material respect), (iii) customary restrictions and conditions contained in agreements relating to a Disposition permitted hereunder of a Restricted Subsidiary or assets, pending such Disposition, and applicable solely to such Restricted Subsidiary or assets, (iv) restrictions or conditions imposed by any agreement governing Indebtedness permitted by Section 7.01(e), (f) or (h), to the extent such restrictions or conditions are customary for such Indebtedness and, in the case of clause (h), are not materially more restrictive, taken as a whole, than the corresponding restrictions and conditions in this Agreement, (v) customary provisions in leases, licenses, joint venture agreements and other contracts restricting the assignment, subletting or transfer thereof (or of the property subject thereto) and (vi) restrictions on cash or other deposits or net worth imposed by customers or suppliers under contracts entered into in the ordinary course of business.

Section 7.10. Amendments of Organizational Documents and Certain Other Documents.

The Borrower will not, and will not permit any Restricted Subsidiary to, (a) amend, modify or waive any of its rights under its certificate or articles of formation or incorporation, operating agreement, by-laws or other organizational documents, or (b) amend, modify or waive any term of the Acquisition Agreement (after the Closing Date) or the Sponsor Management Agreement, in each case under this clause (b) or the foregoing clause (a), to the extent such amendment, modification or waiver, taken as a whole, would be materially adverse to the interests of the Lenders.

Section 7.11. Sale and Leaseback Transactions.

The Borrower will not, and will not permit any Restricted Subsidiary to, enter into any arrangement, directly or indirectly, whereby it shall sell or transfer any property, real or personal, used or useful in its business, whether now owned or hereafter acquired, and thereafter rent or lease such property or other property that it intends to use for substantially the same purpose or purposes as the property sold or transferred, except for any such arrangement with respect to property the fair market value of which, when aggregated with the fair market value of all other property subject to arrangements entered into in reliance on this Section 7.11, does not exceed $7,500,000; *provided* that any such arrangement shall be treated as a Disposition subject to Section 7.04(g) (including the requirement to apply Net Proceeds pursuant to Section 2.09(a)) and, if the resulting lease constitutes a Capital Lease Obligation, as Indebtedness subject to Section 7.01(e).

Section 7.12. Swap Agreements.

The Borrower will not, and will not permit any Restricted Subsidiary to, enter into any Swap Agreement, except Swap Agreements entered into in the ordinary course of business to hedge or mitigate risks to which the

Borrower or any Restricted Subsidiary has actual exposure (other than those in respect of Equity Interests of the Borrower or any of its Subsidiaries) and not for speculative purposes.

Section 7.13. Designation of Unrestricted Subsidiaries.

The Borrower may designate any Restricted Subsidiary as an Unrestricted Subsidiary, and may redesignate any Unrestricted Subsidiary as a Restricted Subsidiary, in each case after the Closing Date and upon written notice to the Administrative Agent; *provided* that:

(a) immediately before and after giving effect to such designation or redesignation, no Default or Event of Default has occurred and is continuing or would result therefrom, and the Borrower shall be in compliance with the Financial Covenants determined on a Pro Forma Basis as of the last day of the most recently ended Test Period (and shall have delivered to the Administrative Agent a certificate of a Financial Officer setting forth reasonably detailed calculations demonstrating such compliance);

(b) the designation of a Restricted Subsidiary as an Unrestricted Subsidiary shall constitute an Investment by the Borrower therein at the date of designation in an amount equal to the fair market value of the Borrower's direct and indirect Investment therein, and such Investment must be permitted at such time under Section 7.05(k) or (m) (and shall reduce availability thereunder);

(c) no Subsidiary may be designated as an Unrestricted Subsidiary if (i) it owns, holds or has an exclusive license to any Material Intellectual Property or owns any Equity Interests of, or holds any Indebtedness of or Lien on any property of, the Borrower or any Restricted Subsidiary that owns, holds or has an exclusive license to any Material Intellectual Property, (ii) it is a "restricted subsidiary" or a guarantor (or similarly situated obligor) under any Junior Indebtedness or any other Material Indebtedness or (iii) after giving effect to such designation, the Consolidated EBITDA attributable to all Unrestricted Subsidiaries (determined as if each such Unrestricted Subsidiary were a Restricted Subsidiary) for the most recently ended Test Period would exceed 7.5% of Consolidated EBITDA for such Test Period;

(d) no Unrestricted Subsidiary may own any Equity Interests of the Borrower or any Restricted Subsidiary; and

(e) the redesignation of any Unrestricted Subsidiary as a Restricted Subsidiary shall constitute (i) the incurrence at the time of such redesignation of any Indebtedness and Liens of such Subsidiary existing at such time and (ii) a return on the Investment made pursuant to clause (b) above in an amount equal to the fair market value at the date of such redesignation of the Borrower's Investment in such Subsidiary.

The Borrower acknowledges and agrees, for itself and on behalf of each Restricted Subsidiary, that no Unrestricted Subsidiary shall receive, by way of Investment, Disposition, distribution, license or otherwise, directly or indirectly, any Material Intellectual Property, and that any purported transfer, assignment, contribution, Disposition or exclusive license of Material Intellectual Property to an Unrestricted Subsidiary shall be null and void *ab initio*.

Section 7.14. Material Intellectual Property.

Notwithstanding anything to the contrary in this Agreement or any other Loan Document, the Borrower will not, and will not permit any Restricted Subsidiary to, directly or indirectly, (a) sell, assign, transfer, convey, contribute, exclusively license or otherwise Dispose of any Material Intellectual Property to (i) any Unrestricted Subsidiary, (ii) any Restricted Subsidiary that is not a Loan Party or (iii) any Affiliate of the Borrower that is not a Loan Party, (b) designate as an Unrestricted Subsidiary any Subsidiary that owns, holds or has an exclusive license to any Material Intellectual Property, or (c) permit any Material Intellectual Property to become subject to any Lien other than Liens created pursuant to the Loan Documents and non-consensual Permitted Encumbrances arising by operation of law; *provided* that the foregoing shall not prohibit (x) non-exclusive licenses of Material Intellectual Property granted in the ordinary course of business, (y) exclusive licenses of Material Intellectual Property limited to specified fields of use or specified jurisdictions outside the United States, granted to Persons other than Affiliates of the Borrower in the ordinary course of business and on arm's-length terms, so long as such licenses, individually and in the aggregate, do not materially impair the value of the Collateral or the conduct of the business of the Borrower and the Restricted Subsidiaries, taken as a whole, and (z) transfers of Material Intellectual Property between or among the Borrower and the Subsidiary Guarantors. Any purported transaction in violation of this Section 7.14 shall be null and void *ab initio*. For the avoidance of doubt, this Section 7.14 may not be amended, waived or otherwise modified without the written consent of each Lender adversely affected thereby.

Section 7.15. Fiscal Year.

The Borrower will not change its Fiscal Year-end from December 31, or change its method of determining Fiscal Quarters, without the prior written consent of the Administrative Agent (such consent not to be unreasonably withheld, conditioned or delayed); *provided* that, upon any such change, the Borrower and the Administrative Agent may make such adjustments to this Agreement (including the covenant levels set forth in Section 8.01) as are necessary to reflect such change, and such adjustments shall become effective without the consent of any other party hereto.

ARTICLE VIII
FINANCIAL COVENANTS

Until the Commitments have expired or been terminated and the principal of and interest on each Loan and all fees and other Obligations (other than contingent indemnification obligations not yet due and payable) payable hereunder have been paid in full, each of Holdings and the Borrower covenants and agrees with the Lenders that:

Section 8.01. Maximum Total Net Leverage Ratio.

The Borrower will not permit the Total Net Leverage Ratio as of the last day of any Test Period ending on any date set forth below, commencing with the Test Period ending September 30, 2026, to exceed the ratio set forth opposite such date below:

Test Period Ending	Maximum Total Net Leverage Ratio
September 30, 2026 through June 30, 2027	6.75 to 1.00
September 30, 2027 through June 30, 2028	6.25 to 1.00
September 30, 2028 through June 30, 2029	5.75 to 1.00
September 30, 2029 and each Test Period ending thereafter	5.25 to 1.00

Section 8.02. Minimum Fixed Charge Coverage Ratio.

The Borrower will not permit the Fixed Charge Coverage Ratio as of the last day of any Test Period, commencing with the Test Period ending September 30, 2026, to be less than 1.10 to 1.00.

Section 8.03. Minimum Liquidity.

The Borrower will not permit Liquidity, as of the last day of any calendar month ending during a Liquidity Trigger Period, to be less than $15,000,000. The Borrower shall deliver to the Administrative Agent, within fifteen (15) days after the end of each calendar month ending during a Liquidity Trigger Period, a certificate of a Financial Officer setting forth a reasonably detailed calculation of Liquidity as of the last day of such month.

Section 8.04. Equity Cure Right.

Notwithstanding anything to the contrary in this Agreement (including Article IX), in the event that the Borrower fails (or, but for the operation of this Section 8.04, would fail) to comply with the requirements of Section 8.01 or 8.02 as of the last day of any Fiscal Quarter, at any time after the beginning of such Fiscal Quarter until the expiration of the tenth (10th) Business Day after the date on which the Compliance Certificate with respect to such Fiscal Quarter is required to be delivered pursuant to Section 6.02(a), Holdings or the Borrower shall have the right to issue Qualified Equity Interests for cash or otherwise receive cash contributions in respect of Qualified Equity Interests (the amount of any such cash so received and designated as a Specified Equity Contribution, the "**Cure Amount**"), and upon receipt by the Borrower of such Cure Amount (the exercise of such right, the "**Cure Right**") the Financial Covenants set forth in Sections 8.01 and 8.02 shall be recalculated giving effect to the following pro forma adjustments:

(a) Consolidated EBITDA for such Fiscal Quarter (and for each Test Period that includes such Fiscal Quarter) shall be increased, solely for purposes of determining compliance with Sections 8.01 and 8.02 (including for purposes of any Pro Forma Basis determination of compliance therewith as a condition to taking any action under this Agreement) and not for any other purpose (including the determination of the Applicable Margin, the ECF Percentage, the Available Amount or any basket or ratio test other than the Financial Covenants), by an amount equal to the Cure Amount; and

(b) if, after giving effect to the foregoing recalculation, the Borrower shall then be in compliance with the requirements of Sections 8.01 and 8.02, the Borrower shall be deemed to have satisfied the requirements of such Sections as of the relevant date of determination with the same effect as though there had been no failure to comply therewith on such date, and the applicable breach or default of such Sections that had occurred (or would have occurred) shall be deemed cured for all purposes of this Agreement.

Notwithstanding the foregoing, (i) in each four (4) consecutive Fiscal Quarter period, there shall be at least two (2) Fiscal Quarters in respect of which no Cure Right is exercised, (ii) the Cure Right shall not be exercised more than five (5) times during the term of this Agreement, (iii) the Cure Amount with respect to any exercise of the Cure Right shall be no greater than the amount required for purposes of causing compliance with Sections 8.01 and 8.02 as of the relevant date of determination, (iv) the Cure Amount shall be disregarded for purposes of calculating Consolidated Total Net Debt (and any repayment of Indebtedness with the proceeds of any Cure Amount shall be disregarded for purposes of determining compliance with the Financial Covenants) for the Fiscal Quarter in respect of which the Cure Right was exercised and each of the three immediately succeeding Fiscal Quarters, (v) the Cure Right may not be exercised in respect of any failure to comply with Section 8.03, and (vi) during the period commencing on the last day of any Fiscal Quarter in respect of which the Borrower has delivered a notice of its intent to exercise the Cure Right and ending on the tenth (10th) Business Day after the date on which the related Compliance Certificate is required to be delivered, neither the Administrative Agent nor any Lender shall exercise any remedy under Section 9.02 or any other Loan Document solely on the basis of the relevant failure to comply with Section 8.01 or 8.02 (it being understood that, during such period, the Lenders shall have no obligation to make any Loan unless and until the Cure Amount is actually received by the Borrower).

ARTICLE IX
EVENTS OF DEFAULT

Section 9.01. <u>Events of Default.</u>

If any of the following events ("**Events of Default**") shall occur:

(a) the Borrower shall fail to pay any principal of any Loan when and as the same shall become due and payable, whether at the due date thereof or at a date fixed for prepayment thereof or otherwise;

(b) the Borrower shall fail to pay any interest on any Loan, any fee or any other amount (other than an amount referred to in clause (a) of this Section) payable under this Agreement or any other Loan Document, when and as the same shall become due and payable, and such failure shall continue unremedied for a period of three (3) Business Days;

(c) any representation or warranty made or deemed made by or on behalf of any Loan Party in or in connection with any Loan Document or any amendment or modification thereof or waiver thereunder, or in any report, certificate, financial statement or other document furnished pursuant to or in connection with any Loan Document or any amendment or modification thereof or waiver thereunder, shall prove to have been incorrect in any material respect (or, if qualified by materiality or Material Adverse Effect, in any respect) when made or deemed made;

(d) any Loan Party shall fail to observe or perform any covenant, condition or agreement contained in Section 6.01, 6.02(a), 6.03(a), 6.04 (with respect to the existence of Holdings or the Borrower), 6.05(b), 6.10, 6.11 or 6.13, in Article VII or in Article VIII (subject, in the case of Sections 8.01 and 8.02, to the Cure Right set forth in Section 8.04, and it being agreed that a breach of any Financial Covenant is subject to cure only as provided in Section 8.04);

(e) any Loan Party shall fail to observe or perform any covenant, condition or agreement contained in this Agreement (other than those specified in clause (a), (b) or (d) of this Section) or any other Loan Document, and such failure shall continue unremedied for a period of thirty (30) days after the earlier of (i) notice thereof from the Administrative Agent to the Borrower and (ii) a Responsible Officer of the Borrower obtaining knowledge thereof;

(f) the Borrower or any Restricted Subsidiary shall fail to make any payment (whether of principal or interest and regardless of amount) in respect of any Material Indebtedness, when and as the same shall become due and payable (after giving effect to any applicable grace period), or any event or condition occurs that results in any Material Indebtedness becoming due prior to its scheduled maturity or that enables or permits (with or without the giving of notice, the lapse of time or both) the holder or holders of any Material Indebtedness or any trustee or agent on its or their behalf to cause any Material Indebtedness to become due, or to require the prepayment, repurchase, redemption or defeasance thereof, prior to its scheduled maturity; *provided* that this clause (f) shall not apply to (i) secured Indebtedness that becomes due as a result of the voluntary sale or transfer of the property or assets securing such Indebtedness, if such sale or transfer is permitted hereunder, or (ii) any redemption, exchange, repurchase, conversion or settlement with respect to any Indebtedness that is convertible into Equity Interests pursuant to its terms unless such redemption, exchange, repurchase, conversion or settlement results from a default thereunder or an event of the type that constitutes an Event of Default;

(g) one or more judgments for the payment of money in an aggregate amount in excess of $7,500,000 (to the extent not covered by insurance as to which the applicable insurer has been notified and has not denied coverage) shall be rendered against the Borrower, any Restricted Subsidiary or any combination thereof and the same shall remain undischarged, unvacated, unbonded or unstayed for a period of forty-five (45) consecutive days, or any action shall be legally taken by a judgment creditor to attach or levy upon any assets of the Borrower or any Restricted Subsidiary to enforce any such judgment;

(h) an involuntary proceeding shall be commenced or an involuntary petition shall be filed seeking (i) liquidation, reorganization or other relief in respect of Holdings, the Borrower or any Material Subsidiary or its debts, or of a substantial part of its assets, under any Debtor Relief Law now or hereafter in effect or (ii) the appointment of a receiver, trustee, custodian, sequestrator, conservator or similar official for Holdings, the Borrower or any Material Subsidiary or for a substantial part of its assets, and, in any such case, such proceeding or petition shall continue undismissed and unstayed for sixty (60) days or an order or decree approving or ordering any of the foregoing shall be entered;

(i) Holdings, the Borrower or any Material Subsidiary shall (i) voluntarily commence any proceeding or file any petition seeking liquidation, reorganization or other relief under any Debtor Relief Law now or hereafter in effect, (ii) consent to the institution of, or fail to contest in a timely and appropriate manner, any proceeding or petition described in clause (h) of this Section, (iii) apply for or consent to the appointment of a receiver, trustee, custodian, sequestrator, conservator or similar official for Holdings, the Borrower or any Material Subsidiary or for a substantial part of its assets, (iv) file an answer admitting the material allegations of a petition filed against it in any such proceeding, (v) make a general assignment for the benefit of creditors or (vi) take any action for the purpose of effecting any of the foregoing;

(j) Holdings, the Borrower or any Material Subsidiary shall become unable, admit in writing its inability or fail generally to pay its debts as they become due;

(k) an ERISA Event shall have occurred that, in the opinion of the Required Lenders, when taken together with all other ERISA Events that have occurred, could reasonably be expected to result in a Material Adverse Effect;

(l) any Loan Document or any material provision thereof shall cease to be in full force and effect (other than in accordance with its terms or as a result of acts or omissions of the Administrative Agent or any Lender); any Loan Party shall deny or disaffirm in writing its obligations under any Loan Document; any Guarantee of the Obligations shall cease to be in full force and effect (other than in accordance with the terms of the Loan Documents); or any Lien purported to be created by any Collateral Document on any material portion of the Collateral shall cease to be, or shall be asserted in writing by any Loan Party not to be, a valid and perfected Lien with the priority required by the Collateral Documents (other than as a result of the failure of the Administrative Agent or the Collateral Agent to take any action within its control or to maintain possession of any Collateral delivered to it); or

(m) a Change of Control shall occur;

then, and in every such event (other than an event with respect to Holdings or the Borrower described in clause (h) or (i) of this Section), and at any time thereafter during the continuance of such event, the Administrative Agent may, and at the request of the Required Lenders shall, by notice to the Borrower, take either or both of the following actions, at the same or different times: (i) terminate the Commitments, and thereupon the Commitments shall terminate immediately, and (ii) declare the Loans then outstanding to be due and payable in whole (or in part, in which case any principal not so declared to be due and payable may thereafter be declared to be due and payable), and thereupon the principal of the Loans so declared to be due and payable, together with accrued interest thereon, the Prepayment Premium and all fees and other Obligations accrued hereunder, shall become due and payable immediately, without presentment, demand, protest or other notice of any kind, all of which are hereby waived by each Loan Party; and in case of any event with respect to Holdings or the Borrower described in clause (h) or (i) of this Section, the Commitments shall automatically terminate and the principal of the Loans then outstanding, together with accrued interest thereon, the Prepayment Premium and all fees and other Obligations accrued hereunder, shall automatically become due and payable, without presentment, demand, protest or other notice of any kind, all of which are hereby waived by each Loan Party.

Section 9.02. Remedies; Premium Upon Acceleration.

(a) Upon the occurrence and during the continuance of an Event of Default, the Administrative Agent and the Collateral Agent may, and at the request of the Required Lenders shall, exercise on behalf of the Secured Parties all rights and remedies available to them under the Loan Documents and applicable law, including all rights and remedies of a secured party under the UCC.

(b) Without limiting the generality of the foregoing or of the definition of "Prepayment Premium," and in view of the impracticability and extreme difficulty of ascertaining actual damages and by mutual agreement of the parties as to a reasonable calculation of each Lender's lost profits as a result thereof, if the Loans are accelerated or otherwise become due prior to their scheduled maturity, in each case as a result of an Event of Default (including upon the occurrence of a bankruptcy or insolvency event described in Section 9.01(h) or (i), including the acceleration of claims by operation of law), the Prepayment Premium that would have been payable if a voluntary prepayment of the Loans had been made on the date of such acceleration (or, in the case of a bankruptcy or insolvency event, on the date of commencement of the applicable proceeding) shall, to the extent permitted by applicable law, automatically be due and payable as though said Loans were voluntarily prepaid on such date, shall constitute part of the Obligations and shall be secured by the Collateral, in each case in view of the impracticability and extreme difficulty of ascertaining actual damages and by mutual agreement of the parties as to a reasonable calculation of each Lender's lost profits as a result thereof. Any Prepayment Premium payable in accordance with this Section 9.02(b) shall be presumed to be the liquidated damages sustained by each Lender as the result of the early termination of its Loans, and each Loan Party agrees that it is reasonable under the circumstances currently existing. EACH LOAN PARTY EXPRESSLY WAIVES (TO THE FULLEST EXTENT IT MAY LAWFULLY DO SO) THE PROVISIONS OF ANY PRESENT OR FUTURE STATUTE OR LAW THAT PROHIBITS OR MAY PROHIBIT THE COLLECTION OF THE FOREGOING PREPAYMENT PREMIUM IN CONNECTION WITH ANY SUCH ACCELERATION. Each Loan Party expressly agrees that (i) the Prepayment Premium is reasonable and is the product of an arm's-length transaction between sophisticated business entities ably represented by counsel, (ii) the Prepayment Premium shall be payable notwithstanding the then-prevailing market rates at the time payment is made, (iii) there has been a course of conduct between the Lenders and the Loan Parties giving specific consideration in this transaction for such agreement to pay the Prepayment Premium, (iv) the Loan Parties shall be estopped from claiming differently than as agreed to in this paragraph, (v) the agreement to pay the Prepayment Premium is a material inducement to the Lenders to provide the Commitments and make the Loans, and (vi) the Prepayment Premium represents a good faith, reasonable estimate and calculation of the lost profits or damages of the Lenders and that it would be impractical and extremely difficult to ascertain the actual amount of damages to the Lenders or profits lost by the Lenders as a result of such acceleration or early payment.

Section 9.03. Application of Proceeds.

After the exercise of remedies provided for in Section 9.02 (or after the Loans have automatically become immediately due and payable as set forth in Section 9.01), any amounts received on account of the Obligations shall be applied by the Administrative Agent in the following order: *first*, to payment of that portion of the Obligations constituting fees, indemnities, expenses and other amounts (including fees, charges and disbursements of counsel) payable to the Administrative Agent and the Collateral Agent in their respective capacities as such; *second*, to payment of that portion of the Obligations constituting fees, indemnities and other amounts (other than principal, premium and interest) payable to the Lenders, ratably among them in proportion to the respective amounts described in this clause *second* payable to them; *third*, to payment of that portion of the Obligations constituting accrued and unpaid interest on the Loans, ratably among the Lenders in proportion to the respective amounts described in this clause *third* payable to them; *fourth*, to payment of that portion of the Obligations constituting unpaid principal of the Loans and the Prepayment Premium, ratably among the Lenders in proportion to the respective amounts described in this clause *fourth* payable to them; *fifth*, to the payment of all other Obligations of the Loan Parties owing under or in respect of the Loan Documents that are due and payable to the Administrative Agent and the other Secured Parties, ratably based upon the respective aggregate amounts of all such Obligations owing to them; and *last*, the balance, if any, after all of the Obligations have been paid in full, to the Borrower or as otherwise required by law.

ARTICLE X
THE AGENTS

Section 10.01. Appointment and Authority.

Each of the Lenders hereby irrevocably appoints Argent Capital Administrative Services, LLC to act on its behalf as the Administrative Agent and the Collateral Agent hereunder and under the other Loan Documents and authorizes the Agents to take such actions on its behalf and to exercise such powers as are delegated to the Agents by the terms hereof and thereof, together with such actions and powers as are reasonably incidental thereto, including to execute and deliver the Collateral Documents and to hold, administer, enforce and release the Liens granted thereunder. The provisions of this Article are solely for the benefit of the Agents and the Lenders, and neither the Borrower nor any other Loan Party shall have rights as a third-party beneficiary of any of such provisions (other than Sections 10.06 and 10.10). It is understood and agreed that the use of the term "agent" herein or in any other Loan Document (or any other similar term) with reference to either Agent is not intended to connote any fiduciary or other implied (or express) obligations arising under agency doctrine of any applicable law, and is used merely as a matter of market custom and is intended to create or reflect only an administrative relationship between contracting parties.

Section 10.02. Rights as a Lender.

Any Person serving as an Agent hereunder shall have the same rights and powers in its capacity as a Lender as any other Lender and may exercise the same as though it were not an Agent, and the term "Lender" shall, unless otherwise expressly indicated or unless the context otherwise requires, include each Person serving as an Agent hereunder in its individual capacity. Such Person and its Affiliates may accept deposits from, lend money to, act as the financial advisor or in any other advisory capacity for and generally engage in any kind of business with the Borrower or any Subsidiary or other Affiliate thereof as if such Person were not an Agent hereunder and without any duty to account therefor to the Lenders.

Section 10.03. Exculpatory Provisions.

Neither Agent shall have any duties or obligations except those expressly set forth herein and in the other Loan Documents, and its duties hereunder shall be administrative in nature. Without limiting the generality of the foregoing, each Agent (a) shall not be subject to any fiduciary or other implied duties, regardless of whether a Default has occurred and is continuing, (b) shall not have any duty to take any discretionary action or exercise any discretionary powers, except discretionary rights and powers expressly contemplated hereby or by the other Loan Documents that such Agent is required to exercise as directed in writing by the Required Lenders (or such other number or percentage of the Lenders as shall be expressly provided for herein or in the other Loan Documents); *provided* that no Agent shall be required to take any action that, in its opinion or the opinion of its counsel, may expose such Agent to liability or that is contrary to any Loan Document or applicable law, including for the avoidance of doubt any action that may be in violation of the automatic stay under any Debtor Relief Law or that may effect a forfeiture, modification or termination of property of a Defaulting Lender in violation of any Debtor Relief Law, and (c) shall not, except as expressly set forth herein and in the other Loan Documents, have any duty to disclose, and shall not be liable for the failure to disclose, any information relating to the Borrower or any of its Affiliates that is communicated to or obtained by the Person serving as an Agent or any of its Affiliates in any capacity. Neither Agent shall be liable for any action taken or not taken by it (i) with the consent or at the request of the Required Lenders (or such other number or percentage of the Lenders as shall be necessary, or as such Agent shall believe in good faith shall be necessary, under the circumstances as provided in Sections 9.02 and 11.02) or (ii) in the absence of its own gross negligence or willful misconduct as determined by a court of competent jurisdiction by final and nonappealable judgment. Neither Agent shall be deemed to have knowledge of any Default unless and until written notice describing such Default is given to such Agent in writing by the Borrower or a Lender.

Section 10.04. Reliance by the Agents.

Each Agent shall be entitled to rely upon, and shall not incur any liability for relying upon, any notice, request, certificate, consent, statement, instrument, document or other writing (including any electronic message, Internet or intranet website posting or other distribution) believed by it to be genuine and to have been signed, sent or otherwise authenticated by the proper Person. Each Agent also may rely upon any statement made to it orally or by telephone and believed by it to have been made by the proper Person, and shall not incur any liability for relying thereon. In determining compliance with any condition hereunder to the making of a Loan that by its terms must be fulfilled to the satisfaction of a Lender, each Agent may presume that such condition is satisfactory to such Lender unless such Agent shall have received notice to the contrary from such Lender prior to the making of such Loan. Each Agent may consult with legal counsel (who may be counsel for the Borrower), independent accountants and other experts selected by it, and shall not be liable for any action taken or not taken by it in accordance with the advice of any such counsel, accountants or experts.

Section 10.05. Delegation of Duties.

Each Agent may perform any and all of its duties and exercise its rights and powers hereunder or under any other Loan Document by or through any one or more sub-agents appointed by such Agent. Each Agent and any such sub-agent may perform any and all of its duties and exercise its rights and powers by or through their respective Related Parties. The exculpatory provisions of this Article shall apply to any such sub-agent and to the Related Parties of each Agent and any such sub-agent.

Section 10.06. Resignation of Agent.

Either Agent may at any time give notice of its resignation to the Lenders and the Borrower. Upon receipt of any such notice of resignation, the Required Lenders shall have the right, with the consent of the Borrower (not to be unreasonably withheld or delayed, and not required during the continuance of an Event of Default under Section 9.01(a), (b), (h) or (i)), to appoint a successor. If no such successor shall have been so appointed and shall have accepted such appointment within thirty (30) days after the retiring Agent gives notice of its resignation, then the retiring Agent may (but shall not be obligated to), on behalf of the Lenders, appoint a successor Agent meeting the qualifications set forth above. Upon the acceptance of a successor's appointment as an Agent hereunder, such successor shall succeed to and become vested with all of the rights, powers, privileges and duties of the retiring Agent, and the retiring Agent shall be discharged from all of its duties and obligations hereunder and under the other Loan Documents. The fees payable by the Borrower to a successor Agent shall be the same as those payable to its predecessor unless otherwise agreed between the Borrower and such successor. After the retiring Agent's resignation hereunder, the provisions of this Article and Sections 11.03 and 11.12 shall continue in effect for the benefit of such retiring Agent, its sub-agents and their respective Related Parties in respect of any actions taken or omitted to be taken by any of them while the retiring Agent was acting as an Agent.

Section 10.07. Non-Reliance on Agents and Other Lenders.

Each Lender acknowledges that it has, independently and without reliance upon either Agent, the Lead Arranger or any other Lender or any of their Related Parties and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement. Each Lender also acknowledges that it will, independently and without reliance upon either Agent, the Lead Arranger or any other Lender or any of their Related Parties and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 10.08. No Other Duties; Lead Arranger.

Anything herein to the contrary notwithstanding, the Lead Arranger shall not have any powers, duties or responsibilities under this Agreement or any of the other Loan Documents, except in its capacity, as applicable, as an Agent or a Lender hereunder.

Section 10.09. Collateral Matters; Release of Liens and Guarantees.

(a) The Lenders irrevocably authorize the Collateral Agent, at its option and in its discretion, (i) to release any Lien on any property granted to or held by the Collateral Agent under any Loan Document (x) upon the termination of all Commitments and the payment in full of all Obligations (other than contingent indemnification obligations not yet due and payable), (y) that is sold or otherwise disposed of, or to be sold or otherwise disposed of, as part of or in connection with any sale or other disposition permitted under the Loan Documents to a Person that is not a Loan Party, or (z) subject to Section 11.02, if approved, authorized or ratified in writing by the Required Lenders (or such greater number of Lenders as may be required pursuant to Section 11.02), (ii) to subordinate any Lien on any property granted to or held by the Collateral Agent under any Loan Document to the holder of any Lien on such property that is permitted by Section 7.02(d) or (e) and (iii) to release any Subsidiary Guarantor from its obligations under the Loan Documents if such Person ceases to be a Restricted Subsidiary, or becomes an Excluded Subsidiary, in each case as a result of a transaction permitted under the Loan Documents. Upon request by the Collateral Agent at any time, the Required Lenders will confirm in writing the Collateral Agent's authority to release or subordinate its interest in particular types or items of property, or to release any Subsidiary Guarantor from its obligations, pursuant to this Section 10.09.

(b) The Collateral Agent shall not be responsible for or have a duty to ascertain or inquire into any representation or warranty regarding the existence, value or collectability of the Collateral, the existence, priority or perfection of the Collateral Agent's Lien thereon, or any certificate prepared by any Loan Party in connection therewith, nor shall the Collateral Agent be responsible or liable to the Lenders for any failure to monitor or maintain any portion of the Collateral.

Section 10.10. Erroneous Payments.

(a) If the Administrative Agent notifies a Lender or any Person who has received funds on behalf of a Lender (any such Lender or other recipient, a "**Payment Recipient**") that the Administrative Agent has determined in its sole discretion (whether or not after receipt of any notice under clause (b) of this Section) that any funds received by such Payment Recipient from the Administrative Agent or any of its Affiliates were erroneously transmitted to, or otherwise erroneously or mistakenly received by, such Payment Recipient (whether or not known to such Payment Recipient) (any such funds, whether transmitted or received as a payment, prepayment or repayment of principal, interest, fees, distribution or otherwise, individually and collectively, an "**Erroneous Payment**"), and demands the return of such Erroneous Payment (or a portion thereof), such Erroneous Payment shall at all times remain the property of the Administrative Agent pending its return or repayment as contemplated below, and such Payment Recipient shall (or, with respect to any Payment Recipient who received such funds on its behalf, shall cause such Payment Recipient to) promptly, but in no event later than two (2) Business Days thereafter, return to the Administrative Agent the amount of any such Erroneous Payment (or portion thereof) as to which such a demand was made, in same day funds (in the currency so received), together with interest thereon in respect of each day from and including the date such Erroneous Payment (or portion thereof) was received by such Payment Recipient to the date such amount is repaid to the Administrative Agent in same day funds at the greater of the federal funds effective rate and a rate determined by the Administrative Agent in accordance with banking industry rules on interbank compensation from time to time in effect. A notice of the Administrative Agent to any Payment Recipient under this clause (a) shall be conclusive, absent manifest error.

(b) Without limiting the immediately preceding clause (a), each Payment Recipient agrees that if it receives a payment, prepayment or repayment (whether received as a payment, prepayment or repayment of principal, interest, fees, distribution or otherwise) from the Administrative Agent (or any of its Affiliates) (i) that is in a different amount than, or on a different date from, that specified in a notice of payment, prepayment or repayment sent by the Administrative Agent (or any of its Affiliates) with respect to such payment, prepayment or repayment, (ii) that was not preceded or accompanied by a notice of payment, prepayment or repayment sent by the Administrative Agent (or any of its Affiliates), or (iii) that such Payment Recipient otherwise becomes aware was transmitted, or received, in error or by mistake (in whole or in part), then in each such case, an error shall be presumed to have been made (absent written confirmation from the Administrative Agent to the contrary) and such Payment Recipient shall promptly notify the Administrative Agent of such occurrence and, upon demand from the Administrative Agent, shall promptly, but in no event later than two (2) Business Days thereafter, return to the Administrative Agent the amount of any such erroneous payment (or portion thereof) that was demanded, together with interest as provided in clause (a) above.

(c) Each Lender hereby authorizes the Administrative Agent to set off, net and apply any and all amounts at any time owing to such Lender under any Loan Document, or otherwise payable or distributable by the Administrative Agent to such Lender from any source, against any amount due to the Administrative Agent under this Section 10.10 or under the indemnification provisions of this Agreement. In the event that an Erroneous Payment (or portion thereof) is not recovered by the Administrative Agent for any reason, after demand therefor in accordance with this Section, from any Lender that has received such Erroneous Payment (or portion thereof) (such unrecovered amount, an "**Erroneous Payment Return Deficiency**"), then at the sole election of the Administrative Agent, upon notice to such Lender, (i) such Lender shall be deemed to have assigned its Loans (but not its Commitments) of the relevant Class with respect to which such Erroneous Payment was made in an amount equal to the Erroneous Payment Return Deficiency (or such lesser amount as the Administrative Agent may specify) to the Administrative Agent or its designee at par, without any requirement as to minimum assignment amounts and without payment of any assignment fee, and the Administrative Agent shall succeed to all rights of such Lender in respect thereof, and (ii) the Administrative Agent may pursue all rights and remedies against such Lender at law or in equity, including a claim for breach of contract.

(d) The parties hereto agree that an Erroneous Payment shall not pay, prepay, repay, discharge or otherwise satisfy any Obligations owed by the Borrower or any other Loan Party, except, in each case, to the extent such Erroneous Payment is, and solely with respect to the amount of such Erroneous Payment that is, comprised of funds received by the Administrative Agent from the Borrower or any other Loan Party for the purpose of making such payment. Each party's obligations, agreements and waivers under this Section 10.10 shall survive the resignation or replacement of the Administrative Agent, any transfer of rights or obligations by, or the replacement of, a Lender, the termination of the Commitments and/or the repayment, satisfaction or discharge of all Obligations (or any portion thereof) under any Loan Document.

ARTICLE XI
MISCELLANEOUS

Section 11.01. Notices.

(a) Except in the case of notices and other communications expressly permitted to be given by telephone or electronic means, all notices and other communications provided for herein shall be in writing and shall be delivered by hand or overnight courier service, mailed by certified or registered mail or sent by email, to the applicable address or email address specified for the applicable party on Schedule 11.01 (or to such other address or email address as such party may hereafter specify by notice given in accordance with this Section). Notices delivered through electronic communications (including posting to a Platform) shall be effective as provided in paragraph (b) of this Section.

(b) Notices and other communications to the Lenders hereunder may be delivered or furnished by electronic communication (including email and posting to a Platform) pursuant to procedures approved by the Administrative Agent. The Administrative Agent or the Borrower may, in its discretion, agree to accept notices and other communications to it hereunder by electronic communications pursuant to procedures approved by it. Unless the Administrative Agent otherwise prescribes, (i) notices and other communications sent to an email address shall be deemed received upon the sender's receipt of an acknowledgement from the intended recipient (such as by the "return receipt requested" function, as available, return email or other written acknowledgement); *provided* that if such notice or other communication is not sent during the normal business hours of the recipient, such notice or communication shall be deemed to have been sent at the opening of business on the next Business Day for the recipient, and (ii) notices and other communications posted to a Platform shall be deemed received upon the deemed receipt by the intended recipient at its email address as described in the foregoing clause (i) of notification that such notice or communication is available and identifying the website address therefor.

Section 11.02. Waivers; Amendments.

(a) No failure or delay by the Administrative Agent, the Collateral Agent or any Lender in exercising any right or power hereunder or under any other Loan Document shall operate as a waiver thereof, nor shall any single or partial exercise of any such right or power, or any abandonment or discontinuance of steps to enforce such a right or power, preclude any other or further exercise thereof or the exercise of any other right or power. The rights and remedies of the Administrative Agent, the Collateral Agent and the Lenders hereunder and under the other Loan

Documents are cumulative and are not exclusive of any rights or remedies that they would otherwise have. No waiver of any provision of any Loan Document or consent to any departure by any Loan Party therefrom shall in any event be effective unless the same shall be permitted by paragraph (b) of this Section, and then such waiver or consent shall be effective only in the specific instance and for the purpose for which given. Without limiting the generality of the foregoing, the making of a Loan shall not be construed as a waiver of any Default, regardless of whether the Administrative Agent or any Lender may have had notice or knowledge of such Default at the time.

(b) Neither this Agreement nor any other Loan Document nor any provision hereof or thereof may be waived, amended or modified except, in the case of this Agreement, pursuant to an agreement or agreements in writing entered into by the Borrower and the Required Lenders (with the consent of the Administrative Agent in the case of any amendment to this Article XI or any other provision affecting the rights or duties of the Administrative Agent) or, in the case of any other Loan Document, pursuant to an agreement or agreements in writing entered into by the parties thereto with the consent of the Required Lenders; *provided* that no such agreement shall:

(i) extend or increase the Commitment of any Lender without the written consent of such Lender (it being understood that a waiver of any condition precedent or of any Default shall not constitute an extension or increase of any Commitment);

(ii) reduce the principal amount of any Loan, or reduce the rate of interest thereon (including by reducing or waiving the increase in the Applicable Margin applicable during a PIK Election Period), or reduce or waive the Prepayment Premium or any fees payable hereunder, without the written consent of each Lender directly and adversely affected thereby; *provided* that only the consent of the Required Lenders shall be necessary to (x) waive any obligation of the Borrower to pay default interest pursuant to Section 2.06(c) or (y) amend any financial covenant (or any defined term used therein), even if the effect of such amendment would be to reduce the rate of interest on any Loan or to reduce any fee payable hereunder;

(iii) postpone the scheduled date of payment of the principal amount of any Loan (including any scheduled amortization payment pursuant to Section 2.05(b)), or any interest thereon, or any fees payable hereunder, or reduce the amount of, waive or excuse any such payment, or postpone the scheduled date of expiration of any Commitment, without the written consent of each Lender directly and adversely affected thereby (it being understood that mandatory prepayments pursuant to Section 2.09 may be amended or waived with the consent of the Required Lenders);

(iv) change Section 2.11(a) or (b), Section 2.12(b) or Section 9.03 in a manner that would alter the pro rata sharing of payments, or the order of application of payments or proceeds, required thereby, without the written consent of each Lender directly and adversely affected thereby;

(v) change any of the provisions of this Section 11.02 or the definition of the term "Required Lenders" or any other provision of any Loan Document specifying the number or percentage of Lenders required to waive, amend or modify any rights thereunder or make any determination or grant any consent thereunder, without the written consent of each Lender;

(vi) release all or substantially all of the value of the Guarantees under the Guarantee and Collateral Agreement, or release all or substantially all of the Collateral from the Liens of the Collateral Documents, in each case without the written consent of each Lender (except as expressly provided in Section 10.09);

(vii) subordinate, or have the effect of subordinating, (x) the Obligations hereunder to any other Indebtedness or other obligation, in right of payment, or (y) the Liens securing the Obligations to Liens securing any other Indebtedness or other obligation, in each case without the written consent of each Lender directly and adversely affected thereby; *provided* that this clause (vii) shall not apply to (1) Liens permitted to be senior to the Liens securing the Obligations pursuant to Section 7.02(d) or (e) as in effect on the Closing Date or (2) any "debtor-in-possession" financing under any Debtor Relief Law to which each Lender directly and adversely affected thereby has consented; or

(viii) change the definition of “Premium Event” or Section 9.02(b), or otherwise alter the circumstances in which the Prepayment Premium is payable, in each case in a manner adverse to any Lender, without the written consent of each Lender directly and adversely affected thereby;

provided further that (A) no such agreement shall amend, modify or otherwise affect the rights or duties of the Administrative Agent or the Collateral Agent hereunder without the prior written consent of the Administrative Agent or the Collateral Agent, as applicable, (B) any Incremental Facility Amendment may be effected in accordance with Section 2.14 without the consent of any Lender other than the lenders providing the applicable Incremental Commitments, and (C) notwithstanding anything to the contrary herein, if the Borrower or any of its Affiliates (including any Affiliated Lender) offers to purchase, exchange, refinance, “roll up” or otherwise acquire or retire any Term Loans, or to provide any new money or replacement financing in connection with any amendment, waiver or modification of this Agreement that subordinates, or has the effect of subordinating, the Obligations or the Liens securing the Obligations as described in clause (vii) above (including pursuant to any “uptiering” or similar liability management transaction), such offer and the opportunity to participate in any such purchase, exchange, refinancing, roll up, retirement or new money or replacement financing (including any related fees) shall be made to all Lenders holding Term Loans on a pro rata basis and on the same terms and conditions.

(c) Notwithstanding anything to the contrary in this Section 11.02, (i) the Administrative Agent and the Borrower may amend, modify or supplement this Agreement or any other Loan Document, without the consent of any Lender, to cure any ambiguity, omission, mistake, defect or inconsistency, so long as the Lenders shall have received at least five (5) Business Days’ prior written notice thereof and the Administrative Agent shall not have received, within five (5) Business Days of the date of such notice, a written notice from the Required Lenders stating that the Required Lenders object thereto, (ii) amendments contemplated by Section 2.10(a) shall be effective as provided therein and (iii) the Administrative Agent and the Borrower may, without the consent of any Lender, enter into amendments or modifications to this Agreement or any other Loan Document, or enter into additional Loan Documents, in order to implement the provisions of Section 2.14 in accordance with the terms thereof.

Section 11.03. Expenses; Indemnity; Damage Waiver.

(a) The Borrower shall pay (i) all reasonable and documented out-of-pocket expenses incurred by the Administrative Agent, the Collateral Agent, the Lead Arranger and their respective Affiliates (limited, in the case of legal fees and expenses, to the reasonable and documented fees, charges and disbursements of one primary counsel and, if necessary, one local counsel in each applicable material jurisdiction) in connection with the syndication of the credit facilities provided for herein, the preparation, negotiation, execution, delivery and administration of the Loan Documents and any amendments, modifications or waivers of the provisions thereof (whether or not the transactions contemplated thereby shall be consummated), and (ii) all out-of-pocket expenses incurred by the Administrative Agent, the Collateral Agent or any Lender (limited, in the case of legal fees and expenses, to the fees, charges and disbursements of one primary counsel for the Agents and the Lenders, taken as a whole, one local counsel in each applicable material jurisdiction and, in the event of any actual or potential conflict of interest, one additional counsel for each group of similarly situated affected parties) in connection with the enforcement or protection of its rights in connection with the Loan Documents, including its rights under this Section, or in connection with the Loans made hereunder, including all such out-of-pocket expenses incurred during any workout, restructuring or negotiations in respect of such Loans.

(b) The Borrower shall indemnify the Administrative Agent, the Collateral Agent, the Lead Arranger and each Lender, and each Related Party of any of the foregoing Persons (each such Person being called an “**Indemnitee**”), against, and hold each Indemnitee harmless from, any and all losses, claims, damages, liabilities and related expenses (limited, in the case of legal fees and expenses, as set forth in paragraph (a)(ii) above) incurred by or asserted against any Indemnitee arising out of, in connection with, or as a result of (i) the execution or delivery of any Loan Document or any agreement or instrument contemplated thereby, the performance by the parties hereto of their respective obligations thereunder or the consummation of the Transactions or any other transactions contemplated hereby, (ii) any Loan or the use of the proceeds therefrom, (iii) any actual or alleged presence or Release of Hazardous Materials on or from any property owned or operated by the Borrower or any Subsidiary, or any Environmental Liability related in any way to the Borrower or any Subsidiary, or (iv) any actual or prospective claim, litigation, investigation or proceeding relating to any of the foregoing, whether based on contract, tort or any other theory, whether brought by a third party or by the Borrower or any other Loan Party, and regardless of whether any Indemnitee is a party thereto; *provided* that such indemnity shall not, as to any Indemnitee, be available to the extent that such losses, claims, damages, liabilities or related expenses (x) are determined by a court of competent jurisdiction by final and nonappealable judgment to have resulted from the gross negligence, bad faith or willful misconduct of such Indemnitee or a material breach by such Indemnitee of its express obligations under the applicable Loan Document or (y) arise out of any claim, litigation, investigation or proceeding that does not involve an act or omission of the Borrower or any of its Affiliates and is brought by an Indemnitee against another Indemnitee (other than any claim against an Agent or the Lead Arranger in its capacity as such).

(c) To the extent that the Borrower fails to pay any amount required to be paid by it to the Administrative Agent or the Collateral Agent under paragraph (a) or (b) of this Section, each Lender severally agrees to pay to the Administrative Agent or the Collateral Agent, as applicable, such Lender's Applicable Percentage (determined as of the time that the applicable unreimbursed expense or indemnity payment is sought) of such unpaid amount; *provided* that the unreimbursed expense or indemnified loss, claim, damage, liability or related expense, as the case may be, was incurred by or asserted against the Administrative Agent or the Collateral Agent in its capacity as such.

(d) To the fullest extent permitted by applicable law, no party hereto shall assert, and each party hereto hereby waives, any claim against any other party hereto and any Indemnitee, on any theory of liability, for special, indirect, consequential or punitive damages (as opposed to direct or actual damages) arising out of, in connection with, or as a result of, this Agreement, any other Loan Document or any agreement or instrument contemplated hereby or thereby, the Transactions, any Loan or the use of the proceeds thereof; *provided* that nothing in this paragraph (d) shall relieve the Borrower of any obligation it may have to indemnify an Indemnitee against special, indirect, consequential or punitive damages asserted against such Indemnitee by a third party. No Indemnitee shall be liable for any damages arising from the use by unintended recipients of any information or other materials distributed through telecommunications, electronic or other information transmission systems in connection with this Agreement or the other Loan Documents or the transactions contemplated hereby or thereby, except to the extent such damages are determined by a court of competent jurisdiction by final and nonappealable judgment to have resulted from the gross negligence, bad faith or willful misconduct of such Indemnitee.

(e) All amounts due under this Section shall be payable not later than fifteen (15) days after written demand therefor (accompanied by reasonable backup documentation).

Section 11.04. <u>Successors and Assigns.</u>

(a) The provisions of this Agreement shall be binding upon and inure to the benefit of the parties hereto and their respective successors and assigns permitted hereby, except that (i) neither Holdings nor the Borrower may assign or otherwise transfer any of its rights or obligations hereunder without the prior written consent of the Administrative Agent and each Lender (and any attempted assignment or transfer by Holdings or the Borrower without such consent shall be null and void) and (ii) no Lender may assign or otherwise transfer its rights or obligations hereunder except in accordance with this Section. Nothing in this Agreement, expressed or implied, shall be construed to confer upon any Person (other than the parties hereto, their respective successors and assigns permitted hereby, Participants to the extent provided in paragraph (d) of this Section and, to the extent expressly contemplated hereby, the Related Parties of each of the Administrative Agent, the Collateral Agent and the Lenders) any legal or equitable right, remedy or claim under or by reason of this Agreement.

(b) (i) Subject to the conditions set forth in clause (ii) below, any Lender may assign to one or more Eligible Assignees all or a portion of its rights and obligations under this Agreement (including all or a portion of its Commitments and the Loans at the time owing to it) with the prior written consent (such consent not to be unreasonably withheld, conditioned or delayed) of: (A) the Borrower; *provided* that the Borrower shall be deemed to have consented to any such assignment unless it shall have objected thereto by written notice to the Administrative Agent within ten (10) Business Days after having received notice thereof; *provided*, *further*, that no consent of the Borrower shall be required for an assignment (x) to a Lender, an Affiliate of a Lender or an Approved Fund or (y) if an Event of Default under Section 9.01(a), (b), (h) or (i) has occurred and is continuing, to any other Eligible Assignee; and (B) the Administrative Agent; *provided* that no consent of the Administrative Agent shall be required for an assignment of any Term Loan to a Lender, an Affiliate of a Lender or an Approved Fund.

(ii) Assignments shall be subject to the following additional conditions: (A) except in the case of an assignment to a Lender, an Affiliate of a Lender or an Approved Fund or an assignment of the entire remaining amount of the assigning Lender's Commitments or Loans of any Class, the amount of the Commitments or Loans of the assigning Lender subject to each such assignment (determined as of the date the Assignment and Assumption with respect to such assignment is delivered to the Administrative Agent) shall not be less than $1,000,000, unless each of the Borrower and the Administrative Agent otherwise consents (such consent not to be unreasonably withheld or delayed); (B) each partial assignment shall be made as an assignment of a proportionate part of all the assigning Lender's rights and obligations under this Agreement in respect of the Class of Commitments or Loans assigned; (C) the parties to each assignment shall execute and deliver to the Administrative Agent an Assignment and Assumption, together with a processing and recordation fee of $3,500 (which fee may be waived by the Administrative Agent in its sole discretion and shall not be payable in connection with an assignment to a Lender, an Affiliate of a Lender or an Approved Fund); (D) the assignee, if it is not a Lender, shall deliver to the Administrative Agent an Administrative Questionnaire and the documentation required by Section 3.01(f); (E) no assignment shall be made to any natural person (or a holding company, investment vehicle or trust for, or owned and operated for the primary benefit of, a natural person), any Defaulting Lender, any Disqualified Lender, Holdings, the Borrower or any of their respective Subsidiaries; and (F) no assignment shall be made to any Affiliated Lender or any Affiliate of the Sponsor except in accordance with paragraph (g) of this Section.

(iii) Subject to acceptance and recording thereof pursuant to paragraph (c) of this Section, from and after the effective date specified in each Assignment and Assumption, the assignee thereunder shall be a party hereto and, to the extent of the interest assigned by such Assignment and Assumption, have the rights and obligations of a Lender under this Agreement, and the assigning Lender thereunder shall, to the extent of the interest assigned by such Assignment and Assumption, be released from its obligations under this Agreement (and, in the case of an Assignment and Assumption covering all of the assigning Lender's rights and obligations under this Agreement, such Lender shall cease to be a party hereto but shall continue to be entitled to the benefits of Sections 3.01, 3.02, 3.03 and 11.03). Any assignment or transfer by a Lender of rights or obligations under this Agreement that does not comply with this Section shall be treated for purposes of this Agreement as a sale by such Lender of a participation in such rights and obligations in accordance with paragraph (d) of this Section (or, in the case of a purported assignment to a Disqualified Lender or a natural person, shall be null and void *ab initio*).

(c) The Administrative Agent, acting for this purpose as a non-fiduciary agent of the Borrower, shall maintain at one of its offices a copy of each Assignment and Assumption delivered to it and a register for the recordation of the names and addresses of the Lenders, and the Commitments of, and principal amounts (and stated interest, including capitalized PIK Interest) of the Loans owing to, each Lender pursuant to the terms hereof from time to time (the "**Register**"). The entries in the Register shall be conclusive absent manifest error, and the Borrower, the Administrative Agent and the Lenders shall treat each Person whose name is recorded in the Register pursuant to the terms hereof as a Lender hereunder for all purposes of this Agreement, notwithstanding notice to the contrary. The Register shall be available for inspection by the Borrower and, as to its own interest only, any Lender, at any reasonable time and from time to time upon reasonable prior notice. This Section 11.04(c) shall be construed so that the Loans are at all times maintained in "registered form" within the meaning of Sections 163(f), 871(h)(2) and 881(c)(2) of the Code.

(d) Any Lender may, without the consent of the Borrower or the Administrative Agent, sell participations to one or more banks or other entities (other than a natural person (or a holding company, investment vehicle or trust for, or owned and operated for the primary benefit of, a natural person), a Disqualified Lender, a Defaulting Lender, Holdings, the Borrower or any of their respective Subsidiaries or Affiliates (other than, subject to the limitations applicable to Affiliated Lenders under paragraph (g) of this Section applied *mutatis mutandis*, any Debt Fund Affiliate)) (each, a "**Participant**") in all or a portion of such Lender's rights and/or obligations under this Agreement; *provided* that (i) such Lender's obligations under this Agreement shall remain unchanged, (ii) such Lender shall remain solely responsible to the other parties hereto for the performance of such obligations and (iii) the Borrower, the Administrative Agent and the other Lenders shall continue to deal solely and directly with such Lender in connection with such Lender's rights and obligations under this Agreement. Any agreement or instrument pursuant to which a Lender sells such a participation shall provide that such Lender shall retain the sole right to enforce this Agreement and to approve any amendment, modification or waiver of any provision of this Agreement; *provided* that such agreement or instrument may provide that such Lender will not, without the consent of the Participant, agree to any amendment, modification or waiver described in clauses (i) through (viii) of the first proviso to Section 11.02(b) that directly and adversely affects such Participant. The Borrower agrees that each Participant shall be entitled to the benefits of Sections 3.01, 3.02 and 3.03 (subject to the requirements and limitations of such Sections, including the requirements under Section 3.01(f) (it being understood that the documentation required under Section 3.01(f) shall be delivered to the participating Lender)) to the same extent as if it were a Lender and had acquired its interest by assignment pursuant to paragraph (b) of this Section; *provided* that no Participant shall be entitled to receive any greater payment under Section 3.01 or 3.02 than the participating Lender would have been entitled to receive with respect to the participation sold to such Participant, except to the extent such entitlement to receive a greater payment results from a Change in Law that occurs after the Participant acquired the applicable participation. Each Lender that sells a participation shall, acting solely for this purpose as a non-fiduciary agent of the Borrower, maintain a register on which it enters the name and address of each Participant and the principal amounts (and stated interest) of each Participant's interest in the Loans or other obligations under this Agreement (the "**Participant Register**"); *provided* that no Lender shall have any obligation to disclose all or any portion of the Participant Register to any Person (including the identity of any Participant or any information relating to a Participant's interest in any Commitments, Loans or other obligations under any Loan Document) except to the extent that such disclosure is necessary to establish that such Commitment, Loan or other obligation is in registered form under Section 5f.103-1(c) of the United States Treasury Regulations. The entries in the Participant Register shall be conclusive absent manifest error.

(e) Any Lender may at any time pledge or assign a security interest in all or any portion of its rights under this Agreement to secure obligations of such Lender, including any pledge or assignment to secure obligations to a Federal Reserve Bank or other central banking authority; *provided* that no such pledge or assignment shall release such Lender from any of its obligations hereunder or substitute any such pledgee or assignee for such Lender as a party hereto.

(f) The list of Disqualified Lenders shall be made available by the Administrative Agent, upon request, to any Lender (or prospective assignee or Participant that has entered into a customary confidentiality undertaking) via the Platform or otherwise. Notwithstanding anything to the contrary herein, (i) any assignment or participation to a Disqualified Lender shall be null and void *ab initio*, and the Borrower shall be entitled to seek specific performance to unwind any such assignment or participation in addition to any other remedies available at law or in equity, (ii) upon becoming aware that a Disqualified Lender holds any Loans or Commitments, the Borrower may, at its sole expense and effort, (A) terminate any Commitment of such Disqualified Lender and repay all Obligations owing to such Disqualified Lender (without payment of any Prepayment Premium) and/or (B) require such Disqualified Lender to assign, without recourse, all of its interest hereunder to one or more Eligible Assignees at the lesser of (x) the principal amount thereof and (y) the amount that such Disqualified Lender paid therefor, in each case plus accrued and unpaid interest and fees, (iii) the designation of any Person as a Disqualified Lender after the Closing Date shall not apply retroactively to any Person that has previously acquired an assignment or participation in any Loan or Commitment and (iv) neither the Administrative Agent nor any of its Related Parties shall have any responsibility or liability for monitoring or enforcing the list of Disqualified Lenders or for any assignment or participation made to a Disqualified Lender.

(g) Notwithstanding anything to the contrary in this Agreement, any Affiliated Lender may purchase or otherwise acquire Term Loans (but not Revolving Commitments or Revolving Loans), and any Lender may assign Term Loans to an Affiliated Lender, subject to the following limitations: (i) any such purchase or acquisition shall be effected only (A) pursuant to one or more "Dutch auctions" or similar offers made available to all Lenders holding Term Loans of the applicable Class on a pro rata basis in accordance with customary procedures reasonably acceptable to the Administrative Agent or (B) through open market purchases; (ii) the aggregate outstanding principal amount of Term Loans held at any time by all Affiliated Lenders shall not exceed 25% of the aggregate outstanding principal amount of all Term Loans at such time (the "**Affiliated Lender Cap**"), and any purported acquisition in excess of the Affiliated Lender Cap shall be null and void to the extent of such excess; (iii) for purposes of any amendment, waiver, consent or other modification of, or any other vote with respect to, this Agreement or any other Loan Document, each Affiliated Lender shall be deemed to have voted its interest in the Loans in the same proportion as the allocation of voting with respect to such matter by Lenders that are not Affiliated Lenders, except with respect to any amendment, waiver, consent or other modification described in clauses (i) through (viii) of the first proviso to Section 11.02(b) that affects such Affiliated Lender, in its capacity as a Lender, in a manner that is disproportionate and adverse relative to the manner in which it affects other Lenders (in which case such Affiliated Lender's actual vote shall be required); (iv) no Affiliated Lender shall be entitled to (A) attend or participate in (including by receiving the materials prepared for) any meeting, conference call or correspondence among or between the Administrative Agent and/or any Lenders to which the Loan Parties and their representatives are not invited, (B) receive any report, analysis or other document prepared by or on behalf of the Administrative Agent or the Lenders or their respective advisors in their capacities as such or (C) make or bring (or participate in) any claim against the Administrative Agent, the Collateral Agent or any other Lender in its capacity as such with respect to any duties or obligations under the Loan Documents; (v) in any proceeding under any Debtor Relief Law involving any Loan Party, each Affiliated Lender hereby agrees that its interest in the Loans shall be deemed to be voted in the same proportion as the votes cast by Lenders that are not Affiliated Lenders, and each Affiliated Lender hereby irrevocably appoints the Administrative Agent as its proxy to cast such vote, in each case unless otherwise required by a court of competent jurisdiction or to the extent such deemed vote would be prohibited under Section 1126(e) of the Bankruptcy Code or other applicable law; and (vi) any Affiliated Lender may, at any time, contribute any Term Loans held by it to Holdings or the Borrower for no consideration or as a capital contribution, whereupon such Term Loans shall be automatically and permanently cancelled and shall no longer be outstanding for any purpose hereunder (and the Borrower shall promptly notify the Administrative Agent thereof). Each Affiliated Lender, by its acquisition of any Term Loan, shall be deemed to have acknowledged and agreed to the provisions of this paragraph (g). Notwithstanding the foregoing, the limitations set forth in clauses (ii) through (v) above (but not the limitations in clauses (i) and (vi)) shall not apply to any Debt Fund Affiliate; *provided* that, for purposes of determining whether the Required Lenders or any other requisite Lenders have consented to any amendment, waiver or other modification or taken any other action hereunder, Debt Fund Affiliates, in the aggregate, shall not be permitted to account for more than 49.9% of the amounts included in determining whether the Required Lenders or such other requisite Lenders have so consented or acted, with any excess deemed voted in the same proportion as the votes cast by Lenders that are not Debt Fund Affiliates.

Section 11.05. Survival.

All covenants, agreements, representations and warranties made by the Loan Parties in the Loan Documents and in the certificates or other instruments delivered in connection with or pursuant to this Agreement or any other Loan Document shall be considered to have been relied upon by the other parties hereto and shall survive the execution and delivery of the Loan Documents and the making of any Loans, regardless of any investigation made by any such other party or on its behalf and notwithstanding that the Administrative Agent or any Lender may have had notice or knowledge of any Default or incorrect representation or warranty at the time any credit is extended hereunder, and shall continue in full force and effect as long as the principal of or any accrued interest on any Loan or any fee or any other amount payable under this Agreement is outstanding and unpaid and so long as the Commitments have not expired or terminated. The provisions of Sections 3.01, 3.02, 3.03, 10.10 and 11.03 and Article X shall survive and remain in full force and effect regardless of the consummation of the transactions contemplated hereby, the repayment of the Loans, the expiration or termination of the Commitments or the termination of this Agreement or any provision hereof.

Section 11.06. Counterparts; Effectiveness; Electronic Execution.

This Agreement may be executed in counterparts (and by different parties hereto on different counterparts), each of which shall constitute an original, but all of which when taken together shall constitute a single contract. This Agreement shall become effective when it shall have been executed by the Administrative Agent and when the Administrative Agent shall have received counterparts hereof that, when taken together, bear the signatures of each of the other parties hereto, and thereafter shall be binding upon and inure to the benefit of the parties hereto and their respective successors and assigns. Delivery of an executed counterpart of a signature page of this Agreement by facsimile or other electronic imaging (including in .pdf format) shall be effective as delivery of a manually executed counterpart of this Agreement. The words "execution," "signed," "signature" and words of like import in any Loan Document shall be deemed to include electronic signatures and the keeping of records in electronic form, each of which shall be of the same legal effect, validity or enforceability as a manually executed signature or the use of a paper-based recordkeeping system, as the case may be, to the extent and as provided for in any applicable law, including the Federal Electronic Signatures in Global and National Commerce Act, the New York State Electronic Signatures and Records Act or any other similar state laws based on the Uniform Electronic Transactions Act.

Section 11.07. Severability.

Any provision of this Agreement held to be invalid, illegal or unenforceable in any jurisdiction shall, as to such jurisdiction, be ineffective to the extent of such invalidity, illegality or unenforceability without affecting the validity, legality and enforceability of the remaining provisions hereof, and the invalidity of a particular provision in a particular jurisdiction shall not invalidate such provision in any other jurisdiction. The parties shall endeavor in good-faith negotiations to replace the invalid, illegal or unenforceable provisions with valid provisions the economic effect of which comes as close as possible to that of the invalid, illegal or unenforceable provisions.

Section 11.08. Right of Setoff.

If an Event of Default shall have occurred and be continuing, each Lender and each of its Affiliates is hereby authorized at any time and from time to time, to the fullest extent permitted by law, to set off and apply any and all deposits (general or special, time or demand, provisional or final, in whatever currency) at any time held and other obligations (in whatever currency) at any time owing by such Lender or any such Affiliate to or for the credit or the account of the Borrower or any other Loan Party against any of and all the obligations of the Borrower or such Loan Party now or hereafter existing under this Agreement or any other Loan Document held by such Lender, irrespective of whether or not such Lender shall have made any demand under this Agreement or any other Loan Document and although such obligations of the Borrower or such Loan Party may be contingent or unmatured or are owed to a branch or office of such Lender different from the branch or office holding such deposit or obligated on such indebtedness; *provided* that in the event that any Defaulting Lender shall exercise any such right of setoff, (a) all amounts so set off shall be paid over immediately to the Administrative Agent for further application in accordance with the provisions of Section 2.13 and, pending such payment, shall be segregated by such Defaulting Lender from its other funds and deemed held in trust for the benefit of the Administrative Agent and the Lenders and (b) the Defaulting Lender shall provide promptly to the Administrative Agent a statement describing in reasonable detail the obligations owing to such Defaulting Lender as to which it exercised such right of setoff. The rights of each Lender and its Affiliates under this Section are in addition to other rights and remedies (including other rights of setoff) that such Lender or its Affiliates may have. Each Lender agrees to notify the Borrower and the Administrative Agent promptly after any such setoff and application; *provided* that the failure to give such notice shall not affect the validity of such setoff and application.

Section 11.09. Governing Law; Jurisdiction; Consent to Service of Process.

(a) THIS AGREEMENT AND THE OTHER LOAN DOCUMENTS (EXCEPT AS OTHERWISE EXPRESSLY PROVIDED THEREIN) AND ANY CLAIM, CONTROVERSY OR DISPUTE ARISING UNDER OR RELATED HERETO OR THERETO (WHETHER SOUNDING IN CONTRACT, TORT OR OTHERWISE) SHALL BE GOVERNED BY, AND CONSTRUED IN ACCORDANCE WITH, THE LAWS OF THE STATE OF NEW YORK, WITHOUT REGARD TO CONFLICTS OF LAW PRINCIPLES THAT WOULD RESULT IN THE APPLICATION OF THE LAW OF ANY OTHER JURISDICTION (OTHER THAN SECTIONS 5-1401 AND 5-1402 OF THE NEW YORK GENERAL OBLIGATIONS LAW); *PROVIDED* THAT THE DETERMINATION OF WHETHER THE ACQUISITION HAS BEEN CONSUMMATED IN ACCORDANCE WITH THE TERMS OF THE ACQUISITION AGREEMENT, AND CLAIMS OR DISPUTES ARISING OUT OF ANY SUCH DETERMINATION, SHALL BE GOVERNED BY, AND CONSTRUED IN ACCORDANCE WITH, THE LAWS OF THE STATE OF DELAWARE.

(b) Each party hereto irrevocably and unconditionally submits, for itself and its property, to the exclusive jurisdiction of the courts of the State of New York sitting in the Borough of Manhattan and of the United States District Court for the Southern District of New York, and any appellate court from any thereof, in any action or proceeding arising out of or relating to this Agreement or any other Loan Document, or for recognition or enforcement of any judgment, and each of the parties hereto irrevocably and unconditionally agrees that all claims in respect of any such action or proceeding shall be heard and determined in such New York State court or, to the fullest extent permitted by applicable law, in such Federal court. Each of the parties hereto agrees that a final judgment in any such action or proceeding shall be conclusive and may be enforced in other jurisdictions by suit on the judgment or in any other manner provided by law. Nothing in this Agreement or any other Loan Document shall affect any right that the Administrative Agent, the Collateral Agent or any Lender may otherwise have to bring any action or proceeding relating to this Agreement or any other Loan Document against any Loan Party or its properties in the courts of any jurisdiction in connection with the exercise of rights or remedies with respect to the Collateral or the enforcement of any judgment.

(c) Each party hereto irrevocably and unconditionally waives, to the fullest extent permitted by applicable law, any objection that it may now or hereafter have to the laying of venue of any action or proceeding arising out of or relating to this Agreement or any other Loan Document in any court referred to in paragraph (b) of this Section and the defense of an inconvenient forum to the maintenance of such action or proceeding in any such court. Each party hereto irrevocably consents to service of process in the manner provided for notices in Section 11.01. Nothing in this Agreement will affect the right of any party hereto to serve process in any other manner permitted by applicable law.

Section 11.10. Waiver of Jury Trial.

EACH PARTY HERETO HEREBY IRREVOCABLY WAIVES, TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, ANY RIGHT IT MAY HAVE TO A TRIAL BY JURY IN ANY LEGAL PROCEEDING DIRECTLY OR INDIRECTLY ARISING OUT OF OR RELATING TO THIS AGREEMENT, ANY OTHER LOAN DOCUMENT OR THE TRANSACTIONS CONTEMPLATED HEREBY OR THEREBY (WHETHER BASED ON CONTRACT, TORT OR ANY OTHER THEORY). EACH PARTY HERETO (A) CERTIFIES THAT NO REPRESENTATIVE, AGENT OR ATTORNEY OF ANY OTHER PARTY HAS REPRESENTED, EXPRESSLY OR OTHERWISE, THAT SUCH OTHER PARTY WOULD NOT, IN THE EVENT OF LITIGATION, SEEK TO ENFORCE THE FOREGOING WAIVER AND (B) ACKNOWLEDGES THAT IT AND THE OTHER PARTIES HERETO HAVE BEEN INDUCED TO ENTER INTO THIS AGREEMENT BY, AMONG OTHER THINGS, THE MUTUAL WAIVERS AND CERTIFICATIONS IN THIS SECTION.

Section 11.11. Headings.

Article and Section headings and the Table of Contents used herein are for convenience of reference only, are not part of this Agreement and shall not affect the construction of, or be taken into consideration in interpreting, this Agreement.

Section 11.12. Confidentiality.

Each of the Administrative Agent, the Collateral Agent and the Lenders agrees to maintain the confidentiality of the Information (as defined below), except that Information may be disclosed (a) to its Affiliates and to its and its Affiliates' respective partners, directors, officers, employees, agents, trustees, advisors, service providers and representatives on a need-to-know basis (it being understood that the Persons to whom such disclosure is made will be informed of the confidential nature of such Information and instructed to keep such Information confidential), (b) to the extent required or requested by any regulatory authority purporting to have jurisdiction over such Person or its Related Parties (including any self-regulatory authority, such as the National Association of Insurance Commissioners), (c) to the extent required by applicable laws or regulations or by any subpoena or similar legal process, (d) to any other party hereto, (e) in connection with the exercise of any remedies hereunder or under any other Loan Document or any action or proceeding relating to this Agreement or any other Loan Document or the enforcement of rights hereunder or thereunder, (f) subject to an agreement containing provisions substantially the same as those of this Section (or as otherwise reasonably acceptable to the Borrower, including pursuant to "click-through" confidentiality undertakings on the Platform), to (i) any assignee of or Participant in, or any prospective assignee of or Participant in, any of its rights and obligations under this Agreement (other than, in each case, a Disqualified Lender) or (ii) any actual or prospective party (or its Related Parties) to any swap, derivative or other transaction under which payments are to be made by reference to the Borrower and its obligations, this Agreement or payments hereunder, (g) on a confidential basis to (i) any rating agency in connection with rating Holdings, the Borrower or the credit facilities provided hereunder or (ii) the CUSIP Service Bureau or any similar agency in connection with the issuance and monitoring of identification numbers with respect to the credit facilities provided hereunder, (h) with the consent of the Borrower, (i) to the extent such Information (x) becomes publicly available other than as a result of a breach of this Section or (y) becomes available to the Administrative Agent, the Collateral Agent, any Lender or any of their respective Affiliates on a nonconfidential basis from a source other than Holdings, the Borrower or any of their Subsidiaries that, to such Person's knowledge, is not subject to a confidentiality obligation to the Borrower or (j) to the extent constituting customary aggregate deal terms (including facility size, pricing, maturity and industry) disclosed in league table compilations, marketing materials or fund reporting that does not identify the Borrower without its consent. For purposes of this Section, "**Information**" means all information received from or on behalf of Holdings, the Borrower or any of their Subsidiaries relating to Holdings, the Borrower, any of their Subsidiaries or any of their respective businesses, other than any such information that is available to the Administrative Agent, the Collateral Agent or any Lender on a nonconfidential basis prior to disclosure by or on behalf of Holdings, the Borrower or any of their Subsidiaries. Any Person required to maintain the confidentiality of Information as provided in this Section shall be considered to have complied with its obligation to do so if such Person has exercised the same degree of care to maintain the confidentiality of such Information as such Person would accord to its own confidential information.

Section 11.13. <u>USA PATRIOT Act; Beneficial Ownership Regulation.</u>

Each Lender that is subject to the requirements of the USA PATRIOT Act and the Administrative Agent (for itself and not on behalf of any Lender) hereby notifies each Loan Party that, pursuant to the requirements of the USA PATRIOT Act and the Beneficial Ownership Regulation (31 C.F.R. § 1010.230), it is required to obtain, verify and record information that identifies such Loan Party, which information includes the name and address of such Loan Party, information regarding beneficial ownership of such Loan Party and other information that will allow such Lender or the Administrative Agent, as applicable, to identify such Loan Party in accordance with the USA PATRIOT Act and the Beneficial Ownership Regulation. Each Loan Party shall, promptly following a request by the Administrative Agent or any Lender, provide all documentation and other information that the Administrative Agent or such Lender reasonably requests in order to comply with its ongoing obligations under applicable "know your customer" and anti-money laundering rules and regulations, including the USA PATRIOT Act and the Beneficial Ownership Regulation.

Section 11.14. <u>No Advisory or Fiduciary Responsibility.</u>

In connection with all aspects of each transaction contemplated hereby (including in connection with any amendment, waiver or other modification hereof or of any other Loan Document), each of Holdings and the Borrower acknowledges and agrees, and acknowledges its Affiliates' understanding, that: (a) (i) the arranging and other services regarding this Agreement provided by the Administrative Agent, the Collateral Agent, the Lead Arranger and the Lenders are arm's-length commercial transactions between Holdings, the Borrower and their respective Affiliates, on the one hand, and the Administrative Agent, the Collateral Agent, the Lead Arranger and the Lenders, on the other hand, (ii) each of Holdings and the Borrower has consulted its own legal, accounting, regulatory and tax advisors to the extent it has deemed appropriate and (iii) each of Holdings and the Borrower is capable of evaluating, and understands and accepts, the terms, risks and conditions of the transactions contemplated hereby and by the other Loan Documents; (b) (i) each of the Administrative Agent, the Collateral Agent, the Lead Arranger and the Lenders is and has been acting solely as a principal and, except as expressly agreed in writing by the relevant parties, has not been, is not and will not be acting as an advisor, agent or fiduciary for Holdings, the Borrower or any of their respective Affiliates, equityholders, creditors or employees or any other Person and (ii) none of the Administrative Agent, the Collateral Agent, the Lead Arranger or any Lender has any obligation to Holdings, the Borrower or any of their respective Affiliates with respect to the transactions contemplated hereby except those obligations expressly set forth herein and in the other Loan Documents; and (c) the Administrative Agent, the Collateral Agent, the Lead Arranger and the Lenders and their respective Affiliates may be engaged in a broad range of transactions that involve interests that differ from those of Holdings, the Borrower and their respective Affiliates, and none of the Administrative Agent, the Collateral Agent, the Lead Arranger or any Lender has any obligation to disclose any of such interests to Holdings, the Borrower or any of their respective Affiliates. To the fullest extent permitted by law, each of Holdings and the Borrower hereby waives and releases any claims that it may have against the Administrative Agent, the Collateral Agent, the Lead Arranger and the Lenders with respect to any breach or alleged breach of agency or fiduciary duty in connection with any aspect of any transaction contemplated hereby.

Section 11.15. <u>Acknowledgement and Consent to Bail-In of Affected Financial Institutions.</u>

Notwithstanding anything to the contrary in any Loan Document or in any other agreement, arrangement or understanding among any of the parties hereto, each party hereto acknowledges that any liability of any Lender that is an Affected Financial Institution arising under any Loan Document, to the extent such liability is unsecured, may be subject to the Write-Down and Conversion Powers of the applicable Resolution Authority and agrees and consents to, and acknowledges and agrees to be bound by: (a) the application of any Write-Down and Conversion Powers by the applicable Resolution Authority to any such liabilities arising hereunder which may be payable to it by any Lender that is an Affected Financial Institution; and (b) the effects of any Bail-In Action on any such liability, including, if applicable, (i) a reduction in full or in part or cancellation of any such liability, (ii) a conversion of all, or a portion of, such liability into shares or other instruments of ownership in such Affected Financial Institution, its parent undertaking or a bridge institution that may be issued to it or otherwise conferred on it, and that such shares or other instruments of ownership will be accepted by it in lieu of any rights with respect to any such liability under this Agreement or any other Loan Document, or (iii) the variation of the terms of such liability in connection with the exercise of the Write-Down and Conversion Powers of the applicable Resolution Authority.

Section 11.16. Certain ERISA Matters.

(a) Each Lender (i) represents and warrants, as of the date such Person became a Lender party hereto, and (ii) covenants, from the date such Person became a Lender party hereto to the date such Person ceases being a Lender party hereto, for the benefit of the Administrative Agent, the Collateral Agent and the Lead Arranger, and not, for the avoidance of doubt, to or for the benefit of the Borrower or any other Loan Party, that at least one of the following is and will be true: (A) such Lender is not using "plan assets" (within the meaning of the Plan Asset Regulations) of one or more Benefit Plans in connection with the Loans or the Commitments; (B) the prohibited transaction exemption set forth in one or more PTEs, such as PTE 84-14 (a class exemption for certain transactions determined by independent qualified professional asset managers), PTE 95-60 (a class exemption for certain transactions involving insurance company general accounts), PTE 90-1 (a class exemption for certain transactions involving insurance company pooled separate accounts), PTE 91-38 (a class exemption for certain transactions involving bank collective investment funds) or PTE 96-23 (a class exemption for certain transactions determined by in-house asset managers), is applicable with respect to such Lender's entrance into, participation in, administration of and performance of the Loans, the Commitments and this Agreement; (C) (1) such Lender is an investment fund managed by a "Qualified Professional Asset Manager" (within the meaning of Part VI of PTE 84-14), (2) such Qualified Professional Asset Manager made the investment decision on behalf of such Lender to enter into, participate in, administer and perform the Loans, the Commitments and this Agreement, (3) the entrance into, participation in, administration of and performance of the Loans, the Commitments and this Agreement satisfies the requirements of subsections (b) through (g) of Part I of PTE 84-14 and (4) to the best knowledge of such Lender, the requirements of subsection (a) of Part I of PTE 84-14 are satisfied with respect to such Lender's entrance into, participation in, administration of and performance of the Loans, the Commitments and this Agreement; or (D) such other representation, warranty and covenant as may be agreed in writing between the Administrative Agent, in its sole discretion, and such Lender. As used in this Section, "**PTE**" means a prohibited transaction class exemption issued by the U.S. Department of Labor, as any such exemption may be amended from time to time, and "**Plan Asset Regulations**" means 29 C.F.R. § 2510.3-101 *et seq.*, as modified by Section 3(42) of ERISA, as amended from time to time.

(b) In addition, unless either (i) clause (A) in the immediately preceding paragraph is true with respect to a Lender or (ii) a Lender has provided another representation, warranty and covenant in accordance with clause (D) in the immediately preceding paragraph, such Lender further (x) represents and warrants, as of the date such Person became a Lender party hereto, and (y) covenants, from the date such Person became a Lender party hereto to the date such Person ceases being a Lender party hereto, for the benefit of the Administrative Agent, the Collateral Agent and the Lead Arranger, and not, for the avoidance of doubt, to or for the benefit of the Borrower or any other Loan Party, that none of the Administrative Agent, the Collateral Agent or the Lead Arranger is a fiduciary with respect to the assets of such Lender involved in such Lender's entrance into, participation in, administration of and performance of the Loans, the Commitments and this Agreement (including in connection with the reservation or exercise of any rights by the Administrative Agent or the Collateral Agent under this Agreement, any other Loan Document or any documents related hereto or thereto).

Section 11.17. Acknowledgement Regarding Any Supported QFCs.

To the extent that the Loan Documents provide support, through a guarantee or otherwise, for any Swap Agreement or any other agreement or instrument that is a QFC (such support, "**QFC Credit Support**" and each such QFC, a "**Supported QFC**"), the parties acknowledge and agree as follows with respect to the resolution power of the Federal Deposit Insurance Corporation under the Federal Deposit Insurance Act and Title II of the Dodd-Frank Wall Street Reform and Consumer Protection Act (together with the regulations promulgated thereunder, the "**U.S. Special Resolution Regimes**") in respect of such Supported QFC and QFC Credit Support (with the provisions below applicable notwithstanding that the Loan Documents and any Supported QFC may in fact be stated to be governed by the laws of the State of New York and/or of the United States or any other state of the United States): In the event a Covered Entity that is party to a Supported QFC (each, a "**Covered Party**") becomes subject to a proceeding under a U.S. Special Resolution Regime, the transfer of such Supported QFC and the benefit of such QFC Credit Support (and any interest and obligation in or under such Supported QFC and such QFC Credit Support, and any rights in property securing such Supported QFC or such QFC Credit Support) from such Covered Party will be effective to the same extent as the transfer would be effective under the U.S. Special Resolution Regime if the Supported QFC and such QFC Credit Support (and any such interest, obligation and rights in property) were governed by the laws of the United States or a state of the United States. In the event a Covered Party or a BHC Act Affiliate of a Covered Party becomes subject to a proceeding under a U.S. Special Resolution Regime, Default

Rights under the Loan Documents that might otherwise apply to such Supported QFC or any QFC Credit Support that may be exercised against such Covered Party are permitted to be exercised to no greater extent than such Default Rights could be exercised under the U.S. Special Resolution Regime if the Supported QFC and the Loan Documents were governed by the laws of the United States or a state of the United States. As used in this Section, "**BHC Act Affiliate**" of a party means an "affiliate" (as such term is defined under, and interpreted in accordance with, 12 U.S.C. 1841(k)) of such party; "**Covered Entity**" means any of (i) a "covered entity" as that term is defined in, and interpreted in accordance with, 12 C.F.R. § 252.82(b), (ii) a "covered bank" as that term is defined in, and interpreted in accordance with, 12 C.F.R. § 47.3(b) or (iii) a "covered FSI" as that term is defined in, and interpreted in accordance with, 12 C.F.R. § 382.2(b); "**Default Right**" has the meaning assigned to that term in, and shall be interpreted in accordance with, 12 C.F.R. §§ 252.81, 47.2 or 382.1, as applicable; and "**QFC**" has the meaning assigned to the term "qualified financial contract" in, and shall be interpreted in accordance with, 12 U.S.C. 5390(c)(8)(D).

Section 11.18. Entire Agreement.

This Agreement, the other Loan Documents and the Fee Letter constitute the entire contract among the parties relating to the subject matter hereof and supersede any and all previous agreements and understandings, oral or written, relating to the subject matter hereof (other than the Fee Letter, which shall survive in accordance with its terms).

[Remainder of page intentionally left blank; signature pages follow.]

IN WITNESS WHEREOF, the parties hereto have caused this Agreement to be duly executed and delivered by their respective authorized officers as of the day and year first above written.

MERIDIAN COMPOSITES, LLC,
as the Borrower

By: ______________________________
Name:
Title:

MERIDIAN COMPOSITES INTERMEDIATE HOLDINGS, LLC,
as Holdings

By: ______________________________
Name:
Title:

ARGENT CAPITAL ADMINISTRATIVE SERVICES, LLC,
as Administrative Agent and Collateral Agent

By: ______________________________
Name:
Title:

ARGENT DIRECT LENDING FUND III, L.P.,
as a Lender, by Argent Credit Advisors GP, LLC, its general partner

By: ______________________________
Name:
Title:

ARGENT DIRECT LENDING FUND III-B (OFFSHORE), L.P.,
as a Lender, by Argent Credit Advisors GP, LLC, its general partner

By: ______________________________
Name:
Title:

CALLOWAY CREDIT INCOME FUND, L.P.,
as a Lender, by Calloway Credit Management, L.P., its investment manager

By: ______________________________
Name:
Title:

BROCKHURST INSURANCE SOLUTIONS LLC (SERIES PC-7),
as a Lender, by Brockhurst Asset Management LLC, its manager

By: ______________________________
Name:
Title:

TIDEWATER BDC, INC.,
as a Lender

By: ______________________________
Name:
Title:

SCHEDULES AND EXHIBITS

Schedule 1.01(a) — Disqualified Lenders
Schedule 1.01(b) — Material Intellectual Property
Schedule 2.01 — Commitments
Schedule 5.06 — Disclosed Matters
Schedule 5.12 — Subsidiaries
Schedule 6.13 — Post-Closing Matters
Schedule 7.01 — Existing Indebtedness
Schedule 7.02 — Existing Liens
Schedule 7.05 — Existing Investments
Schedule 11.01 — Notice Information

Exhibit A — Form of Assignment and Assumption
Exhibit B — Form of Compliance Certificate
Exhibit C — Form of Borrowing Request
Exhibit D — Form of Term Note
Exhibit E — Form of Solvency Certificate
Exhibit F — Form of Intercompany Note

SCHEDULE 1.01(a)

Disqualified Lenders

Part A — Identified Institutions (in each case, together with their respective Affiliates that are reasonably identifiable as such solely on the basis of the similarity of name):

1. Vantage Loan Opportunities Master Fund, L.P.
2. Ridgecrest Special Situations Partners, LLC
3. Halberd Distressed Credit Fund II, L.P.

Part B — Competitors (in each case, together with their respective Affiliates that are reasonably identifiable as such solely on the basis of the similarity of name, but excluding any bona fide debt fund affiliate thereof that is primarily engaged in the business of investing in commercial loans and with respect to which no personnel involved in the management of the relevant competitor (i) makes investment decisions or (ii) has access to confidential information relating to the Borrower):

1. Apex Composite Industries, Inc.
2. Polymer Dynamics Holdings Corp.
3. Carbide & Fiber Technologies, LLC
4. TriPoint Advanced Materials Group, Inc.

SCHEDULE 1.01(b)

Material Intellectual Property

All of the following Intellectual Property is owned of record and beneficially by MC IP Holdings, LLC, a Delaware limited liability company and a Subsidiary Guarantor, and is licensed to the Borrower and the other Restricted Subsidiaries pursuant to that certain Amended and Restated Intercompany License Agreement, dated as of June 10, 2026 (which license is non-exclusive, perpetual and royalty-bearing on arm's-length terms).

Part A — Patents (United States):

1. U.S. Patent No. 11,482,915 — "Continuous Fiber-Reinforced Thermoplastic Pultrusion Process and Apparatus" (issued November 8, 2022).

2. U.S. Patent No. 11,761,204 — "In-Line Resin Impregnation System for High-Throughput Composite Forming" (issued September 19, 2023).

3. U.S. Patent No. 10,994,512 — "Hybrid Carbon-Glass Fiber Architectures for Energy-Storage Enclosures" (issued May 4, 2021).

4. U.S. Patent Application Serial No. 18/447,236 — "Recyclable Thermoplastic Composite Laminates With Reversible Cross-Linking" (filed August 9, 2024; pending).

Part B — Trademarks (United States):

1. MERIDIAN — U.S. Reg. No. 5,214,883 (Classes 17, 19 and 40).

2. MERIDIAN COMPOSITES & Design — U.S. Reg. No. 5,891,002 (Classes 17, 19 and 40).

3. THERMAFORM — U.S. Reg. No. 6,102,447 (Class 17).

Part C — Trade Secrets:

1. Proprietary resin formulations bearing internal designations MX-7 and MX-9, together with the related process parameters, cure schedules, quality-control specifications and supplier qualification data maintained as trade secrets of MC IP Holdings, LLC.

SCHEDULE 2.01

Commitments

Lender	Initial Term Loan Commitment	Delayed Draw Term Loan Commitment	Revolving Commitment
Argent Direct Lending Fund III, L.P.	$135,000,000	$22,500,000	$15,750,000
Argent Direct Lending Fund III-B (Offshore), L.P.	$60,000,000	$10,000,000	$7,000,000
Calloway Credit Income Fund, L.P.	$45,000,000	$7,500,000	$5,250,000
Brockhurst Insurance Solutions LLC (Series PC-7)	$36,000,000	$6,000,000	$4,200,000
Tidewater BDC, Inc.	$24,000,000	$4,000,000	$2,800,000
Total	$300,000,000	$50,000,000	$35,000,000

SCHEDULE 5.06

Disclosed Matters

1. *Gulfline Marine Systems, LLC v. Meridian Composites Manufacturing, LLC*, Superior Court of New Jersey, Law Division, Middlesex County, Docket No. MID-L-2214-25. Product warranty and breach of contract action alleging delamination of composite deck panels supplied in 2023; compensatory damages claimed of approximately $1,800,000. The Borrower's commercial general liability insurer is providing a defense under a reservation of rights. The Borrower disputes liability and is defending the action vigorously.

2. *Ramos, et al. v. Meridian Composites, LLC*, United States District Court for the District of New Jersey, Case No. 2:25-cv-08841. Putative collective action under the Fair Labor Standards Act and parallel New Jersey wage-and-hour statutes alleging unpaid pre-shift donning time at the Edison, New Jersey facility. The action is in its early stages; no class or collective has been certified.

3. United States Environmental Protection Agency — Clean Air Act Section 114 information request, dated February 12, 2026, relating to volatile organic compound emissions reporting at the Toledo, Ohio facility. The Borrower has responded to the information request. No notice of violation or enforcement action is pending.

SCHEDULE 5.12

Subsidiaries

1. Meridian Composites Manufacturing, LLC — Delaware limited liability company — 100% of the Equity Interests owned by the Borrower — Subsidiary Guarantor.

2. Meridian Advanced Materials, Inc. — Delaware corporation — 100% of the Equity Interests owned by the Borrower — Subsidiary Guarantor.

3. MC IP Holdings, LLC — Delaware limited liability company — 100% of the Equity Interests owned by the Borrower — Subsidiary Guarantor — record and beneficial owner of the Material Intellectual Property listed on Schedule 1.01(b).

4. Meridian Composites de México, S. de R.L. de C.V. — Mexican sociedad de responsabilidad limitada de capital variable — 99% of the Equity Interests owned by the Borrower and 1% owned by Meridian Composites Manufacturing, LLC — Foreign Subsidiary and Excluded Subsidiary (65% of the voting Equity Interests to be pledged pursuant to Schedule 6.13).

As of the Closing Date, no Subsidiary has been designated as an Unrestricted Subsidiary.

SCHEDULE 6.13

Post-Closing Matters

1. Within sixty (60) days after the Closing Date (or such later date as the Administrative Agent may agree in its reasonable discretion), the Loan Parties shall deliver to the Collateral Agent deposit account control agreements, in form and substance reasonably satisfactory to the Collateral Agent, with respect to each deposit account and securities account of the Loan Parties (other than Excluded Accounts), duly executed by the applicable Loan Party and the applicable depositary bank or securities intermediary.

2. Within thirty (30) days after the Closing Date (or such later date as the Administrative Agent may agree in its reasonable discretion), the Borrower shall deliver to the Collateral Agent certificates of insurance and endorsements evidencing that the Collateral Agent has been named as lender's loss payee with respect to property insurance and as additional insured with respect to liability insurance, in each case as required by Section 6.07.

3. Within ninety (90) days after the Closing Date (or such later date as the Administrative Agent may agree in its reasonable discretion), the Loan Parties shall (a) execute and deliver a pledge agreement governed by the laws of Mexico (or a supplement to the Guarantee and Collateral Agreement, as determined by the Collateral Agent) pledging 65% of the issued and outstanding voting Equity Interests (and 100% of the non-voting Equity Interests, if any) of Meridian Composites de México, S. de R.L. de C.V. and (b) deliver the original certificates (if any) representing such pledged Equity Interests, together with undated transfer powers executed in blank.

4. Within one hundred twenty (120) days after the Closing Date, the Borrower shall use commercially reasonable efforts to deliver a collateral access agreement, in form and substance reasonably satisfactory to the Collateral Agent, with respect to the leased facility located at 1400 Raritan Center Parkway, Edison, New Jersey.

SCHEDULE 7.01

Existing Indebtedness

1. Equipment notes payable by Meridian Composites Manufacturing, LLC to Standard Capital Equipment Finance, LLC, in an aggregate outstanding principal amount of $3,214,562 as of the Closing Date, maturing on various dates through March 2028, secured by the equipment described in Item 1 of Schedule 7.02.

2. Industrial revenue bonds (Lucas County, Ohio Industrial Development Revenue Bonds, Series 2019) supported by obligations of Meridian Advanced Materials, Inc., in an aggregate outstanding principal amount of $4,500,000 as of the Closing Date, maturing on December 1, 2034, relating to the Toledo, Ohio facility.

3. Capital Lease Obligations of the Borrower and its Restricted Subsidiaries in respect of forklifts and material-handling equipment, in an aggregate outstanding amount of $612,440 as of the Closing Date.

SCHEDULE 7.02

Existing Liens

1. Liens on specific equipment of Meridian Composites Manufacturing, LLC securing the equipment notes described in Item 1 of Schedule 7.01, evidenced by UCC-1 financing statement file number 2023-1184427 filed with the Delaware Secretary of State.

2. Liens on the Toledo, Ohio facility and related fixtures securing the industrial revenue bonds described in Item 2 of Schedule 7.01.

3. Precautionary UCC-1 financing statements filed in respect of the Capital Lease Obligations described in Item 3 of Schedule 7.01 and in respect of operating leases of equipment in the ordinary course of business.

SCHEDULE 7.05

Existing Investments

1. 35% of the membership interests of Gulf Coast Composite Partners, LLC, a Texas limited liability company (a joint venture with Bayway Marine Holdings, LLC), held by the Borrower, with a carrying value of approximately $6,400,000 as of March 31, 2026.

2. Intercompany loans by the Borrower to Meridian Composites de México, S. de R.L. de C.V., in an aggregate outstanding principal amount of $2,150,000 as of the Closing Date.

SCHEDULE 11.01

Notice Information

If to Holdings or the Borrower:

Meridian Composites, LLC, 1400 Raritan Center Parkway, Edison, New Jersey 08837, Attention: Chief Financial Officer; Email: notices@meridiancomposites.example.

with a copy (which shall not constitute notice) to: Wexford & Crane LLP, 1221 Avenue of the Americas, New York, New York 10020, Attention: Priya Raghunathan, Esq.; Email: praghunathan@wexfordcrane.example; and to Halcyon Ridge Partners, L.P., 712 Fifth Avenue, 40th Floor, New York, New York 10019, Attention: General Counsel.

If to the Administrative Agent or the Collateral Agent:

Argent Capital Administrative Services, LLC, 590 Madison Avenue, 28th Floor, New York, New York 10022, Attention: Agency Services — Meridian Composites; Email: agency@argentcapital.example.

with a copy (which shall not constitute notice) to: Calder, Brustein & Moore LLP, 425 Lexington Avenue, New York, New York 10017, Attention: T. Okafor, Esq.; Email: tokafor@cbmlaw.example.

If to any Lender: at the address set forth in its Administrative Questionnaire.

EXHIBIT A

Form of Assignment and Assumption

This Assignment and Assumption (this "Assignment and Assumption") is dated as of the Effective Date set forth below and is entered into by and between the Assignor identified below (the "Assignor") and the Assignee identified below (the "Assignee"). Capitalized terms used but not defined herein shall have the meanings given to them in the Credit Agreement identified below, receipt of a copy of which is hereby acknowledged by the Assignee. The Standard Terms and Conditions for Assignment and Assumption published from time to time by the LSTA are hereby agreed to and incorporated herein by reference and made a part of this Assignment and Assumption as if set forth herein in full.

For an agreed consideration, the Assignor hereby irrevocably sells and assigns to the Assignee, and the Assignee hereby irrevocably purchases and assumes from the Assignor, subject to and in accordance with the Standard Terms and Conditions and the Credit Agreement, as of the Effective Date inserted by the Administrative Agent below, (a) all of the Assignor's rights and obligations in its capacity as a Lender under the Credit Agreement and any other documents or instruments delivered pursuant thereto to the extent related to the amount and percentage interest identified below of all of such outstanding rights and obligations of the Assignor under the respective facilities identified below and (b) to the extent permitted to be assigned under applicable law, all claims, suits, causes of action and any other right of the Assignor (in its capacity as a Lender) against any Person, whether known or unknown, arising under or in connection with the Credit Agreement, any other documents or instruments delivered pursuant thereto or the loan transactions governed thereby (the rights and obligations sold and assigned pursuant to clauses (a) and (b) above being referred to herein collectively as the "Assigned Interest"). Such sale and assignment is without recourse to the Assignor and, except as expressly provided in this Assignment and Assumption, without representation or warranty by the Assignor.

1. Assignor: ______________________________

2. Assignee: ______________________________ [an Affiliate of [identify Lender] / an Approved Fund of [identify Lender]]

3. Borrower: Meridian Composites, LLC

4. Administrative Agent: Argent Capital Administrative Services, LLC, as administrative agent under the Credit Agreement

5. Credit Agreement: Credit Agreement, dated as of June 10, 2026, among Meridian Composites, LLC, Meridian Composites Intermediate Holdings, LLC, the Lenders party thereto and Argent Capital Administrative Services, LLC, as Administrative Agent and Collateral Agent

6. Assigned Interest: Facility Assigned: [Initial Term Loans / Delayed Draw Term Loans / Delayed Draw Commitments / Revolving Commitments]; Aggregate Amount of Commitment/Loans for all Lenders: $__________; Amount of Commitment/Loans Assigned: $__________; Percentage Assigned of Commitment/Loans: ________%

7. Effective Date: ______________, 20__ [TO BE INSERTED BY ADMINISTRATIVE AGENT AND WHICH SHALL BE THE EFFECTIVE DATE OF RECORDATION OF TRANSFER IN THE REGISTER THEREFOR]

The terms set forth in this Assignment and Assumption are hereby agreed to: ASSIGNOR: [NAME OF ASSIGNOR], By: ______________, Name: ______________, Title: ______________; ASSIGNEE: [NAME OF ASSIGNEE], By: ______________, Name: ______________, Title: ______________. [Consented to and] Accepted: ARGENT CAPITAL ADMINISTRATIVE SERVICES, LLC, as Administrative Agent. [Consented to: MERIDIAN COMPOSITES, LLC.]

EXHIBIT B

Form of Compliance Certificate

Reference is made to the Credit Agreement, dated as of June 10, 2026 (as amended, restated, amended and restated, supplemented or otherwise modified from time to time, the "Credit Agreement"), among Meridian Composites, LLC, a Delaware limited liability company (the "Borrower"), Meridian Composites Intermediate Holdings, LLC, a Delaware limited liability company ("Holdings"), the Lenders from time to time party thereto and Argent Capital Administrative Services, LLC, as Administrative Agent and Collateral Agent. Capitalized terms used but not defined herein have the meanings assigned to such terms in the Credit Agreement.

The undersigned, a Financial Officer of the Borrower, hereby certifies in such capacity and not in any individual capacity, pursuant to Section 6.02(a) of the Credit Agreement, as of the date hereof and for the [Fiscal Quarter/Fiscal Year] ended ______________, 20__ (the "Reporting Period"), that:

1. Attached hereto as Attachment 1 are the financial statements required to be delivered pursuant to Section [6.01(a)/6.01(b)] of the Credit Agreement for the Reporting Period, which financial statements fairly present, in all material respects, the financial condition and results of operations of the Borrower and its consolidated Subsidiaries as of the dates and for the periods indicated, in accordance with GAAP (subject, in the case of quarterly statements, to normal year-end audit adjustments and the absence of footnotes).

2. [No Default or Event of Default has occurred and is continuing.] [The following Default(s) or Event(s) of Default has/have occurred and is/are continuing: ______________, and the Borrower [has taken/proposes to take] the following actions with respect thereto: ______________.]

3. Annex A hereto sets forth reasonably detailed calculations of (a) the Total Net Leverage Ratio and demonstration of compliance with Section 8.01, (b) the Fixed Charge Coverage Ratio and demonstration of compliance with Section 8.02 and (c) [if a Liquidity Trigger Period was in effect during the Reporting Period] Liquidity as of the last day of each calendar month during such Liquidity Trigger Period and demonstration of compliance with Section 8.03, in each case as of the last day of the Reporting Period (the "Test Date").

4. Based on the Total Net Leverage Ratio set forth in Annex A, the Pricing Level applicable under the definition of "Applicable Margin" from and after the third Business Day following delivery of this Certificate is Pricing Level [I/II/III].

5. [For annual certificates only:] Annex A sets forth a reasonably detailed calculation of Excess Cash Flow for the Fiscal Year covered by this Certificate, the ECF Percentage applicable thereto and the resulting prepayment, if any, required pursuant to Section 2.09(c).

6. Annex A sets forth a rollforward of the Available Amount and a summary of utilization during the Reporting Period of the baskets set forth in Sections 7.04(g), 7.05(d), 7.05(g), 7.05(k), 7.05(m), 7.06(c), 7.06(d), 7.06(f), 7.06(g) and 7.07(a)(iv) and (v) of the Credit Agreement.

7. [No Cure Right has been exercised with respect to the Reporting Period.] [A Cure Right has been exercised with respect to the Reporting Period; the Cure Amount is $__________; the number of Fiscal Quarters in respect of which the Cure Right has been exercised is ____ of the five (5) permitted over the term of the Credit Agreement and ____ of the two (2) permitted in any period of four (4) consecutive Fiscal Quarters.]

IN WITNESS WHEREOF, the undersigned has executed this Certificate as of the date first written above. MERIDIAN COMPOSITES, LLC, By: ______________, Name: ______________, Title: [Chief Financial Officer].

Annex A to Compliance Certificate — Covenant Calculations

I. Consolidated EBITDA (for the Test Period of four consecutive Fiscal Quarters ended on the Test Date)

1. Consolidated Net Income: $__________

2. *Plus* (clause (a)(i)): consolidated interest expense (excluding PIK Interest paid in kind): $__________

3. *Plus* (clause (a)(ii)): provision for taxes based on income, profits or capital: $__________

4. *Plus* (clause (a)(iii)): depreciation and amortization expense: $__________

5. *Plus* (clause (a)(iv)): non-cash charges, expenses or losses: $__________

6. *Plus* (clause (a)(v)): fees, costs and expenses incurred in connection with the Transactions: $__________

7. *Plus* (clauses (a)(vi) and (vii)): transaction costs and restructuring/business optimization charges (aggregate of these clauses not to exceed 15% of Consolidated EBITDA calculated before giving effect thereto; cap: $__________): $__________

8. *Plus* (clause (a)(viii)): "run rate" cost savings, operating expense reductions and synergies (not to exceed 25% of Consolidated EBITDA calculated after giving effect thereto; cap: $__________): $__________

9. *Plus* (clause (a)(ix)): Sponsor fees and expenses permitted under Section 7.08: $__________

10. *Plus* (clauses (a)(x)–(xii)): losses on non-ordinary-course asset sales; insured/indemnified expenses; business interruption proceeds: $__________

11. *Minus* (clause (b)): non-cash gains and gains on non-ordinary-course asset sales: ($__________)

12. Deemed Consolidated EBITDA for any included Fiscal Quarter ended September 30, 2025 ($19,250,000), December 31, 2025 ($21,400,000), March 31, 2026 ($18,900,000) or June 30, 2026 ($20,450,000), in substitution for actual amounts for such quarters: $__________

13. Pro forma adjustments pursuant to Section 1.04 (Specified Transactions consummated during the Test Period): $__________

14. **Consolidated EBITDA (sum of Lines 1 through 13)**: $__________

II. Consolidated Total Net Debt (as of the Test Date)

1. Aggregate principal amount of Indebtedness for borrowed money (including capitalized PIK Interest): $__________

2. *Plus*: unreimbursed drawings under letters of credit; Capital Lease Obligations; purchase money Indebtedness; Disqualified Equity Interests: $__________

3. *Minus*: unrestricted cash and Cash Equivalents not held in an Excluded Account and free and clear of Liens (other than as permitted by the definition of Consolidated Total Net Debt), not to exceed $40,000,000: ($__________)

4. **Consolidated Total Net Debt (Line 1 plus Line 2 minus Line 3)**: $__________

III. Total Net Leverage Ratio — Section 8.01

1. Total Net Leverage Ratio (Part II, Line 4 divided by Part I, Line 14): ____ to 1.00

2. Maximum Total Net Leverage Ratio permitted under Section 8.01 for the Test Date: ____ to 1.00

3. In compliance: [Yes/No] [If "No," state whether a Cure Right will be exercised pursuant to Section 8.04 and the anticipated Cure Amount.]

IV. Fixed Charge Coverage Ratio — Section 8.02

1. Consolidated EBITDA (Part I, Line 14): $__________

2. *Minus*: unfinanced capital expenditures paid in cash during the Test Period: ($__________)

3. Numerator (Line 1 minus Line 2): $__________

4. Consolidated Interest Expense paid or payable in cash for the Test Period: $__________

5. Scheduled principal payments of Indebtedness for borrowed money during the Test Period (including scheduled amortization pursuant to Section 2.05(b)): $__________

6. Income taxes paid in cash (net of refunds) during the Test Period: $__________

7. Restricted Payments made in cash pursuant to Section 7.06(c) during the Test Period: $__________

8. Consolidated Fixed Charges (sum of Lines 4 through 7): $__________

9. Fixed Charge Coverage Ratio (Line 3 divided by Line 8): ____ to 1.00 (minimum required: 1.10 to 1.00)

10. In compliance: [Yes/No]

V. Minimum Liquidity — Section 8.03 [complete only if a Liquidity Trigger Period was in effect]

1. For each calendar month-end during the Liquidity Trigger Period: (a) unrestricted cash and Cash Equivalents in controlled accounts: $__________; (b) unused Revolving Commitments available to be drawn: $__________; (c) Liquidity (sum of (a) and (b)): $__________ (minimum required: $15,000,000); (d) In compliance: [Yes/No]

VI. Excess Cash Flow — Section 2.09(c) [annual certificates only]

1. Excess Cash Flow for the Fiscal Year: $__________

2. Total Net Leverage Ratio as of the last day of the Fiscal Year (Part III, Line 1) and resulting ECF Percentage (50% / 25% / 0%): ________

3. ECF Percentage of Excess Cash Flow (Line 1 multiplied by Line 2): $__________

4. *Minus*: voluntary prepayment credit pursuant to Section 2.09(c)(ii): ($__________)

5. Required Excess Cash Flow prepayment (Line 3 minus Line 4; payable only if in excess of $2,500,000): $__________

VII. Available Amount Rollforward and Basket Utilization

1. Available Amount, beginning of Reporting Period: $__________; *plus* retained Excess Cash Flow (clause (b)): $__________; *plus* Qualified Equity Interest issuances and capital contributions (clause (c), excluding Specified Equity Contributions): $__________; *plus* returns on Available Amount Investments (clause (d)): $__________; *plus* redesignation/transfer credits (clause (e)): $__________; *minus* utilization pursuant to Sections 7.05(m), 7.06(g) and 7.07(a)(iv) (clause (f)): ($__________); Available Amount, end of Reporting Period: $__________

2. Section 7.04(g) Dispositions during the current Fiscal Year (cap $25,000,000): $__________; Designated Non-Cash Consideration outstanding (cap $7,500,000): $__________

3. Section 7.05 Investments: clause (d) employee loans outstanding (cap $2,000,000): $__________; clause (g) general basket utilized (cap $15,000,000): $__________; clause (k) Investments in Unrestricted Subsidiaries (cap $10,000,000): $__________; clause (m) Available Amount Investments during the Reporting Period: $__________

4. Section 7.06 Restricted Payments: clause (c) Sponsor fees paid during the current Fiscal Year (cap $1,250,000, plus accrued amounts paid pursuant to the proviso thereto): $__________; clause (d) employee equity repurchases during the current Fiscal Year (cap $2,500,000, plus carried-forward amounts, with a maximum of $5,000,000 in any Fiscal Year): $__________; clause (f) general basket utilized (cap $7,500,000): $__________; clause (g) Available Amount Restricted Payments during the Reporting Period: $__________

5. Section 7.07(a) payments in respect of Junior Indebtedness: clause (iv) Available Amount payments: $__________; clause (v) general basket utilized (cap $5,000,000): $__________

6. PIK Election status: Fiscal Quarters for which a PIK Election has been made to date: ____ of eight (8) permitted; current PIK Election Period, if any: ______________

EXHIBIT C

Form of Borrowing Request

Argent Capital Administrative Services, LLC, as Administrative Agent, 590 Madison Avenue, 28th Floor, New York, New York 10022, Attention: Agency Services — Meridian Composites. Ladies and Gentlemen:

Reference is made to the Credit Agreement, dated as of June 10, 2026 (as amended, restated, amended and restated, supplemented or otherwise modified from time to time, the "Credit Agreement"), among Meridian Composites, LLC (the "Borrower"), Meridian Composites Intermediate Holdings, LLC, the Lenders from time to time party thereto and Argent Capital Administrative Services, LLC, as Administrative Agent and Collateral Agent. Capitalized terms used but not defined herein have the meanings assigned to such terms in the Credit Agreement. The Borrower hereby gives you notice pursuant to Section 2.03 of the Credit Agreement that it requests a Borrowing under the Credit Agreement, and in connection therewith specifies the following information with respect to such Borrowing:

1. Class of Borrowing: [Initial Term Loans / Delayed Draw Term Loans / Revolving Loans]

2. Aggregate principal amount of Borrowing: $__________

3. Date of Borrowing (which is a Business Day): ______________

4. Type of Borrowing: [Term SOFR Borrowing / Base Rate Borrowing]

5. Interest Period (if a Term SOFR Borrowing): [one / three / six] month[s]

6. Location and number of the Borrower's account to which proceeds are to be disbursed: ______________

7. [For Delayed Draw Term Loans only:] Use of proceeds: ______________. The undersigned Financial Officer certifies that the conditions set forth in Section 4.03 of the Credit Agreement are satisfied as of the date hereof and will be satisfied on the date of the requested Borrowing, including that, after giving effect to such Borrowing on a Pro Forma Basis, (a) the Total Net Leverage Ratio is ____ to 1.00 (maximum permitted: ____ to 1.00) and (b) the Fixed Charge Coverage Ratio is ____ to 1.00 (minimum required: 1.10 to 1.00), in each case as set forth in the attached calculations.

The Borrower hereby represents and warrants that the conditions specified in Section 4.02 of the Credit Agreement are satisfied as of the date hereof and will be satisfied on the date of the requested Borrowing. MERIDIAN COMPOSITES, LLC, By: ______________, Name: ______________, Title: ______________.

EXHIBIT D

Form of Term Note

FOR VALUE RECEIVED, the undersigned, MERIDIAN COMPOSITES, LLC, a Delaware limited liability company (the "Borrower"), hereby unconditionally promises to pay to ______________ or its registered assigns (the "Lender"), in accordance with the provisions of the Credit Agreement (as hereinafter defined), the principal amount of each [Initial Term Loan / Delayed Draw Term Loan / Revolving Loan] from time to time made by the Lender to the Borrower under that certain Credit Agreement, dated as of June 10, 2026 (as amended, restated, amended and restated, supplemented or otherwise modified from time to time, the "Credit Agreement"; the terms defined therein being used herein as therein defined), among the Borrower, Meridian Composites Intermediate Holdings, LLC, the Lenders from time to time party thereto and Argent Capital Administrative Services, LLC, as Administrative Agent and Collateral Agent.

The Borrower promises to pay interest on the unpaid principal amount of each Loan evidenced hereby from the date of such Loan until such principal amount is paid in full, at such interest rates and at such times as provided in the Credit Agreement. All payments of principal and interest shall be made to the Administrative Agent for the account of the Lender in Dollars in immediately available funds as provided in the Credit Agreement. If any amount is not paid in full when due hereunder, such unpaid amount shall bear interest, to be paid upon demand, from the due date thereof until the date of actual payment (and before as well as after judgment), computed at the per annum rate set forth in Section 2.06(c) of the Credit Agreement. This promissory note is one of the promissory notes referred to in Section 2.05(d) of the Credit Agreement, is entitled to the benefits thereof and may be prepaid, in whole or in part, subject to the terms and conditions thereof (including the payment of the Prepayment Premium, to the extent applicable). This promissory note is also entitled to the benefits of the Guarantee and Collateral Agreement and the other Collateral Documents. Upon the occurrence and continuation of one or more of the Events of Default specified in the Credit Agreement, all amounts then remaining unpaid on this promissory note shall become, or may be declared to be, immediately due and payable, all as provided in the Credit Agreement. THIS PROMISSORY NOTE SHALL BE GOVERNED BY, AND CONSTRUED IN ACCORDANCE WITH, THE LAWS OF THE STATE OF NEW YORK. MERIDIAN COMPOSITES, LLC, By: ______________, Name: ______________, Title: ______________.

EXHIBIT E

Form of Solvency Certificate

This Solvency Certificate is delivered pursuant to Section 4.01(i) of the Credit Agreement, dated as of June 10, 2026 (the “Credit Agreement”), among Meridian Composites, LLC (the “Borrower”), Meridian Composites Intermediate Holdings, LLC, the Lenders from time to time party thereto and Argent Capital Administrative Services, LLC, as Administrative Agent and Collateral Agent. Capitalized terms used but not defined herein have the meanings assigned to such terms in the Credit Agreement.

The undersigned, the chief financial officer of the Borrower, in such capacity and not in any individual capacity, hereby certifies that, as of the date hereof, after giving effect to the consummation of the Transactions (including the making of the Loans on the Closing Date and the application of the proceeds thereof):

1. The fair value of the assets of the Borrower and its Subsidiaries, on a consolidated basis, exceeds, on a consolidated basis, their debts and liabilities, subordinated, contingent or otherwise;

2. The present fair saleable value of the property of the Borrower and its Subsidiaries, on a consolidated basis, is greater than the amount that will be required to pay the probable liability, on a consolidated basis, of their debts and other liabilities, subordinated, contingent or otherwise, as such debts and other liabilities become absolute and matured;

3. The Borrower and its Subsidiaries, on a consolidated basis, are able to pay their debts and liabilities, subordinated, contingent or otherwise, as such debts and liabilities become absolute and matured; and

4. The Borrower and its Subsidiaries, on a consolidated basis, do not have unreasonably small capital with which to conduct the business in which they are engaged as such business is now conducted and is proposed to be conducted following the Closing Date.

The undersigned is familiar with the businesses and financial position of the Borrower and its Subsidiaries. In reaching the conclusions set forth in this Certificate, the undersigned has made such other investigations and inquiries as the undersigned has deemed appropriate, having taken into account the nature of the particular business anticipated to be conducted by the Borrower and its Subsidiaries after the consummation of the Transactions. IN WITNESS WHEREOF, the undersigned has executed this Certificate as of the date first written above. MERIDIAN COMPOSITES, LLC, By: ______________, Name: ______________, Title: Chief Financial Officer.

EXHIBIT F

Form of Intercompany Note

FOR VALUE RECEIVED, each of the undersigned (each, a "Payor") hereby promises to pay on demand to each other entity listed on the signature pages hereto (each, a "Payee"), in lawful money of the United States of America, the aggregate unpaid principal amount of all loans and advances made by such Payee to such Payor from time to time, together with interest thereon at such rate or rates as may be agreed between the applicable Payor and Payee from time to time. Each Payor and Payee acknowledges and agrees that this global intercompany note is the "Intercompany Note" referred to in the Credit Agreement, dated as of June 10, 2026, among Meridian Composites, LLC, Meridian Composites Intermediate Holdings, LLC, the Lenders from time to time party thereto and Argent Capital Administrative Services, LLC, as Administrative Agent and Collateral Agent (the "Credit Agreement").

Notwithstanding anything to the contrary herein, all obligations of each Payor that is a Loan Party under this note shall be subordinated in right of payment to the prior payment in full in cash of all Obligations of such Payor under the Credit Agreement and the other Loan Documents, on customary subordination terms; *provided* that, unless an Event of Default has occurred and is continuing and the Administrative Agent has so notified the Loan Parties, each Payor may make, and each Payee may receive and retain, payments hereunder in the ordinary course. Upon the occurrence and during the continuance of an Event of Default, no Payor that is a Loan Party shall make, and no Payee shall accept or retain, any payment hereunder (other than payments to a Payee that is a Loan Party), and any amount received in contravention of the foregoing shall be held in trust for, and promptly turned over to, the Administrative Agent for application to the Obligations. This note has been pledged to the Collateral Agent for the benefit of the Secured Parties pursuant to the Guarantee and Collateral Agreement. THIS NOTE SHALL BE GOVERNED BY, AND CONSTRUED IN ACCORDANCE WITH, THE LAWS OF THE STATE OF NEW YORK.